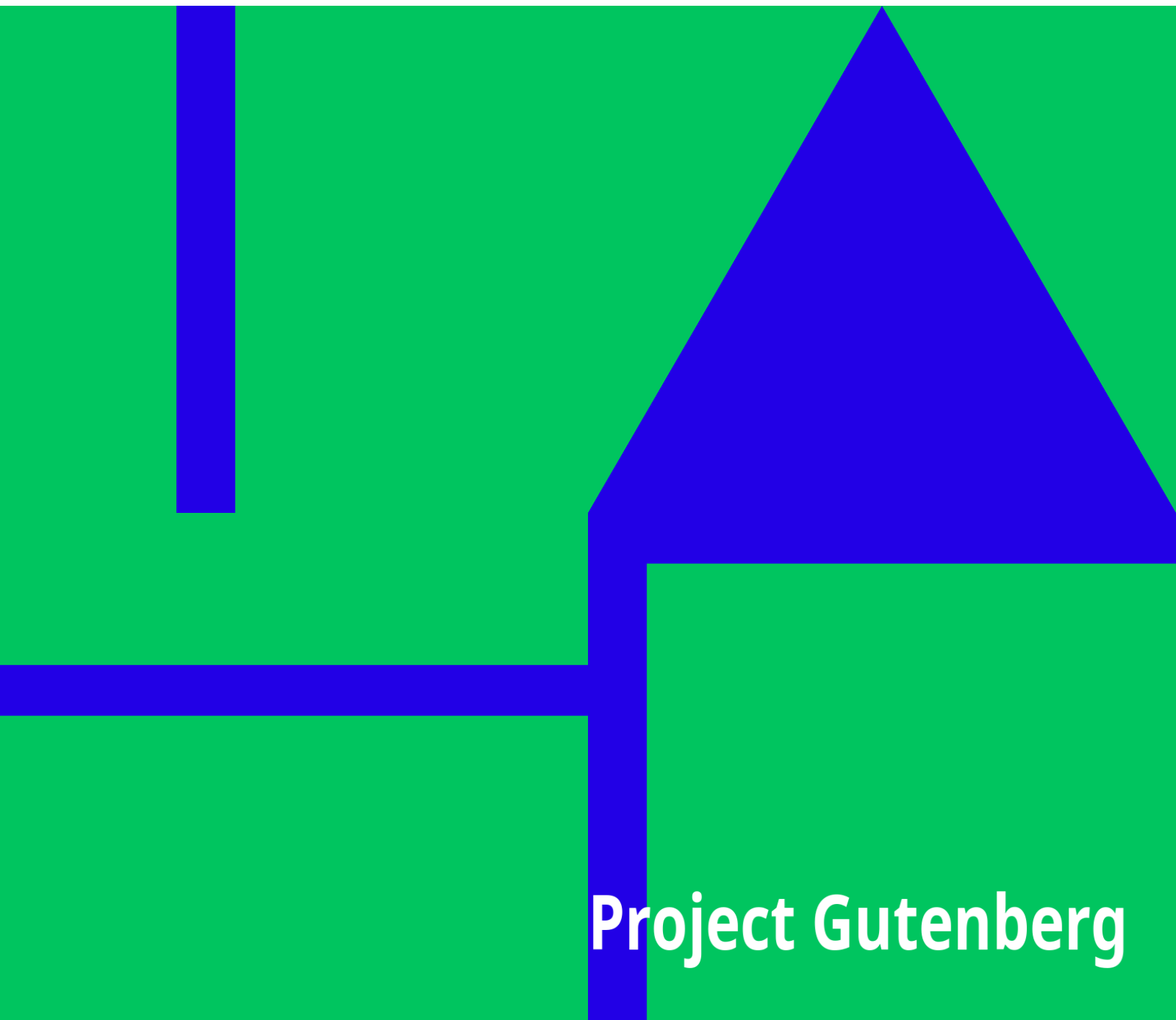


# Bacon

R. W. Church and John Morley

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# Bacon

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# **BACON**

**BY**

**R.W. CHURCH**

DEAN OF ST. PAUL'S  
HONORARY FELLOW OF ORIEL COLLEGE

**NEW YORK**

HARPER & BROTHERS, PUBLISHERS  
FRANKLIN SQUARE

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# ENGLISH MEN OF LETTERS.

EDITED BY JOHN MORLEY.

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## PREFACE.

In preparing this sketch it is needless to say how deeply I am indebted to Mr. Spedding and Mr. Ellis, the last editors of Bacon's writings, the very able and painstaking commentators, the one on Bacon's life, the other on his philosophy. It is impossible to overstate the affectionate care and high intelligence and honesty with which Mr. Spedding has brought together and arranged the materials for an estimate of Bacon's character. In the result, in spite of the force and ingenuity of much of his pleading, I find myself most reluctantly obliged to differ from him; it seems to me to be a case where the French saying, cited by Bacon in one of his commonplace books, holds good—"Par trop se débattre, la vérité se perd."<sup>1</sup> But this does not diminish the debt of gratitude which all who are interested about Bacon must owe to Mr. Spedding. I wish also to acknowledge the assistance which I have received from Mr. Gardiner's *History of England* and Mr. Fowler's edition of the *Novum Organum*; and not least from M. de Rémusat's work on Bacon, which seems to me the most complete and the most just estimate both of Bacon's character and work which has yet appeared; though even in this clear and dispassionate survey we are reminded by some misconceptions, strange in M. de Rémusat, how what one nation takes for granted is incomprehensible to its neighbour; and what a gap there is still, even in matters of philosophy and literature, between the whole Continent and ourselves—

"Penitus toto divisos orbe Britannos."

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# **CHAPTER I.**

## **EARLY LIFE.**

The life of Francis Bacon is one which it is a pain to write or to read. It is the life of a man endowed with as rare a combination of noble gifts as ever was bestowed on a human intellect; the life of one with whom the whole purpose of living and of every day's work was to do great things to enlighten and elevate his race, to enrich it with new powers, to lay up in store for all ages to come a source of blessings which should never fail or dry up; it was the life of a man who had high thoughts of the ends and methods of law and government, and with whom the general and public good was regarded as the standard by which the use of public power was to be measured; the life of a man who had struggled hard and successfully for the material prosperity and opulence which makes work easy and gives a man room and force for carrying out his purposes. All his life long his first and never-sleeping passion was the romantic and splendid ambition after knowledge, for the conquest of nature and for the service of man; gathering up in himself the spirit and longings and efforts of all discoverers and inventors of the arts, as they are symbolised in the mythical Prometheus. He rose to the highest place and honour; and yet that place and honour were but the fringe and adornment of all that made him great. It is difficult to imagine a grander and more magnificent career; and his name ranks among the few chosen examples of human achievement. And yet it was not only an unhappy life; it was a poor life. We expect that such an overwhelming weight of glory should be borne up by a character corresponding to it in strength and nobleness. But that is not what we find. No one ever had a greater idea of what he was made for, or was fired with a greater desire to devote himself to it. He was all this. And yet being all this, seeing deep into man's worth, his capacities, his greatness, his weakness, his sins, he was not true to what he knew. He cringed to such a man as Buckingham. He sold himself to the corrupt and ignominious Government of James I. He was willing to be employed to hunt to death a friend like Essex, guilty, deeply

guilty, to the State, but to Bacon the most loving and generous of benefactors. With his eyes open he gave himself up without resistance to a system unworthy of him; he would not see what was evil in it, and chose to call its evil good; and he was its first and most signal victim.

Bacon has been judged with merciless severity. But he has also been defended by an advocate whose name alone is almost a guarantee for the justness of the cause which he takes up, and the innocency of the client for whom he argues. Mr. Spedding devoted nearly a lifetime, and all the resources of a fine intellect and an earnest conviction, to make us revere as well as admire Bacon. But it is vain. It is vain to fight against the facts of his life: his words, his letters. "Men are made up," says a keen observer, "of professions, gifts, and talents; and also of *themselves*."<sup>2</sup> With all his greatness, his splendid genius, his magnificent ideas, his enthusiasm for truth, his passion to be the benefactor of his kind; with all the charm that made him loved by good and worthy friends, amiable, courteous, patient, delightful as a companion, ready to take any trouble—there was in Bacon's "self" a deep and fatal flaw. He was a pleaser of men. There was in him that subtle fault, noted and named both by philosophy and religion in the ἄρεσκος of Aristotle, the ἀνθρωπάρεσκος of St. Paul, which is more common than it is pleasant to think, even in good people, but which if it becomes dominant in a character is ruinous to truth and power. He was one of the men—there are many of them—who are unable to release their imagination from the impression of present and immediate power, face to face with themselves. It seems as if he carried into conduct the leading rule of his philosophy of nature, *parendo vincitur*. In both worlds, moral and physical, he felt himself encompassed by vast forces, irresistible by direct opposition. Men whom he wanted to bring round to his purposes were as strange, as refractory, as obstinate, as impenetrable as the phenomena of the natural world. It was no use attacking in front, and by a direct trial of strength, people like Elizabeth or Cecil or James; he might as well think of forcing some natural power in defiance of natural law. The first word of his teaching about nature is that she must be won by observation of her tendencies and demands; the same radical disposition of temper reveals itself in his dealings with men: they, too, must be won by yielding to them, by adapting himself to their moods and ends; by spying into the drift of their humour, by subtly and pliantly falling in with it, by circuitous and

indirect processes, the fruit of vigilance and patient thought. He thought to direct, while submitting apparently to be directed. But he mistook his strength. Nature and man are different powers, and under different laws. He chose to please man, and not to follow what his soul must have told him was the better way. He wanted, in his dealings with men, that sincerity on which he insisted so strongly in his dealings with nature and knowledge. And the ruin of a great life was the consequence.

Francis Bacon was born in London on the 22d of January, 1560/61, three years before Galileo. He was born at York House, in the Strand; the house which, though it belonged to the Archbishops of York, had been lately tenanted by Lord Keepers and Lord Chancellors, in which Bacon himself afterwards lived as Lord Chancellor, and which passed after his fall into the hands of the Duke of Buckingham, who has left his mark in the Water Gate which is now seen, far from the river, in the garden of the Thames Embankment. His father was Sir Nicholas Bacon, Elizabeth's first Lord Keeper, the fragment of whose effigy in the Crypt of St. Paul's is one of the few relics of the old Cathedral before the fire. His uncle by marriage was that William Cecil who was to be Lord Burghley. His mother, the sister of Lady Cecil, was one of the daughters of Sir Antony Cook, a person deep in the confidence of the reforming party, who had been tutor of Edward VI. She was a remarkable woman, highly accomplished after the fashion of the ladies of her party, and as would become her father's daughter and the austere and laborious family to which she belonged. She was "exquisitely skilled in the Greek and Latin tongues;" she was passionately religious, according to the uncompromising religion which the exiles had brought back with them from Geneva, Strasburg, and Zurich, and which saw in Calvin's theology a solution of all the difficulties, and in his discipline a remedy for all the evils, of mankind. This means that his boyhood from the first was passed among the high places of the world—at one of the greatest crises of English history—in the very centre and focus of its agitations. He was brought up among the chiefs and leaders of the rising religion, in the houses of the greatest and most powerful persons of the State, and naturally, as their child, at times in the Court of the Queen, who joked with him, and called him "her young Lord Keeper." It means also that the religious atmosphere in which he was brought up was that of the nascent and aggressive Puritanism, which was not satisfied with the compromises of the

Elizabethan Reformation, and which saw in the moral poverty and incapacity of many of its chiefs a proof against the great traditional system of the Church which Elizabeth was loath to part with, and which, in spite of all its present and inevitable shortcomings, her political sagacity taught her to reverence and trust.

At the age of twelve he was sent to Cambridge, and put under Whitgift at Trinity. It is a question which recurs continually to readers about those times and their precocious boys, what boys were then? For whatever was the learning of the universities, these boys took their place with men and consorted with them, sharing such knowledge as men had, and performing exercises and hearing lectures according to the standard of men. Grotius at eleven was the pupil and companion of Scaliger and the learned band of Leyden; at fourteen he was part of the company which went with the ambassadors of the States-General to Henry IV.; at sixteen he was called to the bar, he published an out-of-the-way Latin writer, Martianus Capella, with a learned commentary, and he was the correspondent of De Thou. When Bacon was hardly sixteen he was admitted to the Society of "Ancients" of Gray's Inn, and he went in the household of Sir Amyas Paulet, the Queen's Ambassador, to France. He thus spent two years in France, not in Paris alone, but at Blois, Tours, and Poitiers. If this was precocious, there is no indication that it was thought precocious. It only meant that clever and promising boys were earlier associated with men in important business than is customary now. The old and the young heads began to work together sooner. Perhaps they felt that there was less time to spare. In spite of instances of longevity, life was shorter for the average of busy men, for the conditions of life were worse.

Two recollections only have been preserved of his early years. One is that, as he told his chaplain, Dr. Rawley, late in life, he had discovered, as far back as his Cambridge days, the "unfruitfulness" of Aristotle's method. It is easy to make too much of this. It is not uncommon for undergraduates to criticise their text-books; it was the fashion with clever men, as, for instance, Montaigne, to talk against Aristotle without knowing anything about him; it is not uncommon for men who have worked out a great idea to find traces of it, on precarious grounds, in their boyish thinking. Still, it is worth noting that Bacon himself believed that his fundamental quarrel with

Aristotle had begun with the first efforts of thought, and that this is the one recollection remaining of his early tendency in speculation. The other is more trustworthy, and exhibits that inventiveness which was characteristic of his mind. He tells us in the *De Augmentis* that when he was in France he occupied himself with devising an improved system of cypher-writing—a thing of daily and indispensable use for rival statesmen and rival intriguers. But the investigation, with its call on the calculating and combining faculties, would also interest him, as an example of the discovery of new powers by the human mind.

In the beginning of 1579 Bacon, at eighteen, was called home by his father's death. This was a great blow to his prospects. His father had not accomplished what he had intended for him, and Francis Bacon was left with only a younger son's "narrow portion." What was worse, he lost one whose credit would have served him in high places. He entered on life, not as he might have expected, independent and with court favour on his side, but with his very livelihood to gain—a competitor at the bottom of the ladder for patronage and countenance. This great change in his fortunes told very unfavourably on his happiness, his usefulness, and, it must be added, on his character. He accepted it, indeed, manfully, and at once threw himself into the study of the law as the profession by which he was to live. But the law, though it was the only path open to him, was not the one which suited his genius, or his object in life. To the last he worked hard and faithfully, but with doubtful reputation as to his success, and certainly against the grain. And this was not the worst. To make up for the loss of that start in life of which his father's untimely death had deprived him, he became, for almost the rest of his life, the most importunate and most untiring of suitors.

In 1579 or 1580 Bacon took up his abode at Gray's Inn, which for a long time was his home. He went through the various steps of his profession. He began, what he never discontinued, his earnest and humble appeals to his relative the great Lord Burghley, to employ him in the Queen's service, or to put him in some place of independence: through Lord Burghley's favour he seems to have been pushed on at his Inn, where, in 1586, he was a Bencher; and in 1584 he came into Parliament for Melcombe Regis. He took some small part in Parliament; but the only record of his speeches is contained in a surly note of Recorder Fleetwood, who writes as an old member might do

of a young one talking nonsense. He sat again for Liverpool in the year of the Armada (1588), and his name begins to appear in the proceedings. These early years, we know, were busy ones. In them Bacon laid the foundation of his observations and judgments on men and affairs; and in them the great purpose and work of his life was conceived and shaped. But they are more obscure years than might have been expected in the case of a man of Bacon's genius and family, and of such eager and unconcealed desire to rise and be at work. No doubt he was often pinched in his means; his health was weak, and he was delicate and fastidious in his care of it. Plunged in work, he lived very much as a recluse in his chambers, and was thought to be reserved, and what those who disliked him called arrogant. But Bacon was ambitious—ambitious, in the first place, of the Queen's notice and favour. He was versatile, brilliant, courtly, besides being his father's son; and considering how rapidly bold and brilliant men were able to push their way and take the Queen's favour by storm, it seems strange that Bacon should have remained fixedly in the shade. Something must have kept him back. Burghley was not the man to neglect a useful instrument with such good will to serve him. But all that Mr. Spedding's industry and profound interest in the subject has brought together throws but an uncertain light on Bacon's long disappointment. Was it the rooted misgiving of a man of affairs like Burghley at that passionate contempt of all existing knowledge, and that undoubting confidence in his own power to make men know, as they never had known, which Bacon was even now professing? Or was it something soft and over-obsequious in character which made the uncle, who knew well what men he wanted, disinclined to encourage and employ the nephew? Was Francis not hard enough, not narrow enough, too full of ideas, too much alive to the shakiness of current doctrines and arguments on religion and policy? Was he too open to new impressions, made by objections or rival views? Or did he show signs of wanting backbone to stand amid difficulties and threatening prospects? Did Burghley see something in him of the pliability which he could remember as the serviceable quality of his own young days—which suited those days of rapid change, but not days when change was supposed to be over, and when the qualities which were wanted were those which resist and defy it? The only thing that is clear is that Burghley, in spite of Bacon's continual applications, abstained to the last from advancing his fortunes.

Whether employed by government or not, Bacon began at this time to prepare those carefully-written papers on the public affairs of the day, of which he has left a good many. In our day they would have been pamphlets or magazine articles. In his they were circulated in manuscript, and only occasionally printed. The first of any importance is a letter of advice to the Queen, about the year 1585, on the policy to be followed with a view to keeping in check the Roman Catholic interest at home and abroad. It is calm, sagacious, and, according to the fashion of the age, slightly Machiavellian. But the first subject on which Bacon exhibited his characteristic qualities, his appreciation of facts, his balance of thought, and his power, when not personally committed, of standing aloof from the ordinary prejudices and assumptions of men round him, was the religious condition and prospects of the English Church. Bacon had been brought up in a Puritan household of the strictest sect. His mother was an earnest, severe, and intolerant Calvinist, deep in the interests and cause of her party, bitterly resenting all attempts to keep in order its pretensions. She was a masterful woman, claiming to meddle with her brother-in-law's policy, and though a most affectionate mother she was a woman of violent and ungovernable temper. Her letters to her son Antony, whom she loved passionately, but whom she suspected of keeping dangerous and papistical company, show us the imperious spirit in which she claimed to interfere with her sons; and they show also that in Francis she did not find all the deference which she looked for. Recommending Antony to frequent "the religious exercises of the sincerer sort," she warns him not to follow his brother's advice or example. Antony was advised to use prayer twice a day with his servants. "Your brother," she adds, "is too negligent therein." She is anxious about Antony's health, and warns him not to fall into his brother's ill-ordered habits: "I verily think your brother's weak stomach to digest hath been much caused and confirmed by untimely going to bed, and then musing *nescio quid* when he should sleep, and then in consequent by late rising and long lying in bed, whereby his men are made slothful and himself continueth sickly. But my sons haste not to hearken to their mother's good counsel in time to prevent." It seems clear that Francis Bacon had shown his mother that not only in the care of his health, but in his judgment on religious matters, he meant to go his own way. Mr. Spedding thinks that she must have had much influence on him; it seems more likely that he resented her interference, and that the hard and narrow arrogance which she read into

the Gospel produced in him a strong reaction. Bacon was obsequious to the tyranny of power, but he was never inclined to bow to the tyranny of opinion; and the tyranny of Puritan infallibility was the last thing to which he was likely to submit. His mother would have wished him to sit under Cartwright and Travers. The friend of his choice was the Anglican preacher, Dr. Andrewes, to whom he submitted all his works, and whom he called his "inquisitor general;" and he was proud to sign himself the pupil of Whitgift, and to write for him—the archbishop of whom Lady Bacon wrote to her son Antony, veiling the dangerous sentiment in Greek, "that he was the ruin of the Church, for he loved his own glory more than Christ's."

Certainly, in the remarkable paper on *Controversies in the Church* (1589), Bacon had ceased to feel or to speak as a Puritan. The paper is an attempt to compose the controversy by pointing out the mistakes in judgment, in temper, and in method on both sides. It is entirely unlike what a Puritan would have written: it is too moderate, too tolerant, too neutral, though like most essays of conciliation it is open to the rejoinder from both sides—certainly from the Puritan—that it begs the question by assuming the unimportance of the matters about which each contended with so much zeal. It is the confirmation, but also the complement, and in some ways the correction of Hooker's contemporary view of the quarrel which was threatening the life of the English Church, and not even Hooker could be so comprehensive and so fair. For Hooker had to defend much that was indefensible: he had to defend a great traditional system, just convulsed by a most tremendous shock—a shock and alteration, as Bacon says, "the greatest and most dangerous that can be in a State," in which old clews and habits and rules were confused and all but lost; in which a frightful amount of personal incapacity and worthlessness had, from sheer want of men, risen to the high places of the Church; and in which force and violence, sometimes of the most hateful kind, had come to be accepted as ordinary instruments in the government of souls. Hooker felt too strongly the unfairness, the folly, the intolerant aggressiveness, the malignity of his opponents—he was too much alive to the wrongs inflicted by them on his own side, and to the incredible absurdity of their arguments—to do justice to what was only too real in the charges and complaints of those opponents. But Bacon came from the very heart of the Puritan camp. He had seen the inside of Puritanism—its best as well as its worst side. He witnesses to the

humility, the conscientiousness, the labour, the learning, the hatred of sin and wrong, of many of its preachers. He had heard, and heard with sympathy, all that could be urged against the bishops' administration, and against a system of legal oppression in the name of the Church. Where religious elements were so confusedly mixed, and where each side had apparently so much to urge on behalf of its claims, he saw the deep mistake of loftily ignoring facts, and of want of patience and forbearance with those who were scandalised at abuses, while the abuses, in some cases monstrous, were tolerated and turned to profit. Towards the bishops and their policy, though his language is very respectful, for the government was implicated, he is very severe. They punish and restrain, but they do not themselves mend their ways or supply what was wanting; and theirs are "*injuriae potentiorum*"—"injuries come from them that have the upperhand." But Hooker himself did not put his finger more truly and more surely on the real mischief of the Puritan movement: on the immense outbreak in it of unreasonable party spirit and visible personal ambition—"these are the true successors of Diotrephes and not my lord bishops"—on the gradual development of the Puritan theory till it came at last to claim a supremacy as unquestionable and intolerant as that of the Papacy; on the servile affectation of the fashions of Geneva and Strasburg; on the poverty and foolishness of much of the Puritan teaching—its inability to satisfy the great questions which it raised in the soul, its unworthy dealing with Scripture—"naked examples, conceited inferences, and forced allusions, which mine into all certainty of religion"—"the word, the bread of life, they toss up and down, they break it not;" on their undervaluing of moral worth, if it did not speak in their phraseology—"as they censure virtuous men by the names of *civil* and *moral*, so do they censure men truly and godly wise, who see into the vanity of their assertions, by the name of *politiques*, saying that their wisdom is but carnal and savouring of man's brain." Bacon saw that the Puritans were aiming at a tyranny which, if they established it, would be more comprehensive, more searching, and more cruel than that of the older systems; but he thought it a remote and improbable danger, and that they might safely be tolerated for the work they did in education and preaching, "because the work of exhortation doth chiefly rest upon these men, and they have a zeal and hate of sin." But he ends by warning them lest "that be true which one of their adversaries said, *that they have but two small wants—knowledge and love.*" One complaint that he makes of them is a curious

instance of the changes of feeling, or at least of language, on moral subjects. He accuses them of "having pronounced generally, and without difference, all untruths unlawful," forgetful of the Egyptian midwives, and Rahab, and Solomon, and even of Him "who, the more to touch the hearts of the disciples with a holy dalliance, made as though he would have passed Emmaus." He is thinking of their failure to apply a principle which was characteristic of his mode of thought, that even a statement about a virtue like veracity "hath limit as all things else have;" but it is odd to find Bacon bringing against the Puritans the converse of the charge which his age, and Pascal afterwards, brought against the Jesuits. The essay, besides being a picture of the times as regards religion, is an example of what was to be Bacon's characteristic strength and weakness: his strength in lifting up a subject which had been degraded by mean and wrangling disputations, into a higher and larger light, and bringing to bear on it great principles and the results of the best human wisdom and experience, expressed in weighty and pregnant maxims; his weakness in forgetting, as, in spite of his philosophy, he so often did, that the grandest major premises need well-proved and ascertained minors, and that the enunciation of a principle is not the same thing as the application of it. Doubtless there is truth in his closing words; but each party would have made the comment that what he had to prove, and had not proved, was that by following his counsel they would "love the whole world better than a part."

"Let them not fear ... the fond calumny of *neutrality*; but let them know that is true which is said by a wise man, *that neuters in contentions are either better or worse than either side*. These things have I in all sincerity and simplicity set down touching the controversies which now trouble the Church of England; and that without all art and insinuation, and therefore not like to be grateful to either part. Notwithstanding, I trust what has been said shall find a correspondence in their minds which are not embarked in partiality, and which *love the whole letter than a part*"

Up to this time, though Bacon had showed himself capable of taking a broad and calm view of questions which it was the fashion among good men, and men who were in possession of the popular ear, to treat with narrowness and heat, there was nothing to disclose his deeper thoughts—

nothing foreshadowed the purpose which was to fill his life. He had, indeed, at the age of twenty-five, written a "youthful" philosophical essay, to which he gave the pompous title "*Temporis Partus Maximus*," "the Greatest Birth of Time." But he was thirty-one when we first find an indication of the great idea and the great projects which were to make his name famous. This indication is contained in an earnest appeal to Lord Burghley for some help which should not be illusory. Its words are distinct and far-reaching, and they are the first words from him which tell us what was in his heart. The letter has the interest to us of the first announcement of a promise which, to ordinary minds, must have appeared visionary and extravagant, but which was so splendidly fulfilled; the first distant sight of that sea of knowledge which henceforth was opened to mankind, but on which no man, as he thought, had yet entered. It contains the famous avowal—"I have taken all knowledge to be my province"—made in the confidence born of long and silent meditations and questionings, but made in a simple good faith which is as far as possible from vain boastfulness.

"MY LORD,—With as much confidence as mine own honest and faithful devotion unto your service and your honourable correspondence unto me and my poor estate can breed in a man, do I commend myself unto your Lordship. I wax now somewhat ancient: one and thirty years is a great deal of sand in the hour glass. My health, I thank God, I find confirmed; and I do not fear that action shall impair it, because I account my ordinary course of study and meditation to be more painful than most parts of action are. I ever bare a mind (in some middle place that I could discharge) to serve her Majesty, not as a man born under Sol, that loveth honour, nor under Jupiter, that loveth business (for the contemplative planet carrieth me away wholly), but as a man born under an excellent sovereign that deserveth the dedication of all men's abilities. Besides, I do not find in myself so much self-love, but that the greater parts of my thoughts are to deserve well (if I be able) of my friends, and namely of your Lordship; who, being the Atlas of this commonwealth, the honour of my house, and the second founder of my poor estate, I am tied by all duties, both of a good patriot, and of an unworthy kinsman, and of an obliged servant, to employ whatsoever I am to do you service. Again, the meanness of my estate doth somewhat move me; for though I cannot accuse myself

that I am either prodigal or slothful, yet my health is not to spend, nor my course to get. Lastly, I confess that I have as vast contemplative ends as I have moderate civil ends; for I have taken all knowledge to be my province; and if I could purge it of two sorts of rovers, whereof the one with frivolous disputations, confutations, and verbosities, the other with blind experiments and auricular traditions and impostures, hath committed so many spoils, I hope I should bring in industrious observations, grounded conclusions, and profitable inventions and discoveries: the best state of that province. This, whether it be curiosity or vain glory, or nature, or (if one take it favourably) *philanthropia*, is so fixed in my mind as it cannot be removed. And I do easily see, that place of any reasonable countenance doth bring commandment of more wits than of a man's own; which is the thing I greatly affect. And for your Lordship, perhaps you shall not find more strength and less encounter in any other. And if your Lordship shall find now, or at any time, that I do seek or affect any place whereunto any that is nearer unto your Lordship shall be concurrent, say then that I am a most dishonest man. And if your Lordship will not carry me on, I will not do as Anaxagoras did, who reduced himself with contemplation unto voluntary poverty, but this I will do—I will sell the inheritance I have, and purchase some lease of quick revenue, or some office of gain that shall be executed by deputy, and so give over all care of service, and become some sorry book-maker, or a true pioneer in that mine of truth which (he said) lay so deep. This which I have writ unto your Lordship is rather thoughts than words, being set down without all art, disguising, or reservation. Wherein I have done honour both to your Lordship's wisdom, in judging that that will be best believed of your Lordship which is truest, and to your Lordship's good nature, in retaining nothing from you. And even so I wish your Lordship all happiness, and to myself means and occasions to be added to my faithful desire to do you service. From my lodgings at Gray's Inn."

This letter to his unsympathetic and suspicious, but probably not unfriendly relative, is the key to Bacon's plan of life; which, with numberless changes of form, he followed to the end. That is, a profession, steadily, seriously, and laboriously kept to, in order to provide the means of living; and beyond that, as the ultimate and real end of his life, the pursuit, in a way

unattempted before, of all possible human knowledge, and of the methods to improve it and make it sure and fruitful. And so his life was carried out. On the one hand it was a continual and pertinacious seeking after government employment, which could give credit to his name and put money in his pocket—attempts by general behaviour, by professional services when the occasion offered, by putting his original and fertile pen at the service of the government, to win confidence, and to overcome the manifest indisposition of those in power to think that a man who cherished the chimera of universal knowledge could be a useful public servant. On the other hand, all the while, in the crises of his disappointment or triumph, the one great subject lay next his heart, filling him with fire and passion—how really to know, and to teach men to know indeed, and to use their knowledge so as to command nature; the great hope to be the reformer and restorer of knowledge in a more wonderful sense than the world had yet seen in the reformation of learning and religion, and in the spread of civilised order in the great states of the Renaissance time. To this he gave his best and deepest thoughts; for this he was for ever accumulating, and for ever rearranging and reshaping those masses of observation and inquiry and invention and mental criticism which were to come in as parts of the great design which he had seen in the visions of his imagination, and of which at last he was only able to leave noble fragments, incomplete after numberless recastings. This was not indeed the only, but it was the predominant and governing, interest of his life. Whether as solicitor for Court favour or public office; whether drudging at the work of the law or managing State prosecutions; whether writing an opportune pamphlet against Spain or Father Parsons, or inventing a "device" for his Inn or for Lord Essex to give amusement to Queen Elizabeth; whether fulfilling his duties as member of Parliament or rising step by step to the highest places in the Council Board and the State; whether in the pride of success or under the amazement of unexpected and irreparable overthrow, while it seemed as if he was only measuring his strength against the rival ambitions of the day, in the same spirit and with the same object as his competitors, the true motive of all his eagerness and all his labours was not theirs. He wanted to be powerful, and still more to be rich; but he wanted to be so, because without power and without money he could not follow what was to him the only thing worth following on earth—a real knowledge of the amazing and hitherto almost unknown world in which he had to live. Bacon, to us, at least, at this

distance, who can only judge him from partial and imperfect knowledge, often seems to fall far short of what a man should be. He was not one of the high-minded and proud searchers after knowledge and truth, like Descartes, who were content to accept a frugal independence so that their time and their thoughts might be their own. Bacon was a man of the world, and wished to live in and with the world. He threatened sometimes retirement, but never with any very serious intention. In the Court was his element, and there were his hopes. Often there seems little to distinguish him from the ordinary place-hunters, obsequious and selfish, of every age; little to distinguish him from the servile and insincere flatterers, of whom he himself complains, who crowded the antechambers of the great Queen, content to submit with smiling face and thankful words to the insolence of her waywardness and temper, in the hope, more often disappointed than not, of hitting her taste on some lucky occasion, and being rewarded for the accident by a place of gain or honour. Bacon's history, as read in his letters, is not an agreeable one; after every allowance made for the fashions of language and the necessities of a suitor, there is too much of insincere profession of disinterestedness, too much of exaggerated profession of admiration and devoted service, too much of disparagement and insinuation against others, for a man who respected himself. He submitted too much to the miserable conditions of rising which he found. But, nevertheless, it must be said that it was for no mean object, for no mere private selfishness or vanity, that he endured all this. He strove hard to be a great man and a rich man. But it was that he might have his hands free and strong and well furnished to carry forward the double task of overthrowing ignorance and building up the new and solid knowledge on which his heart was set—that immense conquest of nature on behalf of man which he believed to be possible, and of which he believed himself to have the key.

The letter to Lord Burghley did not help him much. He received the reversion of a place, the Clerkship of the Council, which did not become vacant for twenty years. But these years of service declined and place withheld were busy and useful ones. What he was most intent upon, and what occupied his deepest and most serious thought, was unknown to the world round him, and probably not very intelligible to his few intimate friends, such as his brother Antony and Dr. Andrewes. Meanwhile he placed his pen at the disposal of the authorities, and though they regarded him

more as a man of study than of practice and experience, they were glad to make use of it. His versatile genius found another employment. Besides his affluence in topics, he had the liveliest fancy and most active imagination. But that he wanted the sense of poetic fitness and melody, he might almost be supposed, with his reach and play of thought, to have been capable, as is maintained in some eccentric modern theories, of writing Shakespeare's plays. No man ever had a more imaginative power of illustration drawn from the most remote and most unlikely analogies; analogies often of the quaintest and most unexpected kind, but often also not only felicitous in application but profound and true. His powers were early called upon for some of those sportive compositions in which that age delighted on occasions of rejoicing or festival. Three of his contributions to these "devices" have been preserved—two of them composed in honour of the Queen, as "triumphs," offered by Lord Essex, one probably in 1592 and another in 1595; a third for a Gray's Inn revel in 1594. The "devices" themselves were of the common type of the time, extravagant, odd, full of awkward allegory and absurd flattery, and running to a prolixity which must make modern lovers of amusement wonder at the patience of those days; but the "discourses" furnished by Bacon are full of fine observation and brilliant thought and wit and happy illustration, which, fantastic as the general conception is, raises them far above the level of such fugitive trifles.

Among the fragmentary papers belonging to this time which have come down, not the least curious are those which throw light on his manner of working. While he was following out the great ideas which were to be the basis of his philosophy, he was as busy and as painstaking in fashioning the instruments by which they were to be expressed; and in these papers we have the records and specimens of this preparation. He was a great collector of sentences, proverbs, quotations, sayings, illustrations, anecdotes, and he seems to have read sometimes simply to gather phrases and apt words. He jots down at random any good and pointed remark which comes into his thought or his memory; at another time he groups a set of stock quotations with a special drift, bearing on some subject, such as the faults of universities or the habits of lawyers. Nothing is too minute for his notice. He brings together in great profusion mere forms, varied turns of expression, heads and tails of clauses and paragraphs, transitions,

connections; he notes down fashions of compliment, of excuse or repartee, even morning and evening salutations; he records neat and convenient opening and concluding sentences, ways of speaking more adapted than others to give a special colour or direction to what the speaker or writer has to say—all that hook-and-eye work which seems so trivial and passes so unnoticed as a matter of course, and which yet is often hard to reach, and which makes all the difference between tameness and liveliness, between clearness and obscurity—all the difference, not merely to the ease and naturalness, but often to the logical force of speech. These collections it was his way to sift and transcribe again and again, adding as well as omitting. From one of these, belonging to 1594 and the following years, the *Promus of Formularies and Elegancies*, Mr. Spedding has given curious extracts; and the whole collection has been recently edited by Mrs. Henry Pott. Thus it was that he prepared himself for what, as we read it, or as his audience heard it, seems the suggestion or recollection of the moment. Bacon was always much more careful of the value or aptness of a thought than of its appearing new and original. Of all great writers he least minds repeating himself, perhaps in the very same words; so that a simile, an illustration, a quotation pleases him, he returns to it—he is never tired of it; it obviously gives him satisfaction to introduce it again and again. These collections of odds and ends illustrate another point in his literary habits. His was a mind keenly sensitive to all analogies and affinities, impatient of a strict and rigid logical groove, but spreading as it were tentacles on all sides in quest of chance prey, and quickened into a whole system of imagination by the electric quiver imparted by a single word, at once the key and symbol of the thinking it had led to. And so he puts down word or phrase, so enigmatical to us who see it by itself, which to him would wake up a whole train of ideas, as he remembered the occasion of it—how at a certain time and place this word set the whole moving, seemed to breathe new life and shed new light, and has remained the token, meaningless in itself, which reminds him of so much.

When we come to read his letters, his speeches, his works, we come continually on the results and proofs of this early labour. Some of the most memorable and familiar passages of his writings are to be traced from the storehouses which he filled in these years of preparation. An example of this correspondence between the note-book and the composition is to be

seen in a paper belonging to this period, written apparently to form part of a masque, or as he himself calls it, a "Conference of Pleasure," and entitled the *Praise of Knowledge*. It is interesting because it is the first draught which we have from him of some of the leading ideas and most characteristic language about the defects and the improvement of knowledge, which were afterwards embodied in the *Advancement* and the *Novum Organum*. The whole spirit and aim of his great reform is summed up in the following fine passage:

"Facility to believe, impatience to doubt, temerity to assever, glory to know, doubt to contradict, end to gain, sloth to search, seeking things in words, resting in a part of nature—these and the like have been the things which have forbidden the happy match between the mind of man and the nature of things, and in place thereof have married it to vain notions and blind experiments.... Therefore, no doubt, the *sovereignty of man* lieth hid in knowledge; wherein many things are reserved which kings with their treasures cannot buy nor with their force command; their spials and intelligencers can give no news of them; their seamen and discoverers cannot sail where they grow. Now we govern nature in opinions, but we are thrall unto her in necessity; but if we could be led by her in invention, we should command her in action."

To the same occasion as the discourse on the *Praise of Knowledge* belongs, also, one in *Praise of the Queen*. As one is an early specimen of his manner of writing on philosophy, so this is a specimen of what was equally characteristic of him—his political and historical writing. It is, in form, necessarily a panegyric, as high-flown and adulatory as such performances in those days were bound to be. But it is not only flattery. It fixes with true discrimination on the points in Elizabeth's character and reign which were really subjects of admiration and homage. Thus of her unquailing spirit at the time of the Spanish invasion—

"Lastly, see a Queen, that when her realm was to have been invaded by an army, the preparation whereof was like the travail of an elephant, the provisions infinite, the setting forth whereof was the terror and wonder of Europe; it was not seen that her cheer, her fashion, her

ordinary manner was anything altered; not a cloud of that storm did appear in that countenance wherein peace doth ever shine; but with excellent assurance and advised security she inspired her council, animated her nobility, redoubled the courage of her people; still having this noble apprehension, not only that she would communicate her fortune with them, but that it was she that would protect them, and not they her; which she testified by no less demonstration than her presence in camp. Therefore that magnanimity that neither feareth greatness of alteration, nor the vows of conspirators, nor the power of the enemy, is more than heroical."

These papers, though he put his best workmanship into them, as he invariably did with whatever he touched, were of an ornamental kind. But he did more serious work. In the year 1592 a pamphlet had been published on the Continent in Latin and English, *Responsio ad Edictum Reginae Angliæ*, with reference to the severe legislation which followed on the Armada, making such charges against the Queen and the Government as it was natural for the Roman Catholic party to make, and making them with the utmost virulence and unscrupulousness. It was supposed to be written by the ablest of the Roman pamphleteers, Father Parsons. The Government felt it to be a dangerous indictment, and Bacon was chosen to write the answer to it. He had additional interest in the matter, for the pamphlet made a special and bitter attack on Burghley, as the person mainly responsible for the Queen's policy. Bacon's reply is long and elaborate, taking up every charge, and reviewing from his own point of view the whole course of the struggle between the Queen and the supporters of the Roman Catholic interest abroad and at home. It cannot be considered an impartial review; besides that it was written to order, no man in England could then write impartially in that quarrel; but it is not more one-sided and uncandid than the pamphlet which it answers, and Bacon is able to recriminate with effect, and to show gross credulity and looseness of assertion on the part of the Roman Catholic advocate. But religion had too much to do with the politics of both sides for either to be able to come into the dispute with clean hands: the Roman Catholics meant much more than toleration, and the sanguinary punishments of the English law against priests and Jesuits were edged by something even keener than the fear of treason. But the paper contains some large surveys of public affairs, which probably no one at that time could

write but Bacon. Bacon never liked to waste anything good which he had written; and much of what he had written in the panegyric in *Praise of the Queen* is made use of again, and transferred with little change to the pages of the *Observations on a Libel*.

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## CHAPTER II.

### BACON AND ELIZABETH.

The last decade of the century, and almost of Elizabeth's reign (1590-1600), was an eventful one to Bacon's fortunes. In it the vision of his great design disclosed itself more and more to his imagination and hopes, and with more and more irresistible fascination. In it he made his first literary venture, the first edition of his *Essays* (1597), ten in number, the first-fruits of his early and ever watchful observation of men and affairs. These years, too, saw his first steps in public life, the first efforts to bring him into importance, the first great trials and tests of his character. They saw the beginning and they saw the end of his relations with the only friend who, at that time, recognised his genius and his purposes, certainly the only friend who ever pushed his claims; they saw the growth of a friendship which was to have so tragical a close, and they saw the beginnings and causes of a bitter personal rivalry which was to last through life, and which was to be a potent element hereafter in Bacon's ruin. The friend was the Earl of Essex. The competitor was the ablest, and also the most truculent and unscrupulous of English lawyers, Edward Coke.

While Bacon, in the shade, had been laying the foundations of his philosophy of nature, and vainly suing for legal or political employment, another man had been steadily rising in the Queen's favour and carrying all before him at Court—Robert Devereux, Lord Essex; and with Essex Bacon had formed an acquaintance which had ripened into an intimate and affectionate friendship. We commonly think of Essex as a vain and insolent favourite, who did ill the greatest work given him to do—the reduction of Ireland; who did it ill from some unexplained reason of spite and mischief; and who, when called to account for it, broke out into senseless and idle rebellion. This was the end. But he was not always thus. He began life with great gifts and noble ends; he was a serious, modest, and large-minded student both of books and things, and he turned his studies to full account.

He had imagination and love of enterprise, which gave him an insight into Bacon's ideas such as none of Bacon's contemporaries had. He was a man of simple and earnest religion; he sympathized most with the Puritans, because they were serious and because they were hardly used. Those who most condemn him acknowledge his nobleness and generosity of nature. Bacon in after days, when all was over between them, spoke of him as a man always *patientissimus veri*; "the more plainly and frankly you shall deal with my lord," he writes elsewhere, "not only in disclosing particulars, but in giving him *caveats* and admonishing him of any error which in this action he may commit (such is his lordship's nature), the better he will take it." "He must have seemed," says Mr. Spedding, a little too grandly, "in the eyes of Bacon like the hope of the world." The two men, certainly, became warmly attached. Their friendship came to be one of the closest kind, full of mutual services, and of genuine affection on both sides. It was not the relation of a great patron and useful dependant; it was, what might be expected in the two men, that of affectionate equality. Each man was equally capable of seeing what the other was, and saw it. What Essex's feelings were towards Bacon the results showed. Bacon, in after years, repeatedly claimed to have devoted his whole time and labour to Essex's service. Holding him, he says, to be "the fittest instrument to do good to the State, I applied myself to him in a manner which I think rarely happeneth among men; neglecting the Queen's service, mine own fortune, and, in a sort, my vocation, I did nothing but advise and ruminate with myself ... anything that might concern his lordship's honour, fortune, or service." The claim is far too wide. The "Queen's service" had hardly as yet come much in Bacon's way, and he never neglected it when it did come, nor his own fortune or vocation; his letters remain to attest his care in these respects. But no doubt Bacon was then as ready to be of use to Essex, the one man who seemed to understand and value him, as Essex was desirous to be of use to Bacon.

And it seemed as if Essex would have the ability as well as the wish. Essex was, without exception, the most brilliant man who ever appeared at Elizabeth's Court, and it seemed as if he were going to be the most powerful. Leicester was dead. Burghley was growing old, and indisposed for the adventures and levity which, with all her grand power of ruling, Elizabeth loved. She needed a favourite, and Essex was unfortunately

marked out for what she wanted. He had Leicester's fascination, without his mean and cruel selfishness. He was as generous, as gallant, as quick to descry all great things in art and life, as Philip Sidney, with more vigour and fitness for active life than Sidney. He had not Raleigh's sad, dark depths of thought, but he had a daring courage equal to Raleigh's, without Raleigh's cynical contempt for mercy and honour. He had every personal advantage requisite for a time when intellect, and ready wit, and high-tempered valour, and personal beauty, and skill in affairs, with equal skill in amusements, were expected to go together in the accomplished courtier. And Essex was a man not merely to be courted and admired, to shine and dazzle, but to be loved. Elizabeth, with her strange and perverse emotional constitution, loved him, if she ever loved any one. Every one who served him loved him; and he was, as much as any one could be in those days, a popular favourite. Under better fortune he might have risen to a great height of character; in Elizabeth's Court he was fated to be ruined.

For in that Court all the qualities in him which needed control received daily stimulus, and his ardour and high-aiming temper turned into impatience and restless irritability. He had a mistress who was at one time in the humour to be treated as a tender woman, at another as an outrageous flirt, at another as the haughtiest and most imperious of queens; her mood varied, no one could tell how, and it was most dangerous to mistake it. It was part of her pleasure to find in her favourite a spirit as high, a humour as contradictory and determined, as her own; it was the charming contrast to the obsequiousness or the prudence of the rest; but no one could be sure at what unlooked-for moment, and how fiercely, she might resent in earnest a display of what she had herself encouraged. Essex was ruined for all real greatness by having to suit himself to this bewildering and most unwholesome and degrading waywardness. She taught him to think himself irresistible in opinion and in claims; she amused herself in teaching him how completely he was mistaken. Alternately spoiled and crossed, he learned to be exacting, unreasonable, absurd in his pettish resentments or brooding sullenness. He learned to think that she must be dealt with by the same methods which she herself employed. The effect was not produced in a moment; it was the result of a courtiership of sixteen years. But it ended in corrupting a noble nature. Essex came to believe that she who cowed others must be frightened herself; that the stinging injustice which led a

proud man to expect, only to see how he would behave when refused, deserved to be brought to reason by a counter-buffet as rough as her own insolent caprice. He drifted into discontent, into disaffection, into neglect of duty, into questionable schemings for the future of a reign that must shortly end, into criminal methods of guarding himself, of humbling his rivals and regaining influence. A "fatal impatience," as Bacon calls it, gave his rivals an advantage which, perhaps in self-defence, they could not fail to take; and that career, so brilliant, so full of promise of good, ended in misery, in dishonour, in remorse, on the scaffold of the Tower.

With this attractive and powerful person Bacon's fortunes, in the last years of the century, became more and more knit up. Bacon was now past thirty, Essex a few years younger. In spite of Bacon's apparent advantage and interest at Court, in spite of abilities, which, though his genius was not yet known, his contemporaries clearly recognised, he was still a struggling and unsuccessful man: ambitious to rise, for no unworthy reasons, but needy, in weak health, with careless and expensive habits, and embarrassed with debt. He had hoped to rise by the favour of the Queen and for the sake of his father. For some ill-explained reason he was to the last disappointed. Though she used him "for matters of state and revenue," she either did not like him, or did not see in him the servant she wanted to advance. He went on to the last pressing his uncle, Lord Burghley. He applied in the humblest terms, he made himself useful with his pen, he got his mother to write for him; but Lord Burghley, probably because he thought his nephew more of a man of letters than a sound lawyer and practical public servant, did not care to bring him forward. From his cousin, Robert Cecil, Bacon received polite words and friendly assurances. Cecil may have undervalued him, or have been jealous of him, or suspected him as a friend of Essex; he certainly gave Bacon good reason to think that his words meant nothing. Except Essex, and perhaps his brother Antony—the most affectionate and devoted of brothers—no one had yet recognised all that Bacon was. Meanwhile time was passing. The vastness, the difficulties, the attractions of that conquest of all knowledge which he dreamed of, were becoming greater every day to his thoughts. The law, without which he could not live, took up time and brought in little. Attendance on the Court was expensive, yet indispensable, if he wished for place. His mother was never very friendly, and thought him absurd and extravagant. Debts increased and creditors grumbled. The

outlook was discouraging, when his friendship with Essex opened to him a more hopeful prospect.

In the year 1593 the Attorney-General's place was vacant, and Essex, who in that year became a Privy Councillor, determined that Bacon should be Attorney-General. Bacon's reputation as a lawyer was overshadowed by his philosophical and literary pursuits. He was thought young for the office, and he had not yet served in any subordinate place. And there was another man, who was supposed to carry all English law in his head, full of rude force and endless precedents, hard of heart and voluble of tongue, who also wanted it. An Attorney-General was one who would bring all the resources and hidden subtleties of English law to the service of the Crown, and use them with thorough-going and unflinching resolution against those whom the Crown accused of treason, sedition, or invasion of the prerogative. It is no wonder that the Cecils, and the Queen herself, thought Coke likely to be a more useful public servant than Bacon: it is certain what Coke himself thought about it, and what his estimate was of the man whom Essex was pushing against him. But Essex did not take up his friend's cause in the lukewarm fashion in which Burghley had patronised his nephew. There was nothing that Essex pursued with greater pertinacity. He importuned the Queen. He risked without scruple offending her. She apparently long shrank from directly refusing his request. The Cecils were for Coke—the "*Huddler*" as Bacon calls him, in a letter to Essex; but the appointment was delayed. All through 1593, and until April, 1594, the struggle went on.

When Robert Cecil suggested that Essex should be content with the Solicitor's place for Bacon, "praying him to be well advised, for if his Lordship had spoken of that it might have been of easier digestion to the Queen," he turned round on Cecil—

"Digest me no digesting," said the Earl; "for the Attorneyship is that I must have for Francis Bacon; and in that I will spend my uttermost credit, friendship, and authority against whomsoever, and that whosoever went about to procure it to others, that it should cost both the mediators and the suitors the setting on before they came by it. And this be you assured of, Sir Robert," quoth the Earl, "for now do I fully declare myself; and for your own part, Sir Robert, I do think much and

strange both of my Lord your father and you, that can have the mind to seek the preferment of a stranger before so near a kinsman; namely, considering if you weigh in a balance his parts and sufficiency in any respect with those of his competitor, excepting only four poor years of admittance, which Francis Bacon hath more than recompensed with the priority of his reading; in all other respects you shall find no comparison between them."

But the Queen's disgust at some very slight show of independence on Bacon's part in Parliament, unforgiven in spite of repeated apologies, together with the influence of the Cecils and the pressure of so formidable and so useful a man as Coke, turned the scale against Essex. In April, 1594, Coke was made Attorney. Coke did not forget the pretender to law, as he would think him, who had dared so long to dispute his claims; and Bacon was deeply wounded. "No man," he thought, "had ever received a more exquisite disgrace," and he spoke of retiring to Cambridge "to spend the rest of his life in his studies and contemplations." But Essex was not discouraged. He next pressed eagerly for the Solicitorship. Again, after much waiting, he was foiled. An inferior man was put over Bacon's head. Bacon found that Essex, who could do most things, for some reason could not do this. He himself, too, had pressed his suit with the greatest importunity on the Queen, on Burghley, on Cecil, on every one who could help him; he reminded the Queen how many years ago it was since he first kissed her hand in her service, and ever since had used his wits to please; but it was all in vain. For once he lost patience. He was angry with Essex; the Queen's anger with Essex had, he thought, recoiled on his friend. He was angry with the Queen; she held his long waiting cheap; she played with him and amused herself with delay; he would go abroad, and he "knew her Majesty's nature, that she neither careth though the whole surname of the Bacons travelled, nor of the Cecils neither." He was very angry with Robert Cecil; affecting not to believe them, he tells him stories he has heard of his corrupt and underhand dealing. He writes almost a farewell letter of ceremonious but ambiguous thanks to Lord Burghley, hoping that he would impute any offence that Bacon might have given to the "complexion of a suitor, and a tired sea-sick suitor," and speaking despairingly of his future success in the law. The humiliations of what a suitor has to go through torment him: "It is my luck," he writes to Cecil, "still to be akin to such

things as I neither like in nature nor would willingly meet with in my course, but yet cannot avoid without show of base timorousness or else of unkind or suspicious strangeness." And to his friend Fulke Greville he thus unburdens himself:

"SIR,—I understand of your pains to have visited me, for which I thank you. My matter is an endless question. I assure you I had said *Requiesce anima mea*; but I now am otherwise put to my psalter; *Nolite confidere*. I dare go no further. Her Majesty had by set speech more than once assured me of her intention to call me to her service, which I could not understand but of the place I had been named to. And now whether *invidus homo hoc fecit*; or whether my matter must be an appendix to my Lord of Essex suit; or whether her Majesty, pretending to prove my ability, meaneth but to take advantage of some errors which, like enough, at one time or other I may commit; or what is it? but her Majesty is not ready to despatch it. And what though the Master of the Rolls, and my Lord of Essex, and yourself, and others, think my case without doubt, yet in the meantime I have a hard condition, to stand so that whatsoever service I do to her Majesty it shall be thought to be but *servitium viscatum*, lime-twigs and fetches to place myself; and so I shall have envy, not thanks. This is a course to quench all good spirits, and to corrupt every man's nature, which will, I fear, much hurt her Majesty's service in the end. I have been like a piece of stuff bespoke in the shop; and if her Majesty will not take me, it may be the selling by parcels will be more gainful. For to be, as I told you, like a child following a bird, which when he is nearest flieth away and lighteth a little before, and then the child after it again, and so *in infinitum*, I am weary of it; as also of wearying my good friends, of whom, nevertheless, I hope in one course or other gratefully to deserve. And so, not forgetting your business, I leave to trouble you with this idle letter; being but *justa et moderata querimonia*; for indeed I do confess, *primus amor* will not easily be cast off. And thus again I commend me to you."

After one more effort the chase was given up, at least for the moment; for it was soon resumed. But just now Bacon felt that all the world was against him. He would retire "out of the sunshine into the shade." One friend only

encouraged him. He did more. He helped him when Bacon most wanted help, in his straitened and embarrassed "estate." Essex, when he could do nothing more, gave Bacon an estate worth at least £1800. Bacon's resolution is recorded in the following letter:

"IT MAY PLEASE YOUR GOOD LORDSHIP,—I pray God her Majesty's weighing be not like the weight of a balance, *gravia deorsum levia sursum*. But I am as far from being altered in devotion towards her, as I am from distrust that she will be altered in opinion towards me, when she knoweth me better. For myself, I have lost some opinion, some time, and some means; this is my account; but then for opinion, it is a blast that goeth and cometh; for time, it is true it goeth and cometh not; but yet I have learned that it may be redeemed. For means, I value that most; and the rather, *because I am purposed not to follow the practice of the law (if her Majesty command me in any particular, I shall be ready to do her willing service)*; and my reason is only, *because it drinketh too much time, which I have dedicated to better purposes*. But even for that point of estate and means, I partly lean to Thales' opinion, That a philosopher may be rich if he will. Thus your Lordship seeth how I comfort myself; to the increase whereof I would fain please myself to believe that to be true which my Lord Treasurer writeth; which is, that it is more than a philosopher morally can digest. But without any such high conceit, I esteem it like the pulling out of an aching tooth, which, I remember, when I was a child, and had little philosophy, I was glad of when it was done. For your Lordship, I do think myself more beholding to you than to any man. And I say, I reckon myself as a *common* (not popular but *common*); and as much as is lawful to be enclosed of a common, so much your Lordship shall be sure to have.—Your Lordship's to obey your honourable commands, more settled than ever."

It may be that, as Bacon afterwards maintained, the closing sentences of this letter implied a significant reserve of his devotion. But during the brilliant and stormy years of Essex's career which followed, Bacon's relations to him continued unaltered. Essex pressed Bacon's claims whenever a chance offered. He did his best to get Bacon a rich wife—the young widow of Sir Christopher Hatton—but in vain. Instead of Bacon she

accepted Coke, and became famous afterwards in the great family quarrel, in which Coke and Bacon again found themselves face to face, and which nearly ruined Bacon before the time. Bacon worked for Essex when he was wanted, and gave the advice which a shrewd and cautious friend would give to a man who, by his success and increasing pride and self-confidence, was running into serious dangers, arming against himself deadly foes, and exposing himself to the chances of fortune. Bacon was nervous about Essex's capacity for war, a capacity which perhaps was not proved, even by the most brilliant exploit of the time, the capture of Cadiz, in which Essex foreshadowed the heroic but well-calculated audacities of Nelson and Cochrane, and showed himself as little able as they to bear the intoxication of success, and to work in concert with envious and unfriendly associates. At the end of the year 1596, the year in which Essex had won such reputation at Cadiz, Bacon wrote him a letter of advice and remonstrance. It is a lively picture of the defects and dangers of Essex's behaviour as the Queen's favourite; and it is a most characteristic and worldly-wise summary of the ways which Bacon would have him take, to cure the one and escape the other. Bacon had, as he says, "good reason to think that the Earl's fortune comprehended his own." And the letter may perhaps be taken as an indirect warning to Essex that Bacon must, at any rate, take care of his own fortune, if the Earl persisted in dangerous courses. Bacon shows how he is to remove the impressions, strong in the Queen's mind, of Essex's defects; how he is, by due submissions and stratagems, to catch her humour—

"But whether I counsel you the best, or for the best, duty bindeth me to offer to you my wishes. I said to your Lordship last time, *Martha, Martha, attendis ad plurima, unum sufficit*; win the Queen: if this be not the beginning, of any other course I see no end."

Bacon gives a series of minute directions how Essex is to disarm the Queen's suspicions, and to neutralize the advantage which his rivals take of them; how he is to remove "the opinion of his nature being *opiniastre* and not rulable;" how, avoiding the faults of Leicester and Hatton, he is, as far as he can, to "allege them for authors and patterns." Especially, he must give up that show of soldier-like distinction, which the Queen so disliked, and take some quiet post at Court. He must not alarm the Queen by seeking

popularity; he must take care of his estate; he must get rid of some of his officers; and he must not be disquieted by other favourites.

Bacon wished, as he said afterwards, to see him "with a white staff in his hand, as my Lord of Leicester had," an honour and ornament to the Court in the eyes of the people and foreign ambassadors. But Essex was not fit for the part which Bacon urged upon him, that of an obsequious and vigilant observer of the Queen's moods and humours. As time went on, things became more and more difficult between him and his strange mistress; and there were never wanting men who, like Cecil and Raleigh, for good and bad reasons, feared and hated Essex, and who had the craft and the skill to make the most of his inexcusable errors. At last he allowed himself, from ambition, from the spirit of contradiction, from the blind passion for doing what he thought would show defiance to his enemies, to be tempted into the Irish campaign of 1599. Bacon at a later time claimed credit for having foreseen and foretold its issue. "I did as plainly see his overthrow, chained as it were by destiny to that journey, as it is possible for any man to ground a judgment on future contingents." He warned Essex, so he thought in after years, of the difficulty of the work; he warned him that he would leave the Queen in the hands of his enemies: "It would be ill for her, ill for him, ill for the State." "I am sure," he adds, "I never in anything in my life dealt with him in like earnestness by speech, by writing, and by all the means I could devise." But Bacon's memory was mistaken. We have his letters. When Essex went to Ireland, Bacon wrote only in the language of sanguine hope—so little did he see "overthrow chained by destiny to that journey," that "some good spirit led his pen to presage to his Lordship success;" he saw in the enterprise a great occasion of honour to his friend; he gave prudent counsels, but he looked forward confidently to Essex being as "fatal a captain to that war, as Africanus was to the war of Carthage." Indeed, however anxious he may have been, he could not have foreseen Essex's unaccountable and to this day unintelligible failure. But failure was the end, from whatever cause; failure, disgraceful and complete. Then followed wild and guilty but abortive projects for retrieving his failure, by using his power in Ireland to make himself formidable to his enemies at Court, and even to the Queen herself. He intrigued with Tyrone; he intrigued with James of Scotland; he plunged into a whirl of angry and baseless projects, which came to nothing the moment they were discussed. How empty and idle they

were was shown by his return against orders to tell his own story at Nonsuch, and by thus placing himself alone and undeniably in the wrong, in the power of the hostile Council. Of course it was not to be thought of that Cecil should not use his advantage in the game. It was too early, irritated though the Queen was, to strike the final blow. But it is impossible not to see, looking back over the miserable history, that Essex was treated in a way which was certain, sooner or later, to make him, being what he was, plunge into a fatal and irretrievable mistake. He was treated as a cat treats a mouse; he was worried, confined, disgraced, publicly reprimanded, brought just within verge of the charge of treason, but not quite, just enough to discredit and alarm him, but to leave him still a certain amount of play. He was made to see that the Queen's favour was not quite hopeless; but that nothing but the most absolute and unreserved humiliation could recover it. It was plain to any one who knew Essex that this treatment would drive Essex to madness. "These same gradations of yours"—so Bacon represents himself expostulating with the Queen on her caprices—"are fitter to corrupt than to correct any mind of greatness." They made Essex desperate; he became frightened for his life, and he had reason to be so, though not in the way which he feared. At length came the stupid and ridiculous outbreak of the 8th of February, 1600/1601, a plot to seize the palace and raise the city against the ministers, by the help of a few gentlemen armed only with their rapiers. As Bacon himself told the Queen, "if some base and cruel-minded persons had entered into such an action, it might have caused much blow and combustion; but it appeared well that they were such as knew not how to play the malefactors!" But it was sufficient to bring Essex within the doom of treason.

Essex knew well what the stake was. He lost it, and deserved to lose it, little as his enemies deserved to win it; for they, too, were doing what would have cost them their heads if Elizabeth had known it—corresponding, as Essex was accused of doing, with Scotland about the succession, and possibly with Spain. But they were playing cautiously and craftily; he with bungling passion. He had been so long accustomed to power and place, that he could not endure that rivals should keep him out of it. They were content to have their own way, while affecting to be the humblest of servants; he would be nothing less than a Mayor of the Palace. He was guilty of a great public crime, as every man is who appeals to arms for anything short of the

most sacred cause. He was bringing into England, which had settled down into peaceable ways, an imitation of the violent methods of France and the Guises. But the crime as well as the penalty belonged to the age, and crimes legally said to be against the State mean morally very different things, according to the state of society and opinion. It is an unfairness verging on the ridiculous, when the ground is elaborately laid for keeping up the impression that Essex was preparing a real treason against the Queen like that of Norfolk. It was a treason of the same sort and order as that for which Northumberland sent Somerset to the block: the treason of being an unsuccessful rival.

Meanwhile Bacon had been getting gradually into the unofficial employ of the Government. He had become one of the "Learned Counsel"—lawyers with subordinate and intermittent work, used when wanted, but without patent or salary, and not ranking with the regular law officers. The Government had found him useful in affairs of the revenue, in framing interrogatories for prisoners in the Tower, in drawing up reports of plots against the Queen. He did not in this way earn enough to support himself; but he had thus come to have some degree of access to the Queen, which he represents as being familiar and confidential, though he still perceived, as he says himself, that she did not like him. At the first news of Essex's return to England, Bacon greeted him—

"MY LORD,—Conceiving that your Lordship came now up in the person of a good servant to see your sovereign mistress, which kind of compliments are many times *instar magnorum meritorum*, and therefore it would be hard for me to find you, I have committed to this poor paper the humble salutations of him *that is more yours than any man's, and more yours than any man*. To these salutations I add a due and joyful gratulation, confessing that your Lordship, in your last conference with me before your journey, spake not in vain, God making it good, That you trusted we should say *Quis putasset!* Which as it is found true in a happy sense, so I wish you do not find another *Quis putasset* in the manner of taking this so great a service. But I hope it is, as he said, *Nubecula est, cito transibit*, and that your Lordship's wisdom and obsequious circumspection and patience will

turn all to the best. So referring all to some time that I may attend you, I commit you to God's best preservation."

But when Essex's conduct in Ireland had to be dealt with, Bacon's services were called for; and from this time his relations towards Essex were altered. Every one, no one better than the Queen herself, knew all that he owed to Essex. It is strangely illustrative of the time, that especially as Bacon held so subordinate a position, he should have been required, and should have been trusted, to act against his only and most generous benefactor. It is strange, too, that however great his loyalty to the Queen, however much and sincerely he might condemn his friend's conduct, he should think it possible to accept the task. He says that he made some remonstrance; and he says, no doubt truly, that during the first stage of the business he used the ambiguous position in which he was placed to soften Essex's inevitable punishment, and to bring about a reconciliation between him and the Queen. But he was required, as the Queen's lawyer, to set forth in public Essex's offences; and he admits that he did so "not over tenderly." Yet all this, even if we have misgivings about it, is intelligible. If he had declined, he could not, perhaps, have done the service which he assures us that he tried to do for Essex; and it is certain that he would have had to reckon with the terrible lady who in her old age still ruled England from the throne of Henry VIII., and who had certainly no great love for Bacon himself. She had already shown him in a much smaller matter what was the forfeit to be paid for any resistance to her will. All the hopes of his life must perish; all the grudging and suspicious favours which he had won with such unremitting toil and patient waiting would be sacrificed, and he would henceforth live under the wrath of those who never forgave. And whatever he did for himself, he believed that he was serving Essex. His scheming imagination and his indefatigable pen were at work. He tried strange indirect methods; he invented a correspondence between his brother and Essex, which was to fall into the Queen's hands in order to soften her wrath and show her Essex's most secret feelings. When the Queen proposed to dine with him at his lodge in Twickenham Park, "though I profess not to be a poet," he "prepared a sonnet tending and alluding to draw on her Majesty's reconcilment to my Lord." It was an awkward thing for one who had been so intimate with Essex to be so deep in the counsels of those who hated him. He complains that many people thought him ungrateful and

disloyal to his friend, and that stories circulated to his disadvantage, as if he were poisoning the Queen's ear against Essex. But he might argue fairly enough that, wilful and wrong-headed as Essex had been, it was the best that he could now do for him; and as long as it was only a question of Essex's disgrace and enforced absence from Court, Bacon could not be bound to give up the prospects of his life—indeed, his public duty as a subordinate servant of government—on account of his friend's inexcusable and dangerous follies. Essex did not see it so, and in the subjoined correspondence had the advantage; but Bacon's position, though a higher one might be imagined, where men had been such friends as these two men had been, is quite a defensible one:

"MY LORD,—No man can better expound my doings than your Lordship, which maketh me need to say the less. Only I humbly pray you to believe that I aspire to the conscience and commendation first of *bonus civis*, which with us is a good and true servant to the Queen, and next of *bonus vir*, that is an honest man. I desire your Lordship also to think that though I confess I love some things much better than I love your Lordship—as the Queen's service, her quiet and contentment, her honour, her favour, the good of my country, and the like—yet I love few persons better than yourself, both for gratitude's sake and for your own virtues, which cannot hurt but by accident or abuse. Of which my good affection I was ever ready and am ready to yield testimony by any good offices, but with such reservations as yourself cannot but allow; for as I was ever sorry that your Lordship should fly with waxen wings, doubting Icarus's fortune, so for the growing up of your own feathers, specially ostrich's, or any other save of a bird of prey, no man shall be more glad. And this is the axletree whereupon I have turned and shall turn, which to signify to you, though I think you are of yourself persuaded as much, is the cause of my writing; and so I commend your Lordship to God's goodness. From Gray's Inn, this 20th day of July, 1600.

"Your Lordship's most humbly,  
"FR. BACON."

To this letter Essex returned an answer of dignified reserve, such as Bacon might himself have dictated—

"MR. BACON,—I can neither expound nor censure your late actions, being ignorant of all of them, save one, and having directed my sight inward only, to examine myself. You do pray me to believe that you only aspire to the conscience and commendation of *bonus civis* and *bonus vir*; and I do faithfully assure you, that while that is your ambition (though your course be active and mine contemplative), yet we shall both *convenire in codem tertio* and *convenire inter nosipsos*. Your profession of affection and offer of good offices are welcome to me. For answer to them I will say but this, that you have believed I have been kind to you, and you may believe that I cannot be other, either upon humour or my own election. I am a stranger to all poetical conceits, or else I should say somewhat of your poetical example. But this I must say, that I never flew with other wings than desire to merit and confidence in my Sovereign's favour; and when one of these wings failed me I would light nowhere but at my Sovereign's feet, though she suffered me to be bruised with my fall. And till her Majesty, that knows I was never bird of prey, finds it to agree with her will and her service that my wings should be impeded again, I have committed myself to the mire. No power but my God's and my Sovereign's can alter this resolution of

"Your retired friend,  
"ESSEX."

But after Essex's mad attempt in the city a new state of things arose. The inevitable result was a trial for high treason, a trial of which no one could doubt the purpose and end. The examination of accomplices revealed speeches, proposals, projects, not very intelligible to us in the still imperfectly understood game of intrigue that was going on among all parties at the end of Elizabeth's reign, but quite enough to place Essex at the mercy of the Government and the offended Queen. "The new information," says Mr. Spedding, "had been immediately communicated to Coke and Bacon." Coke, as Attorney-General, of course conducted the prosecution; and the next prominent person on the side of the Crown was not the

Solicitor, or any other regular law officer, but Bacon, though holding the very subordinate place of one of the "Learned Counsel."

It does not appear that he thought it strange, that he showed any pain or reluctance, that he sought to be excused. He took it as a matter of course. The part assigned to Bacon in the prosecution was as important as that of Coke; and he played it more skilfully and effectively. Trials in those days were confused affairs, often passing into a mere wrangle between the judges, lawyers, and lookers-on, and the prisoner at the bar. It was so in this case. Coke is said to have blundered in his way of presenting the evidence, and to have been led away from the point into an altercation with Essex. Probably it really did not much matter; but the trial was getting out of its course and inclining in favour of the prisoner, till Bacon—Mr. Spedding thinks, out of his regular turn—stepped forward and retrieved matters. This is Mr. Spedding's account of what Bacon said and did:

"By this time the argument had drifted so far away from the point that it must have been difficult for a listener to remember what it was that the prisoners were charged with, or how much of the charge had been proved. And Coke, who was all this time the sole speaker on behalf of the Crown, was still following each fresh topic that rose before him, without the sign of an intention or the intimation of a wish to return to the main question and reform the broken ranks of his evidence. Luckily he seems to have been now at a loss what point to take next, and the pause gave Bacon an opportunity of rising. It can hardly have been in pursuance of previous arrangements; for though it was customary in those days to distribute the evidence into parts and to assign several parts to several counsel, there had been no appearance as yet of any part being concluded. It is probable that the course of the trial had upset previous arrangements and confused the parts. At any rate so it was, however it came to pass, that when Cecil and Essex had at last finished their expostulation and parted with charitable prayers, each that the other might be forgiven, then (says our reporter) Mr. Bacon entered into a speech much after this fashion:

"In speaking of this late and horrible rebellion which hath been in the eyes and ears of all men, I shall save myself much labour in opening

and enforcing the points thereof, insomuch as I speak not before a country jury of ignorant men, but before a most honourable assembly of the greatest Peers of the land, whose wisdoms conceive far more than my tongue can utter; yet with your gracious and honourable favours I will presume, if not for information of your Honours, yet for the discharge of my duty, to say thus much. No man can be ignorant, that knows matters of former ages—and all history makes it plain—that there was never any traitor heard of that durst directly attempt the seat of his liege prince but he always coloured his practices with some plausible pretence. For God hath imprinted such a majesty in the face of a prince that no private man dare approach the person of his sovereign with a traitorous intent. And therefore they run another side course, *oblique et à latere*: some to reform corruptions of the State and religion; some to reduce the ancient liberties and customs pretended to be lost and worn out; some to remove those persons that being in high places make themselves subject to envy; but all of them aim at the overthrow of the State and destruction of the present rulers. And this likewise is the use of those that work mischief of another quality; as Cain, that first murderer, took up an excuse for his fact, shaming to outface it with impudency, thus the Earl made his colour the severing some great men and councillors from her Majesty's favour, and the fear he stood in of his pretended enemies lest they should murder him in his house. Therefore he saith he was compelled to fly into the City for succour and assistance; not much unlike Pisistratus, of whom it was so anciently written how he gashed and wounded himself, and in that sort ran crying into Athens that his life was sought and like to have been taken away; thinking to have moved the people to have pitied him and taken his part by such counterfeited harm and danger; whereas his aim and drift was to take the government of the city into his hands and alter the form thereof. With like pretences of dangers and assaults the Earl of Essex entered the City of London and passed through the bowels thereof, blanching rumours that he should have been murdered and that the State was sold; whereas he had no such enemies, no such dangers: persuading themselves that if they could prevail all would have done well. But now *magna scelera terminantur in hæresin*; for you, my Lord, should know that though princes give their subjects cause of discontent, though they take away the honours they have heaped upon

them, though they bring them to a lower estate than they raised them from, yet ought they not to be so forgetful of their allegiance that they should enter into any undutiful act; much less upon rebellion, as you, my Lord, have done. All whatsoever you have or can say in answer hereof are but shadows. And therefore methinks it were best for you to confess, not to justify."

Essex was provoked by Bacon's incredulous sneer about enemies and dangers—"I call forth Mr. Bacon against Mr. Bacon," and referred to the letters which Bacon had written in his name, and in which these dangerous enmities were taken for granted. Bacon, in answer, repeated what he said so often—"That he had spent more time in vain in studying how to make the Earl a good servant to the Queen and State than he had done in anything else." Once more Coke got the proceedings into a tangle, and once more Bacon came forward to repair the miscarriage of his leader.

"I have never yet seen in any case such favour shown to any prisoner; so many digressions, such delivering of evidence by fractions, and so silly a defence of such great and notorious treasons. May it please your Grace, you have seen how weakly he hath shadowed his purpose and how slenderly he hath answered the objections against him. But, my Lord, I doubt the variety of matters and the many digressions may minister occasion of forgetfulness, and may have severed the judgments of the Lords; and therefore I hold it necessary briefly to recite the Judges' opinions.'

"That being done, he proceeded to this effect:

"Now put the case that the Earl of Essex's intents were, as he would have it believed, to go only as a suppliant to her Majesty. Shall their petitions be presented by armed petitioners? This must needs bring loss of property to the prince. Neither is it any point of law, as my Lord of Southampton would have it believed, that condemns them of treason. To take secret counsel, to execute it, to run together in numbers armed with weapons—what can be the excuse? Warned by the Lord Keeper, by a herald, and yet persist! Will any simple man take this to be less than treason?'

"The Earl of Essex answered that if he had purposed anything against others than those his private enemies, he would not have stirred with so slender a company. Whereunto Mr. Bacon answered:

"It was not the company you carried with you but the assistance you hoped for in the City which you trusted unto. The Duke of Guise thrust himself into the streets of Paris on the day of the Barricades in his doublet and hose, attended only with eight gentlemen, and found that help in the city which (thanks be to God) you failed of here. And what followed? The King was forced to put himself into a pilgrim's weeds, and in that disguise to steal away to scape their fury. Even such was my Lord's confidence too, and his pretence the same—an all-hail and a kiss to the City. But the end was treason, as hath been sufficiently proved. But when he had once delivered and engaged himself so far into that which the shallowness of his conceit could not accomplish as he expected, the Queen for her defence taking arms against him, he was glad to yield himself; and thinking to colour his practices, turned his pretexts, and alleged the occasion thereof to proceed from a private quarrel.'

"To this" (adds the reporter) "the Earl answered little. Nor was anything said afterwards by either of the prisoners, either in the thrust-and-parry dialogue with Coke that followed, or when they spoke at large to the question why judgment should not be pronounced, which at all altered the complexion of the case. They were both found guilty and sentence passed in the usual form."

Bacon's legal position was so subordinate a place that there must have been a special reason for his employment. It is difficult to avoid the conclusion that, on the part of the Government, Bacon was thus used for the very reason that he had been the friend of Essex. He was not commonly called upon in such prosecutions. He was not employed by Cecil in the Winchester trials of Raleigh, Grey, and Cobham, three years afterwards, nor in those connected with the Gunpowder Plot. He was called upon now because no one could so much damage Essex; and this last proof of his ready service was required by those whose favour, since Essex had gone hopelessly wrong, he had been diligently seeking. And Bacon acquiesced in the

demand, apparently without surprise. No record remains to show that he felt any difficulty in playing his part. He had persuaded himself that his public duty, his duty as a good citizen to the Queen and the commonwealth, demanded of him that he should obey the call to do his best to bring a traitor to punishment.

Public duty has claims on a man as well as friendship, and in many conceivable cases claims paramount to those of friendship. And yet friendship, too, has claims, at least on a man's memory. Essex had been a dear friend, if words could mean anything. He had done more than any man had done for Bacon, generously and nobly, and Bacon had acknowledged it in the amplest terms. Only a year before he had written, "I am as much yours as any man's, and as much yours as any man." It is not, and it was not, a question of Essex's guilt. It may be a question whether the whole matter was not exaggerated as to its purpose, as it certainly was as to its real danger and mischief. We at least know that his rivals dabbled in intrigue and foolish speeches as well as he; that little more than two years afterwards Raleigh and Grey and Cobham were condemned for treason in much the same fashion as he was; that Cecil to the end of his days—with whatever purpose—was a pensioner of Spain. The question was not whether Essex was guilty. The question for Bacon was, whether it was becoming in him, having been what he had been to Essex, to take a leading part in proceedings which were to end in his ruin and death. He was not a judge. He was not a regular law officer like Coke. His only employment had been casual and occasional. He might, most naturally, on the score of his old friendship, have asked to be excused. Condemning, as he did, his friend's guilt and folly, he might have refused to take part in a cause of blood, in which his best friend must perish. He might honestly have given up Essex as incorrigible, and have retired to stand apart in sorrow and silence while the inevitable tragedy was played out. The only answer to this is, that to have declined would have incurred the Queen's displeasure: he would have forfeited any chance of advancement; nay, closely connected as he had been with Essex, he might have been involved in his friend's ruin. But inferior men have marred their fortunes by standing by their friends in not undeserved trouble, and no one knew better than Bacon what was worthy and noble in human action. The choice lay before him. He seems hardly to have gone through any struggle. He persuaded himself that he

could not help himself, under the constraint of his duty to the Queen, and he did his best to get Essex condemned.

And this was not all. The death of Essex was a shock to the popularity of Elizabeth greater than anything that had happened in her long reign. Bacon's name also had come into men's mouths as that of a time-server who played fast and loose with Essex and his enemies, and who, when he had got what he could from Essex, turned to see what he could get from those who put him to death. A justification of the whole affair was felt to be necessary; and Bacon was fixed upon for the distinction and the dishonour of doing it. No one could tell the story so well, and it was felt that he would not shrink from it. Nor did he. In cold blood he sat down to blacken Essex, using his intimate personal knowledge of the past to strengthen his statements against a friend who was in his grave, and for whom none could answer but Bacon himself. It is a well-compacted and forcible account of Essex's misdoings, on which of course the colour of deliberate and dangerous treason was placed. Much of it, no doubt, was true; but even of the facts, and much more of the colour, there was no check to be had, and it is certain that it was an object to the Government to make out the worst. It is characteristic that Bacon records that he did not lose sight of the claims of courtesy, and studiously spoke of "my Lord of Essex" in the draft submitted for correction to the Queen; but she was more unceremonious, and insisted that the "rebel" should be spoken of simply as "Essex."

After a business of this kind, fines and forfeitures flowed in abundantly, and were "usually bestowed on deserving servants or favoured suitors by way of reward;" and Bacon came in for his share. Out of one of the fines he received £1200. "The Queen hath done something for me," he writes to a friendly creditor, "though not in the proportion I had hoped," and he afterwards asked for something more. It was rather under the value of Essex's gift to him in 1594. But she still refused him all promotion. He was without an official place in the Queen's service, and he never was allowed to have it. It is clear that the "Declaration of the Treason of the Earl of Essex," if it justified the Government, did not remove the odium which had fallen on Bacon. Mr. Spedding says that he can find no signs of it. The proof of it is found in the "Apology" which Bacon found it expedient to write after Elizabeth's death and early in James's reign. He found that the

recollection of the way in which he had dealt with his friend hung heavy upon him; men hesitated to trust him in spite of his now recognised ability. Accordingly, he drew up an apology, which he addressed to Lord Mountjoy, the friend, in reality half the accomplice, of Essex, in his wild, ill-defined plan for putting pressure on Elizabeth. It is a clear, able, of course *ex parte* statement of the doings of the three chief actors, two of whom could no longer answer for themselves, or correct and contradict the third. It represents the Queen as implacable and cruel, Essex as incorrigibly and outrageously wilful, proud, and undutiful, Bacon himself as using every effort and device to appease the Queen's anger and suspiciousness, and to bring Essex to a wiser and humbler mind. The picture is indeed a vivid one, and full of dramatic force, of an unrelenting and merciless mistress bent on breaking and bowing down to the dust the haughty spirit of a once-loved but rebellious favourite, whom, though he has deeply offended, she yet wishes to bring once more under her yoke; and of the calm, keen-witted looker-on, watching the dangerous game, not without personal interest, but with undisturbed presence of mind, and doing his best to avert an irreparable and fatal breach. How far he honestly did his best for his misguided friend we can only know from his own report; but there is no reason to think that he did Essex ill service, though he notices in passing an allegation that the Queen in one of her angry fits had charged him with this. But his interest clearly was to make up the quarrel between the Queen and Essex. Bacon would have been a greater man with both of them if he had been able to do so. He had been too deeply in Essex's intimacy to make his new position of mediator, with a strong bias on the Queen's side, quite safe and easy for a man of honourable mind; but a cool-judging and prudent man may well have acted as he represents himself acting without forgetting what he owed to his friend. Till the last great moment of trial there is a good deal to be said for Bacon: a man keenly alive to Essex's faults, with a strong sense of what he owed to the Queen and the State, and with his own reasonable chances of rising greatly prejudiced by Essex's folly. But at length came the crisis which showed the man, and threw light on all that had passed before, when he was picked out, out of his regular place, to be charged with the task of bringing home the capital charge against Essex. He does not say he hesitated. He does not say that he asked to be excused the terrible office. He did not flinch as the minister of vengeance for those who required that Essex should die. He did his work, we are told by his admiring

biographer, better than Coke, and repaired the blunders of the prosecution. He passes over very shortly this part of the business: "It was laid upon me with the rest of my fellows;" yet it is the knot and key of the whole, as far as his own character is concerned. Bacon had his public duty: his public duty may have compelled him to stand apart from Essex. But it was his interest, it was no part of his public duty, which required him to accept the task of accuser of his friend, and in his friend's direst need calmly to drive home a well-directed stroke that should extinguish chances and hopes, and make his ruin certain. No one who reads his anxious letters about preferment and the Queen's favour, about his disappointed hopes, about his straitened means and distress for money, about his difficulties with his creditors—he was twice arrested for debt—can doubt that the question was between his own prospects and his friend; and that to his own interest he sacrificed his friend and his own honour.

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## **CHAPTER III.**

### **BACON AND JAMES I.**

Bacon's life was a double one. There was the life of high thinking, of disinterested aims, of genuine enthusiasm, of genuine desire to delight and benefit mankind, by opening new paths to wonder and knowledge and power. And there was the put on and worldly life, the life of supposed necessities for the provision of daily bread, the life of ambition and self-seeking, which he followed, not without interest and satisfaction, but at bottom because he thought he must—must be a great man, must be rich, must live in the favour of the great, because without it his great designs could not be accomplished. His original plan of life was disclosed in his letter to Lord Burghley: to get some office with an assured income and not much work, and then to devote the best of his time to his own subjects. But this, if it was really his plan, was gradually changed: first, because he could not get such a place; and next because his connection with Essex, the efforts to gain him the Attorney's place, and the use which the Queen made of him after Essex could do no more for him, drew him more and more into public work, and specially the career of the law. We know that he would not by preference have chosen the law, and did not feel that his vocation lay that way; but it was the only way open to him for mending his fortunes. And so the two lives went on side by side, the worldly one—he would have said, the practical one—often interfering with the life of thought and discovery, and partly obscuring it, but yet always leaving it paramount in his own mind. His dearest and most cherished ideas, the thoughts with which he was most at home and happiest, his deepest and truest ambitions, were those of an enthusiastic and romantic believer in a great discovery just within his grasp. They were such as the dreams and visions of his great Franciscan namesake, and of the imaginative seekers after knowledge in the middle ages, real or mythical, Albert the Great, Cornelius Agrippa, Dr. Faustus; they were the eager, undoubting hopes of the physical students in Italy and England in his own time, Giordano Bruno, Telesio, Campanella, Gilbert,

Galileo, or the founders of the Italian prototype of "Solomon's House" in the *New Atlantis*, the precursor of our Royal Societies, the Academy of the *Lincei* at Rome. Among these meditations was his inner life. But however he may have originally planned his course, and though at times under the influence of disappointment he threatened to retire to Cambridge or to travel abroad, he had bound himself fast to public life, and soon ceased to think of quitting it. And he had a real taste for it—for its shows, its prizes, for the laws and turns of the game, for its debates and vicissitudes. He was no mere idealist or recluse to undervalue or despise the real grandeur of the world. He took the keenest interest in the nature and ways of mankind; he liked to observe, to generalise in shrewd and sometimes cynical epigrams. He liked to apply his powerful and fertile intellect to the practical problems of society and government, to their curious anomalies, to their paradoxical phenomena; he liked to address himself, either as an expounder or a reformer, to the principles and entanglements of English law; he aspired, both as a lecturer and a legislator, to improve and simplify it. It was not beyond his hopes to shape a policy, to improve administration, to become powerful by bringing his sagacity and largeness of thought to the service of the State, in reconciling conflicting forces, in mediating between jealous parties and dangerous claims. And he liked to enter into the humours of a Court; to devote his brilliant imagination and affluence of invention either to devising a pageant which should throw all others into the shade, or a compromise which should get great persons out of some difficulty of temper or pique.

In all these things he was as industrious, as laborious, as calmly persevering and tenacious, as he was in his pursuit of his philosophical speculations. He was a compound of the most adventurous and most diversified ambition, with a placid and patient temper, such as we commonly associate with moderate desires and the love of retirement and an easy life. To imagine and dare anything, and never to let go the object of his pursuit, is one side of him; on the other he is obsequiously desirous to please and fearful of giving offence, the humblest and most grateful and also the most importunate of suitors, ready to bide his time with an even cheerfulness of spirit, which yet it was not safe to provoke by ill offices and the wish to thwart him. He never misses a chance of proffering his services; he never lets pass an opportunity of recommending himself to those who could help him. He is

so bent on natural knowledge that we have a sense of incongruity when we see him engaging in politics as if he had no other interest. He throws himself with such zest into the language of the moralist, the theologian, the historian, that we forget we have before us the author of a new departure in physical inquiry, and the unwearied compiler of tables of natural history. When he is a lawyer, he seems only a lawyer. If he had not been the author of the *Instauratio*, his life would not have looked very different from that of any other of the shrewd and supple lawyers who hung on to the Tudor and Stuart Courts, and who unscrupulously pushed their way to preferment. He claimed to be, in spite of the misgivings of Elizabeth and her ministers, as devoted to public work and as capable of it as any of them. He was ready for anything, for any amount of business, ready, as in everything, to take infinite trouble about it. The law, if he did not like it, was yet no by-work with him; he was as truly ambitious as the men with whom he maintained so keen and for long so unsuccessful a rivalry. He felt bitterly the disappointment of seeing men like Coke and Fleming and Doddridge and Hobart pass before him; he could not, if he had been only a lawyer, have coveted more eagerly the places, refused to him, which they got; only, he had besides a whole train of purposes, an inner and supreme ambition, of which they knew nothing. And with all this there is no apparent consciousness of these manifold and varied interests. He never affected to conceal from himself his superiority to other men in his aims and in the grasp of his intelligence. But there is no trace that he prided himself on the variety and versatility of these powers, or that he even distinctly realized to himself that it was anything remarkable that he should have so many dissimilar objects and be able so readily to pursue them in such different directions.

It is doubtful whether, as long as Elizabeth lived, Bacon could ever have risen above his position among the "Learned Counsel," an office without patent or salary or regular employment. She used, him, and he was willing to be used; but he plainly did not appear in her eyes to be the kind of man who would suit her in the more prominent posts of her Government. Unusual and original ability is apt, till it is generally recognised, to carry with it suspicion and mistrust as to its being really all that it seems to be. Perhaps she thought of the possibility of his flying out unexpectedly at some inconvenient pinch, and attempting to serve her interests, not in her

way, but in his own; perhaps she distrusted in business and state affairs so brilliant a discourser, whose heart was known, first and above all, to be set on great dreams of knowledge; perhaps those interviews with her in which he describes the counsels which he laid before her, and in which his shrewdness and foresight are conspicuous, may not have been so welcome to her as he imagined; perhaps, it is not impossible, that he may have been too compliant for her capricious taste, and too visibly anxious to please. Perhaps, too, she could not forget, in spite of what had happened, that he had been the friend, and not the very generous friend, of Essex. But, except as to a share of the forfeitures, with which he was not satisfied, his fortunes did not rise under Elizabeth.

Whatever may have been the Queen's feelings towards him, there is no doubt that one powerful influence, which lasted into the reign of James, was steadily adverse to his advancement. Burghley had been strangely niggardly in what he did to help his brilliant nephew; he was going off the scene, and probably did not care to trouble himself about a younger and uncongenial aspirant to service. But his place was taken by his son, Robert Cecil; and Cecil might naturally have been expected to welcome the co-operation of one of his own family who was foremost among the rising men of Cecil's own generation, and who certainly was most desirous to do him service. But it is plain that he early made up his mind to keep Bacon in the background. It is easy to imagine reasons, though the apparent short-sightedness of the policy may surprise us; but Cecil was too reticent and self-controlled a man to let his reasons appear, and his words, in answer to his cousin's applications for his assistance, were always kind, encouraging, and vague. But we must judge by the event, and that makes it clear that Cecil did not care to see Bacon in high position. Nothing can account for Bacon's strange failure for so long a time to reach his due place in the public service but the secret hostility, whatever may have been the cause, of Cecil.

There was also another difficulty. Coke was the great lawyer of the day, a man whom the Government could not dispense with, and whom it was dangerous to offend. And Coke thoroughly disliked Bacon. He thought lightly of his law, and he despised his refinement and his passion for knowledge. He cannot but have resented the impertinence, as he must have

thought it, of Bacon having been for a whole year his rival for office. It is possible that if people then agreed with Mr. Spedding's opinion as to the management of Essex's trial, he may have been irritated by jealousy; but a couple of months after the trial (April 29, 1601) Bacon sent to Cecil, with a letter of complaint, the following account of a scene in Court between Coke and himself:

*"A true remembrance of the abuse I received of Mr. Attorney-General publicly in the Exchequer the first day of term; for the truth whereof I refer myself to all that were present.*

"I moved to have a reseizure of the lands of Geo. Moore, a relapsed recusant, a fugitive and a practising traytor; and showed better matter for the Queen against the discharge by plea, which is ever with a *salvo jure*. And this I did in as gentle and reasonable terms as might be.

"Mr. Attorney kindled at it, and said, '*Mr. Bacon, if you have any tooth against me pluck it out; for it will do you more hurt than all the teeth in your head will do you good.*' I answered coldly in these very words: '*Mr. Attorney, I respect you; I fear you not; and the less you speak of your own greatness, the more I will think of it.*'

"He replied, '*I think scorn to stand upon terms of greatness towards you, who are less than little; less than the least;*' and other such strange light terms he gave me, with that insulting which cannot be expressed.

"Herewith stirred, yet I said no more but this: '*Mr. Attorney, do not depress me so far; for I have been your better, and may be again, when it please the Queen.*'

"With this he spake, neither I nor himself could tell what, as if he had been born Attorney-General; and in the end bade me not meddle with the Queen's business, but with mine own; and that I was unsworn, etc. I told him, sworn or unsworn was all one to an honest man; and that I ever set my service first, and myself second; and wished to God that he would do the like.

"Then he said, it were good to clap a *cap. ultegatum* upon my back! To which I only said he could not; and that he was at fault, for he hunted upon an old scent. He gave me a number of disgraceful words besides, which I answered with silence, and showing that I was not moved with them."

The threat of the *capias ultegatum* was probably in reference to the arrest of Bacon for debt in September, 1593. After this we are not surprised at Bacon writing to Coke, "who take to yourself a liberty to disgrace and disable my law, my experience, my discretion," that, "since I missed the Solicitor's place (the rather I think by your means) I cannot expect that you and I shall ever serve as Attorney and Solicitor together, but either serve with another on your remove, or step into some other course." And Coke, no doubt, took care that it should be so. Cecil, too, may possibly have thought that Bacon gave no proof of his fitness for affairs in thus bringing before him a squabble in which both parties lost their tempers.

Bacon was not behind the rest of the world in "the posting of men of good quality towards the King," in the rash which followed the Queen's death, of those who were eager to proffer their services to James, for whose peaceful accession Cecil had so skilfully prepared the way. He wrote to every one who, he thought, could help him: to Cecil, and to Cecil's man—"I pray you, as you find time let him know that he is the personage in the State which I love most;" to Northumberland, "If I may be of any use to your Lordship, by my head, tongue, pen, means, or friends, I humbly pray you to hold me your own;" to the King's Scotch friends and servants, even to Southampton, the friend of Essex, who had been shut up in the Tower since his condemnation with Essex, and who was now released. "This great change," Bacon assured him, "hath wrought in me no other change towards your Lordship than this, that I may safely be now that which I truly was before." Bacon found in after years that Southampton was not so easily conciliated. But at present Bacon was hopeful: "In mine own particular," he writes, "I have many comforts and assurances; but in mine own opinion the chief is, that the *canvassing world is gone, and the deserving world is come*." He asks to be recommended to the King—"I commend myself to your love and to the well-using of my name, as well in repressing and answering for me, if there be any biting or nibbling at it in that place, as in impressing a good

conceit and opinion of me, chiefly in the King, as otherwise in that Court." His pen had been used under the government of the Queen, and he had offered a draft of a proclamation to the King's advisers. But though he obtained an interview with the King, James's arrival in England brought no immediate prospect of improvement in Bacon's fortunes. Indeed, his name was at first inadvertently passed over in the list of Queen's servants who were to retain their places. The first thing we hear of is his arrest a second time for debt; and his letters of thanks to Cecil, who had rendered him assistance, are written in deep depression.

"For my purpose or course I desire to meddle as little as I can in the King's causes, his Majesty now abounding in counsel, and to follow my private thrift and practice, and to marry with some convenient advancement. For as for any ambition, I do assure your Honour, mine is quenched. In the Queen's, my excellent Mistress's, time the *quorum* was small: her service was a kind of freehold, and it was a more solemn time. All those points agreed with my nature and judgment. My ambition now I shall only put upon my pen, whereby I shall be able to maintain memory and merit of the times succeeding.

"Lastly, for this divulged and almost prostituted title of knighthood, I could without charge, by your Honour's mean, be content to have it, both because of this late disgrace and because I have three new knights in my mess in Gray's Inn's commons; and because I have found out an alderman's daughter, an handsome maiden, to my liking."

Cecil, however, seems to have required that the money should be repaid by the day; and Bacon only makes a humble request, which, it might be supposed, could have been easily granted.

"IT MAY PLEASE YOUR GOOD LORDSHIP,—In answer of your last letter, your money shall be ready before your day: principal, interest, and costs of suit. So the sheriff promised, when I released errors; and a Jew takes no more. The rest cannot be forgotten, for I cannot forget your Lordship's *dum memor ipse mei*; and if there have been *aliquid nimis*, it shall be amended. And, to be plain with your Lordship, that will quicken me now which slackened me before. Then I thought you might have had more use of me than now I suppose you

are like to have. Not but I think the impediment will be rather in my mind than in the matter or times. But to do you service I will come out of my religion at any time.

"For my knighthood, I wish the manner might be such as might grace me, since the matter will not; I mean, that I might not be merely gregarious in a troop. The coronation is at hand. It may please your Lordship to let me hear from you speedily. So I continue your Lordship's ever much bounden,

"FR. BACON.

"From Gorhambury, this 16th of July, 1603."

But it was not done. He "obtained his title, but not in a manner to distinguish him. He was knighted at Whitehall two days before the coronation, but had to share the honour with 300 others."

It was not quite true that his "ambition was quenched." For the rest of Cecil's life Cecil was the first man at James's Court; and to the last there was one thing that Bacon would not appear to believe—he did not choose to believe that it was Cecil who kept him back from employment and honour. To the last he persisted in assuming that Cecil was the person who would help, if he could, a kinsman devoted to his interests and profoundly conscious of his worth. To the last he commended his cause to Cecil in terms of unstinted affection and confiding hope. It is difficult to judge of the sincerity of such language. The mere customary language of compliment employed by every one at this time was of a kind which to us sounds intolerable. It seems as if nothing that ingenuity could devise was too extravagant for an honest man to use, and for a man who respected himself to accept. It must not, indeed, be forgotten that conventionalities, as well as insincerity, differ in their forms in different times; and that insincerity may lurk behind frank and clear words, when they are the fashion, as much as in what is like mere fulsome adulation. But words mean something, in spite of forms and fashions. When a man of great genius writes his private letters, we wish generally to believe on the whole what he says; and there are no limits to the esteem, the honour, the confidence, which Bacon continued to the end to express towards Cecil. Bacon appeared to trust him—appeared, in spite of continued disappointments, to rely on his good-will and good

offices. But for one reason or another Bacon still remained in the shade. He was left to employ his time as he would, and to work his way by himself.

He was not idle. He prepared papers which he meant should come before the King, on the pressing subjects of the day. The Hampton Court conference between the Bishops and the Puritan leaders was at hand, and he drew up a moderating paper on the *Pacification of the Church*. The feeling against him for his conduct towards Essex had not died away, and he addressed to Lord Mountjoy that *Apology concerning the Earl of Essex*, so full of interest, so skilfully and forcibly written, so vivid a picture of the Queen's ways with her servants, which has every merit except that of clearing Bacon from the charge of disloyalty to his best friend. The various questions arising out of the relations of the two kingdoms, now united under James, were presenting themselves. They were not of easy solution, and great mischief would follow if they were solved wrongly. Bacon turned his attention to them. He addressed a discourse to the King on the union of the two kingdoms, the first of a series of discussions on the subject which Bacon made peculiarly his own, and which, no doubt, first drew the King's attention and favour to him.

But for the first year of James's reign he was unnoticed by the King, and he was able to give his attention more freely to the great thought and hope of his life. This time of neglect gave him the opportunity of leisurely calling together and examining the ideas which had long had hold of his mind about the state of human knowledge, about the possibilities of extending it, about the hopes and powers which that new knowledge opened, and about the methods of realising this great prospect. This, the passion of his life, never asleep even in the hottest days of business or the most hopeless days of defeat, must have had full play during these days of suspended public employment. He was a man who was not easily satisfied with his attempts to arrange the order and proportions of his plans for mastering that new world of unknown truth, which he held to be within the grasp of man if he would only dare to seize it; and he was much given to vary the shape of his work, and to try experiments in composition and even style. He wrote and rewrote. Besides what was finally published, there remains a larger quantity of work which never reached the stage of publication. He repeated over and over again the same thoughts, the same images and characteristic sayings.

Among these papers is one which sums up his convictions about the work before him, and the vocation to which he had been called in respect of it. It is in the form of a "Proem" to a treatise on the *Interpretation of Nature*. It was never used in his published works; but, as Mr. Spedding says, it has a peculiar value as an authentic statement of what he looked upon as his special business in life. It is this mission which he states to himself in the following paper. It is drawn up in "stately Latin." Mr. Spedding's translation is no unworthy representation of the words of the great Prophet of Knowledge:

"Believing that I was born for the service of mankind, and regarding the care of the Commonwealth as a kind of common property which, like the air and water, belongs to everybody, I set myself to consider in what way mankind might be best served, and what service I was myself best fitted by nature to perform.

"Now among all the benefits that could be conferred upon mankind, I found none so great as the discovery of new arts, endowments, and commodities for the bettering of man's life.... But if a man could succeed, not in striking out some particular invention, however useful, but in kindling a light in nature—a light that should in its very rising touch and illuminate all the border regions that confine upon the circle of our present knowledge; and so spreading further and further should presently disclose and bring into sight all that is most hidden and secret in the world—that man (I thought) would be the benefactor indeed of the human race—the propagator of man's empire over the universe, the champion of liberty, the conqueror and subduer of necessities.

"For myself, I found that I was fitted for nothing so well as for the study of Truth; as having a mind nimble and versatile enough to catch the resemblances of things (which is the chief point), and at the same time steady enough to fix and distinguish their subtler differences; as being gifted by nature with desire to seek, patience to doubt, fondness to meditate, slowness to assert, readiness to reconsider, carefulness to dispose and set in order; and as being a man that neither affects what is new nor admires what is old, and that hates every kind of imposture.

So I thought my nature had a kind of familiarity and relationship with Truth.

"Nevertheless, because my birth and education had seasoned me in business of State; and because opinions (so young as I was) would sometimes stagger me; and because I thought that a man's own country has some special claims upon him more than the rest of the world; and because I hoped that, if I rose to any place of honour in the State, I should have a larger command of industry and ability to help me in my work—for these reasons I both applied myself to acquire the arts of civil life, and commended my service, so far as in modesty and honesty I might, to the favour of such friends as had any influence. In which also I had another motive: for I felt that those things I have spoken of—be they great or small—reach no further than the condition and culture of this mortal life; and I was not without hope (the condition of religion being at that time not very prosperous) that if I came to hold office in the State, I might get something done too for the good of men's souls. When I found, however, that my zeal was mistaken for ambition, and my life had already readied the turning-point, and my breaking health reminded me how ill I could afford to be so slow, and I reflected, moreover, that in leaving undone the good that I could do by myself alone, and applying myself to that which could not be done without the help and consent of others, I was by no means discharging the duty that lay upon me—I put all those thoughts aside, and (in pursuance of my old determination) betook myself wholly to this work. Nor am I discouraged from it because I see signs in the times of the decline and overthrow of that knowledge and erudition which is now in use. Not that I apprehend any more barbarian invasions (unless possibly the Spanish empire should recover its strength, and having crushed other nations by arms should itself sink under its own weight); but the civil wars which may be expected, I think (judging from certain fashions which have come in of late), to spread through many countries—together with the malignity of sects, and those compendious artifices and devices which have crept into the place of solid erudition—seem to portend for literature and the sciences a tempest not less fatal, and one against which the Printing-office will be no effectual security. And no doubt but that fair-weather

learning which is nursed by leisure, blossoms under reward and praise, which cannot withstand the shock of opinion, and is liable to be abused by tricks and quackery, will sink under such impediments as these. Far otherwise is it with that knowledge whose dignity is maintained by works of utility and power. For the injuries, therefore, which should proceed from the times, I am not afraid of them; and for the injuries which proceed from men, I am not concerned. For if any one charge me with seeking to be wise over-much, I answer simply that modesty and civil respect are fit for civil matters; in contemplations nothing is to be respected but Truth. If any one call on me for *works*, and that presently, I tell him frankly, without any imposture at all, that for me—a man not old, of weak health, my hands full of civil business, entering without guide or light upon an argument of all others the most obscure—I hold it enough to have constructed the machine, though I may not succeed in setting it on work.... If, again, any one ask me, not indeed for actual works, yet for definite premises and forecasts of the works that are to be, I would have him know that the knowledge which we now possess will not teach a man even what to *wish*. Lastly—though this is a matter of less moment—if any of our politicians, who used to make their calculations and conjectures according to persons and precedents, must needs interpose his judgment in a thing of this nature, I would but remind him how (according to the ancient fable) the lame man keeping the course won the race of the swift man who left it; and that there is no thought to be taken about precedents, for the thing is without precedent.

"For myself, my heart is not set upon any of those things which depend upon external accidents. I am not hunting for fame: I have no desire to found a sect, after the fashion of heresiarchs; and to look for any private gain from such an undertaking as this I count both ridiculous and base. Enough for me the consciousness of well-deserving, and those real and effectual results with which Fortune itself cannot interfere."

In 1604 James's first Parliament met, and with it Bacon returned to an industrious public life, which was not to be interrupted till it finally came to an end with his strange and irretrievable fall. The opportunity had come;

and Bacon, patient, vigilant, and conscious of great powers and indefatigable energy, fully aware of all the conditions of the time, pushed at once to the front in the House of Commons. He lost no time in showing that he meant to make himself felt. The House of Commons had no sooner met than it was involved in a contest with the Chancery, with the Lords, and finally with the King himself, about its privileges—in this case its exclusive right to judge of the returns of its members. Bacon's time was come for showing the King both that he was willing to do him service, and that he was worth being employed. He took a leading part in the discussions, and was trusted by the House as their spokesman and reporter in the various conferences. The King, in his overweening confidence in his absolute prerogative, had, indeed, got himself into serious difficulty; for the privilege was one which it was impossible for the Commons to give up. But Bacon led the House to agree to an arrangement which saved their rights; and under a cloud of words of extravagant flattery he put the King in good-humour, and elicited from him the spontaneous proposal of a compromise which ended a very dangerous dispute. "The King's voice," said Bacon, in his report to the House, "was the voice of God in man, the good spirit of God in the mouth of man; I do not say the voice of God and not of man; I am not one of Herod's flatterers; a curse fell upon him that said it, a curse on him that suffered it. We might say, as was said to Solomon, We are glad, O King, that we give account to you, because you discern what is spoken."

The course of this Parliament, in which Bacon was active and prominent, showed the King, probably for the first time, what Bacon was. The session was not so stormy as some of the later ones; but occasions arose which revealed to the King and to the House of Commons the deeply discordant assumptions and purposes by which each party was influenced, and which brought out Bacon's powers of adjusting difficulties and harmonising claims. He never wavered in his loyalty to his own House, where it is clear that his authority was great. But there was no limit to the submission and reverence which he expressed to the King, and, indeed, to his desire to bring about what the King desired, as far as it could be safely done. Dealing with the Commons, his policy was "to be content with the substance and not to stand on the form." Dealing with the King, he was forward to recognise all that James wanted recognised of his kingcraft and his absolute sovereignty. Bacon assailed with a force and keenness which showed what

he could do as an opponent, the amazing and intolerable grievances arising out of the survival of such feudal customs as Wardship and Purveyance; customs which made over a man's eldest son and property, during a minority, to the keeping of the King, that is, to a King's favourite, and allowed the King's servants to cut down a man's timber before the windows of his house. But he urged that these grievances should be taken away with the utmost tenderness for the King's honour and the King's purse. In the great and troublesome questions relating to the Union he took care to be fully prepared. He was equally strong on points of certain and substantial importance, equally quick to suggest accommodations where nothing substantial was touched. His attitude was one of friendly and respectful independence. It was not misunderstood by the King. Bacon, who had hitherto been an unsworn and unpaid member of the Learned Counsel, now received his office by patent, with a small salary, and he was charged with the grave business of preparing the work for the Commissioners for the Union of the Kingdoms, in which, when the Commission met, he took a foremost and successful part.

But the Parliament before which their report was to be laid did not meet till ten months after the work of the Commission was done (Dec., 1604—Nov., 1605). For nearly another year Bacon had no public work. The leisure was used for his own objects. He was interested in history in a degree only second to his interest in nature; indeed, but for the engrossing claims of his philosophy of nature, he might have been the first and one of the greatest of our historians. He addressed a letter to the Chancellor Ellesmere on the deficiencies of British history, and on the opportunities which offered for supplying them. He himself could at present do nothing; "but because there be so many good painters, both for hand and colours, it needeth but encouragement and instructions to give life and light unto it." But he mistook, in this as in other instances, the way in which such things are done. Men do not accomplish such things to order, but because their souls compel them, as he himself was building up his great philosophical structure, in the midst of his ambition and disappointment. And this interval of quiet enabled him to bring out his first public appeal on the subject which most filled his mind. He completed in English the *Two Books of the Advancement of Knowledge*, which were published at a book-shop at the gateway of Gray's Inn in Holborn (Oct., 1605). He intended that it should

be published in Latin also; but he was dissatisfied with the ornate translation sent him from Cambridge, and probably he was in a hurry to get the book out. It was dedicated to the King, not merely by way of compliment, but with the serious hope that his interest might be awakened in the subjects which were nearest Bacon's heart. Like other of Bacon's hopes, it was disappointed. The King's studies and the King's humours were not of the kind to make him care for Bacon's visions of the future, or his eager desire to begin at once a novel method of investigating the facts and laws of nature; and the appeal to him fell dead. Bacon sent the book about to his friends with explanatory letters. To Sir T. Bodley he writes:

"I think no man may more truly say with the Psalm, *Multum incola fuit anima mea* [Ps. 120] than myself. For I do confess since I was of any understanding, my mind hath in effect been absent from that I have done; and in absence are many errors which I willingly acknowledge; and among them, this great one which led the rest: that knowing myself by inward calling to be fitter to hold a book than to play a part, I have led my life in civil causes, for which I was not very fit by nature, and more unfit by the preoccupation of my mind. Therefore, calling myself home, I have now enjoyed myself; whereof likewise I desire to make the world partaker."

To Lord Salisbury, in a note of elaborate compliment, he describes his purpose by an image which he repeats more than once. "I shall content myself to awake better spirits, *like a bell-ringer, which is first up to call others to church.*" But the two friends whose judgment he chiefly valued, and who, as on other occasions, were taken into his most intimate literary confidence, were Bishop Andrewes, his "inquisitor," and Toby Matthews, a son of the Archbishop of York, who had become a Roman Catholic, and lived in Italy, seeing a good deal of learned men there, apparently the most trusted of all Bacon's friends.

When Parliament met again in November, 1605, the Gunpowder Plot and its consequences filled all minds. Bacon was not employed about it by Government, and his work in the House was confined to carrying on matters left unfinished from the previous session. On the rumour of legal promotions and vacancies Bacon once more applied to Salisbury for the

Solicitorship (March, 1606). But no changes were made, and Bacon was "still next the door." In May, 1606, he did what had for some time been in his thoughts: he married; not the lady whom Essex had tried to win for him, that Lady Hatton who became the wife of his rival Coke, but one whom Salisbury helped him to gain, an alderman's daughter, Alice Barnham, "an handsome maiden," with some money and a disagreeable mother, by her second marriage, Lady Packington. Bacon's curious love of pomp amused the gossips of the day. "Sir Francis Bacon," writes Carleton to Chamberlain, "was married yesterday to his young wench, in Maribone Chapel. He was clad from top to toe in purple, and hath made himself and his wife such store of raiments of cloth of silver and gold that it draws deep into her portion." Of his married life we hear next to nothing: in his *Essay on Marriage* he is not enthusiastic in its praise; almost the only thing we know is that in his will, twenty years afterwards, he showed his dissatisfaction with his wife, who after his death married again. But it gave him an additional reason, and an additional plea, for pressing for preferment, and in the summer of 1606 the opening came. Coke was made Chief-Justice of the Common Pleas, leaving the Attorney's place vacant. A favourite of Salisbury's, Hobart, became Attorney, and Bacon hoped for some arrangement by which the Solicitor Doddridge might be otherwise provided for, and he himself become Solicitor. Hopeful as he was, and patient of disappointments, and of what other men would have thought injustice and faithlessness, he felt keenly both the disgrace and the inconvenience of so often expecting place, and being so often passed over. While the question was pending, he wrote to the King, the Chancellor, and Salisbury. His letter to the King is a record in his own words of his public services. To the Chancellor, whom he believed to be his supporter, he represented the discredit which he suffered—he was a common gaze and a speech;" "the little reputation which by his industry he gathered, being scattered and taken away by continual disgraces, *every new man coming above me*;" and his wife and his wife's friends were making him feel it. The letters show what Bacon thought to be his claims, and how hard he found it to get them recognised. To the Chancellor he urged, among other things, that time was slipping by—

"I humbly pray your Lordship to consider that time groweth precious with me, and that a married man is seven years elder in his thoughts

the first day.... And were it not to satisfy my wife's friends, and to get myself out of being a common gaze and a speech, I protest before God I would never speak word for it. But to conclude, as my honourable Lady your wife was some mean to make me to change the name of another, so if it please you to help me to change my own name, I can be but more and more bounden to you; and I am much deceived if your Lordship find not the King well inclined, and my Lord of Salisbury forward and affectionate."

To Salisbury he writes:

"I may say to your Lordship, in the confidence of your poor kinsman, and of a man by you advanced, *Tu idem fer opem, qui spem dedisti*; for I am sure it was not possible for any living man to have received from another more significant and comfortable words of hope; your Lordship being pleased to tell me, during the course of my last service, that you would raise me; and that when you had resolved to raise a man, you were more careful of him than himself; and that what you had done for me in my marriage was a benefit to me, but of no use to your Lordship.... And I know, and all the world knoweth, that your Lordship is no dealer of holy water, but noble and real; and on my part I am of a sure ground that I have committed nothing that may deserve alteration. And therefore my hope is your Lordship will finish a good work, and consider that time groweth precious with me, and that I am now *vergentibus annis*. And although I know your fortune is not to need an hundred such as I am, yet I shall be ever ready to give you my best and first fruits, and to supply (as much as in me lieth) worthiness by thankfulness."

Still the powers were deaf to his appeals; at any rate he had to be content with another promise. Considering the ability which he had shown in Parliament, the wisdom and zeal with which he had supported the Government, and the important position which he held in the House of Commons, the neglect of him is unintelligible, except on two suppositions: that the Government, that is Cecil, were afraid of anything but the mere routine of law, as represented by such men as Hobart and Doddridge; or that

Coke's hostility to him was unabated, and Coke still too important to be offended.

Bacon returned to work when the Parliament met, November, 1606. The questions arising out of the Union, the question of naturalisation, its grounds and limits, the position of Scotchmen born *before* or *since* the King's accession, the *Antenati* and *Postnati*, the question of a union of laws, with its consequences, were discussed with great keenness and much jealous feeling. On the question of naturalisation Bacon took the liberal and larger view. The immediate union of laws he opposed as premature. He was a willing servant of the House, and the House readily made use of him. He reported the result of conferences, even when his own opinion was adverse to that of the House. And he reported the speeches of such persons as Lord Salisbury, probably throwing into them both form and matter of his own. At length, "silently, on the 25th of June," 1607, he was appointed Solicitor-General. He was then forty-seven.

"It was also probably about this time," writes Mr. Spedding, "that Bacon finally settled the plan of his '*Great Instauration*,' and began to call it by that name."

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## CHAPTER IV.

### BACON SOLICITOR-GENERAL.

The great thinker and idealist, the great seer of a world of knowledge to which the men of his own generation were blind, and which they could not, even with his help, imagine a possible one, had now won the first step in that long and toilsome ascent to success in life, in which for fourteen years he had been baffled. He had made himself, for good and for evil, a servant of the Government of James I. He was prepared to discharge with zeal and care all his duties. He was prepared to perform all the services which that Government might claim from its servants. He had sought, he had passionately pressed to be admitted within that circle in which the will of the King was the supreme law; after that, it would have been ruin to have withdrawn or resisted. But it does not appear that the thought or wish to resist or withdraw ever presented itself; he had thoroughly convinced himself that in doing what the King required he was doing the part of a good citizen, and a faithful servant of the State and Commonwealth. The two lives, the two currents of purpose and effort, were still there. Behind all the wrangle of the courts and the devising of questionable legal subtleties to support some unconstitutional encroachment, or to outflank the defence of some obnoxious prisoner, the high philosophical meditations still went on; the remembrance of their sweetness and grandeur wrung more than once from the jaded lawyer or the baffled counsellor the complaint, in words which had a great charm for him, *Multum incola fuit anima mea*—"My soul hath long dwelt" where it would not be. But opinion and ambition and the immense convenience of being great and rich and powerful, and the supposed necessities of his condition, were too strong even for his longings to be the interpreter and the servant of nature. There is no trace of the faintest reluctance on his part to be the willing minister of a court of which not only the principal figure, but the arbiter and governing spirit, was to be George Villiers, Duke of Buckingham.

The first leisure that Bacon had after he was appointed Solicitor he used in a characteristic way. He sat down to make a minute stock-taking of his position and its circumstances. In the summer of 1608 he devoted a week of July to this survey of his life, its objects and its appliances; and he jotted down, day by day, through the week, from his present reflections, or he transcribed from former note-books, a series of notes in loose order, mostly very rough and not always intelligible, about everything that could now concern him. This curious and intimate record, which he called *Commentarius Solutus*, was discovered by Mr. Spedding, who not unnaturally had some misgivings about publishing so secret and so ambiguous a record of a man's most private confidences with himself. But there it was, and, as it was known, he no doubt decided wisely in publishing it as it stands; he has done his best to make it intelligible, and he has also done his best to remove any unfavourable impressions that might arise from it. It is singularly interesting as an evidence of Bacon's way of working, of his watchfulness, his industry, his care in preparing himself long beforehand for possible occasions, his readiness to take any amount of trouble about his present duties, his self-reliant desire for more important and difficult ones. It exhibits his habit of self-observation and self-correction, his care to mend his natural defects of voice, manner, and delivery; it is even more curious in showing him watching his own physical constitution and health, in the most minute details of symptoms and remedies, equally with a scientific and a practical object. It contains his estimate of his income, his expenditure, his debts, schedules of lands and jewels, his rules for the economy of his estate, his plans for his new gardens and terraces and ponds and buildings at Gorhambury. He was now a rich man, valuing his property at £24,155 and his income at £4975, burdened with a considerable debt, but not more than he might easily look to wipe out. But, besides all these points, there appear the two large interests of his life—the reform of philosophy, and his ideal of a great national policy. The "greatness of Britain" was one of his favourite subjects of meditation. He puts down in his notes the outline of what should be aimed at to secure and increase it; it is to make the various forces of the great and growing empire work together in harmonious order, without waste, without jealousy, without encroachment and collision; to unite not only the interests but the sympathies and aims of the Crown with those of the people and Parliament; and so to make Britain, now in peril from nothing but from the strength of its own discordant elements, that

"Monarchy of the West" in reality, which Spain was in show, and, as Bacon always maintained, only in show. The survey of the condition of his philosophical enterprise takes more space. He notes the stages and points to which his plans have reached; he indicates, with a favourite quotation or apophthegm—"*Plus ultra*"—"ausus vana contemnere"—"*aditus non nisi sub persona infantis*" soon to be familiar to the world in his published writings—the lines of argument, sometimes alternative ones, which were before him; he draws out schemes of inquiry, specimen tables, distinctions and classifications about the subject of Motion, in English interlarded with Latin, or in Latin interlarded with English, of his characteristic and practical sort; he notes the various sources from which he might look for help and co-operation—"of learned men beyond the seas"—"to begin first in France to print it"—"laying for a place to command wits and pens;" he has his eye on rich and childless bishops, on the enforced idleness of State prisoners in the Tower, like Northumberland and Raleigh, on the great schools and universities, where he might perhaps get hold of some college for "Inventors"—as we should say, for the endowment of research. These matters fill up a large space of his notes. But his thoughts were also busy about his own advancement. And to these sheets of miscellaneous memoranda Bacon confided not only his occupations and his philosophical and political ideas, but, with a curious innocent unreserve, the arts and methods which he proposed to use in order to win the favour of the great and to pull down the reputation of his rivals. He puts down in detail how he is to recommend himself to the King and the King's favourites—

"To set on foot and maintain access with his Majesty, Dean of the Chapel, May, Murray. Keeping a course of access at the beginning of every term and vacation, with a memorial. To attend some time his repasts, or to fall into a course of familiar discourse. To find means to win a conceit, not open, but private, of being affectionate and assured to the Scotch, and fit to succeed Salisbury in his manage in that kind; Lord Dunbar, Duke of Lennox, and Daubiny: secret."

Then, again, of Salisbury—

"Insinuate myself to become privy to my Lord of Salisbury's estate."

"To correspond with Salisbury in a habit of natural but no ways

perilous boldness, and in vivacity, invention, care to cast and enterprise (but with due caution), for this manner I judge both in his nature freeth the stands, and in his ends pleaseth him best, and promiseth more use of me. I judge my standing out, and not favoured by Northampton, must needs do me good with Salisbury, especially comparative to the Attorney."

The Attorney Hobart filled the place to which Bacon had so long aspired, and which he thought, perhaps reasonably, that he could fill much better. At any rate, one of the points to which he recurs frequently in his notes is to exhort himself to make his own service a continual contrast to the Attorney's—"to have in mind and use the Attorney's weakness," enumerating a list of instances: "Too full of cases and distinctions. Nibbling solemnly, he distinguisheth but apprehends not;" "No gift with his pen in proclamations and the like;" and at last he draws out in a series of epigrams his view of "Hubbard's disadvantages"—

"Better at shift than at drift.... *Subtilitas sine acrimonia*.... No power with the judge.... He will alter a thing but not mend.... He puts into patents and deeds words not of law but of common sense and discourse.... Sociable save in profit.... He doth depopulate mine office; otherwise called inclose.... I never knew any one of so good a speech with a worse pen." ...

Then in a marginal note—"Solemn goose. Stately, leastwise nodd (?) crafty. They have made him believe that he is wondrous wise." And, finally, he draws up a paper of counsels and rules for his own conduct—"*Custumæ aptæ ad Individuum*"—which might supply an outline for an essay on the arts of behaviour proper for a rising official, a sequel to the biting irony of the essays on *Cunning* and *Wisdom for a Man's Self*.

"To furnish my L. of S. with ornaments for public speeches. To make him think how he should be revered by a Lord Chancellor, if I were; Princelike.

"To prepare him for matters to be handled in Council or before the King aforehand, and to show him and yield him the fruits of my care.

"To take notes in tables, when I attend the Council, and sometimes to move out of a memorial shewed and seen. To have particular occasions, fit and graceful and continual, to maintain private speech with every the great persons, and sometimes drawing more than one together. *Ex imitatione Att.* This specially in public places, and without care or affectation. At Council table to make good my L. of Salisb. motions and speeches, and for the rest sometimes one sometimes another; chiefly his, that is most earnest and in affection.

"To suppress at once my speaking, with panting and labour of breath and voice. Not to fall upon the main too sudden, but to induce and intermingle speech of good fashion. To use at once upon entrance given of speech, though abrupt, to compose and draw in myself. To free myself at once from payt. (?) of formality and compliment, though with some show of carelessness, pride, and rudeness."

(And then follows a long list of matters of business to be attended to.)

These arts of a court were not new; it was not new for men to observe them in their neighbours and rivals. What was new was the writing them down, with deliberate candour, among a man's private memoranda, as things to be done and with the intention of practising them. This of itself, it has been suggested, shows that they were unfamiliar and uncongenial to Bacon; for a man reminds himself of what he is apt to forget. But a man reminds himself also of what seems to him, at the moment, most important, and what he lays most stress upon. And it is clear that these are the rules, rhetorical and ethical, which Bacon laid down for himself in pursuing the second great object of his life—his official advancement; and that, whatever we think of them, they were the means which he deliberately approved.

As long as Salisbury lived, the distrust which had kept Bacon so long in the shade kept him at a distance from the King's ear, and from influence on his counsels. Salisbury was the one Englishman in whom the King had become accustomed to confide, in his own conscious strangeness to English ways and real dislike and suspicion of them; Salisbury had an authority which no one else had, both from his relations with James at the end of Elizabeth's reign, and as the representative of her policy and the depositary of its traditions; and if he had lived, things might not, perhaps, have been better in

James's government, but many things, probably, would have been different. But while Salisbury was supreme, Bacon, though very alert and zealous, was mainly busied with his official work; and the Solicitor's place had become, as he says, a "mean thing" compared with the Attorney's, and also an extremely laborious place—"one of the painfulest places in the kingdom." Much of it was routine, but responsible and fatiguing routine. But if he was not in Salisbury's confidence, he was prominent in the House of Commons. The great and pressing subject of the time was the increasing difficulties of the revenue, created partly by the inevitable changes of a growing state, but much more by the King's incorrigible wastefulness. It was impossible to realise completely the great dream and longing of the Stuart kings and their ministers to make the Crown independent of parliamentary supplies; but to dispense with these supplies as much as possible, and to make as much as possible of the revenue permanent, was the continued and fatal policy of the Court. The "Great Contract"—a scheme by which, in return for the surrender by the Crown of certain burdensome and dangerous claims of the Prerogative, the Commons were to assure a large compensating yearly income to the Crown—was Salisbury's favourite device during the last two years of his life. It was not a prosperous one. The bargain was an ill-imagined and not very decorous transaction between the King and his people. Both parties were naturally jealous of one another, suspicious of underhand dealing and tacit changes of terms, prompt to resent and take offence, and not easy to pacify when they thought advantage had been taken; and Salisbury, either by his own fault, or by yielding to the King's canny shiftiness, gave the business a more haggling and huckstering look than it need have had. Bacon, a subordinate of the Government, but a very important person in the Commons, did his part, loyally, as it seems, and skilfully in smoothing differences and keeping awkward questions from making their appearance. Thus he tried to stave off the risk of bringing definitely to a point the King's cherished claim to levy "impositions," or custom duties, on merchandise, by virtue of his prerogative—a claim which he warned the Commons not to dispute, and which Bacon, maintaining it as legal in theory, did his best to prevent them from discussing, and to persuade them to be content with restraining. Whatever he thought of the "Great Contract," he did what was expected of him in trying to gain for it fair play. But he made time for other things also. He advised, and advised soundly, on the plantation and finance of Ireland. It

was a subject in which he took deep interest. A few years later, with only too sure a foresight, he gave the warning, "lest Ireland civil become more dangerous to us than Ireland savage." He advised—not soundly in point of law, but curiously in accordance with modern notions—about endowments; though, in this instance, in the famous will case of Thomas Sutton, the founder of the Charter House, his argument probably covered the scheme of a monstrous job in favour of the needy Court. And his own work went on in spite of the pressure of the Solicitor's place. To the first years of his official life belong three very interesting fragments, intended to find a provisional place in the plan of the "Great Instauration." To his friend Toby Matthews, at Florence, he sent in manuscript the great attack on the old teachers of knowledge, which is perhaps the most brilliant, and also the most insolently unjust and unthinking piece of rhetoric ever composed by him—the *Redargutio Philosophiarum*.

"I send you at this time the only part which hath any harshness; and yet I framed to myself an opinion, that whosoever allowed well of that preface which you so much commend, will not dislike, or at least ought not to dislike, this other speech of preparation; for it is written out of the same spirit, and out of the same necessity. Nay it doth more fully lay open that the question between me and the ancients is not of the virtue of the race, but of the rightness of the way. And to speak truth, it is to the other but as *palma* to *pugnus*, part of the same thing more large.... Myself am like the miller of Huntingdon, that was wont to pray for peace amongst the willows; for while the winds blew, the wind-mills wrought, and the water-mill was less customed. So I see that controversies of religion must hinder the advancement of sciences. Let me conclude with my perpetual wish towards yourself, that the approbation of yourself by your own discreet and temperate carriage, may restore you to your country, and your friends to your society. And so I commend you to God's goodness.

"Gray's Inn, this 10th of October, 1609."

To Bishop Andrewes he sent, also in manuscript, another piece, belonging to the same plan—the deeply impressive treatise called *Visa et Cogitata*—what Francis Bacon had seen of nature and knowledge, and what he had

come by meditation to think of what he had seen. The letter is not less interesting than the last, in respect to the writer's purposes, his manner of writing, and his relations to his correspondent.

"MY VERY GOOD LORD,—Now your Lordship hath been so long in the church and the palace disputing between kings and popes, methinks you should take pleasure to look into the field, and refresh your mind with some matter of philosophy, though that science be now through age waxed a child again, and left to boys and young men; and because you were wont to make me believe you took liking to my writings, I send you some of this vacation's fruits, and thus much more of my mind and purpose. I hasten not to publish; perishing I would prevent. And I am forced to respect as well my times as the matter. For with me it is thus, and I think with all men in my case, if I bind myself to an argument, it loadeth my mind; but if I rid my mind of the present cogitation, it is rather a recreation. This hath put me into these miscellanies, which I purpose to suppress, if God give me leave to write a just and perfect volume of philosophy, which I go on with, though slowly. I send not your Lordship too much, lest it may glut you. Now let me tell you what my desire is. If your Lordship be so good now as when you were the good Dean of Westminster, my request to you is, that not by pricks, but by notes, you would mark unto me whatsoever shall seem unto you either not current in the style, or harsh to credit and opinion, or inconvenient for the person of the writer; for no man can be judge and party, and when our minds judge by reflection of ourselves, they are more subject to error. And though for the matter itself my judgement be in some things fixed, and not accessible by any man's judgement that goeth not my way, yet even in those things the admonition of a friend may make me express myself diversly. I would have come to your Lordship, but that I am hastening to my house in the country. And so I commend your Lordship to God's goodness."

There was yet another production of this time, of which we have a notice from himself in a letter to Toby Matthews, the curious and ingenious little treatise on the *Wisdom of the Ancients*, "one of the most popular of his works," says Mr. Spedding, "in his own and in the next generation," but of

value to us mainly for its quaint poetical colour, and the unexpected turns, like answers to a riddle, given to the ancient fables. When this work was published, it was the third time that he had appeared as an author in print. He thus writes about it and himself:

"MR. MATTHEWS,—I do heartily thank you for your letter of the 24th of August from Salamanca; and in recompense thereof I send you a little work of mine that hath begun to pass the world. They tell me my Latin is turned into silver, and become current. Had you been here, you should have been my inquisitor before it came forth; but I think the greatest inquisitor in Spain will allow it.... My great work goeth forward, and, after my manner, I alter ever when I add. So that nothing is finished till all be finished.

"From Gray's Inn, the 17th of February, 1610."

In the autumn of 1611 the Attorney-General was ill, and Bacon reminded both the King and Salisbury of his claim. He was afraid, he writes to the King, with an odd forgetfulness of the persistency and earnestness of his applications, "that *by reason of my slowness to sue*, and apprehend occasions upon the sudden, keeping one plain course of painful service, I may *in fine dierum* be in danger to be neglected and forgotten." The Attorney recovered, but Bacon, on New Year's Tide of 1611/12, wrote to Salisbury to thank him for his good-will. It is the last letter of Bacon's to Salisbury which has come down to us.

"IT MAY PLEASE YOUR GOOD LORDSHIP,—I would entreat the new year to answer for the old, in my humble thanks to your Lordship, both for many your favours, and chiefly that upon the occasion of Mr. Attorney's infirmity I found your Lordship even as I would wish. This doth increase a desire in me to express my thankful mind to your Lordship; hoping that though I find age and decays grow upon me, yet I may have a flash or two of spirit left to do you service. And I do protest before God, without compliment or any light vein of mind, that if I knew in what course of life to do you best service, I would take it, and make my thoughts, which now fly to many pieces, be reduced to that center. But all this is no more than I am, which is not much, but yet the entire of him that is—"

In the following May (May 24, 1612) Salisbury died. From this date James passed from government by a minister, who, whatever may have been his faults, was laborious, public-spirited, and a statesman, into his own keeping and into the hands of favourites, who cared only for themselves. With Cecil ceased the traditions of the days of Elizabeth and Burghley, in many ways evil and cruel traditions, but not ignoble and sordid ones; and James was left without the stay, and also without the check, which Cecil's power had been to him. The field was open for new men and new ways; the fashions and ideas of the time had altered during the last ten years, and those of the Queen's days had gone out of date. Would the new turn out for the better or the worse? Bacon, at any rate, saw the significance of the change and the critical eventfulness of the moment. It was his habit of old to send memorials of advice to the heads of the Government, apparently without such suggestions seeming more intrusive or officious than a leading article seems now, and perhaps with much the same effect. It was now a time to do so, if ever; and he was in an official relation to the King which entitled him to proffer advice. He at once prepared to lay his thoughts before the King, and to suggest that he could do far better service than Cecil, and was ready to take his place. The policy of the "Great Contract" had certainly broken down, and the King, under Cecil's guidance, had certainly not known how to manage an English parliament. In writing to the King he found it hard to satisfy himself. Several draft letters remain, and it is not certain which of them, if any, was sent. But immediately on Salisbury's death he began, May 29th, a letter in which he said that he had never yet been able to show his affection to the King, "having been as a hawk tied to another's fist;" and if, "as was said to one that spake great words, *Amice, verba tua desiderant civitatem*, your Majesty say to me, *Bacon, your words require a place to speak them*," yet that "place or not place" was with the King. But the draft breaks off abruptly, and with the date of the 31st we have the following:

"Your Majesty hath lost a great subject and a great servant. But if I should praise him in propriety, I should say that he was a fit man to keep things from growing worse, but no very fit man to reduce things to be much better. For he loved to have the eyes of all Israel a little too much upon himself, and to have all business still under the hammer, and like clay in the hands of the potter, to mould it as he thought good; so that he was more *in operatione* than *in opere*. And though he had

fine passages of action, yet the real conclusions came slowly on. So that although your Majesty hath grave counsellors and worthy persons left, yet you do as it were turn a leaf, wherein if your Majesty shall give a frame and constitution to matters, before you place the persons, in my simple opinion it were not amiss. But the great matter and most instant for the present, is the consideration of a Parliament, for two effects: the one for the supply of your estate, the other for the better knitting of the hearts of your subjects unto your Majesty, according to your infinite merit; for both which, Parliaments have been and are the antient and honourable remedy.

"Now because I take myself to have a little skill in that region, as one that ever affected that your Majesty mought in all your causes not only prevail, but prevail with satisfaction of the inner man; and though no man can say but I was a perfect and peremptory royalist, yet every man makes me believe that I was never one hour out of credit with the Lower House; my desire is to know whether your Majesty will give me leave to meditate and propound unto you some preparative remembrances touching the future Parliament."

Whether he sent this or not, he prepared another draft. What had happened in the mean while we know not, but Bacon was in a bitter mood, and the letter reveals, for the first time, what was really in Bacon's heart about the "great subject and great servant," of whom he had just written so respectfully, and with whom he had been so closely connected for most of his life. The fierceness which had been gathering for years of neglect and hindrance under that placid and patient exterior broke out. He offered himself as Cecil's successor in business of State. He gave his reason for being hopeful of success. Cecil's bitterest enemy could not have given it more bitterly.

"My principal end being to do your Majesty service, I crave leave to make at this time to your Majesty this most humble oblation of myself. I may truly say with the psalm, *Multum incola fuit anima mea*, for my life hath been conversant in things wherein I take little pleasure. Your Majesty may have heard somewhat that my father was an honest man, and somewhat you may have seen of myself, though not to make any

true judgement by, because I have hitherto had only *potestatem verborum*, nor that neither. I was three of my young years bred with an ambassador in France, and since I have been an old truant in the school-house of your council-chamber, though on the second form, yet longer than any that now sitteth hath been upon the head form. If your Majesty find any aptness in me, or if you find any scarcity in others, whereby you may think it fit for your service to remove me to business of State, although I have a fair way before me for profit (and by your Majesty's grace and favour for honour and advancement), and in a course less exposed to the blasts of fortune, *yet now that he is gone, quo vivente virtutibus certissimum exitium*, I will be ready as a chessman to be wherever your Majesty's royal hand shall set me. Your Majesty will bear me witness, I have not suddenly opened myself thus far. I have looked upon others, I see the exceptions, I see the distractions, and I fear Tacitus will be a prophet, *magis alii homines quam alii mores*. I know mine own heart, and I know not whether God that hath touched my heart with the affection may not touch your royal heart to discern it. Howsoever, I shall at least go on honestly in mine ordinary course, and supply the rest in prayers for you, remaining, etc."

This is no hasty outburst. In a later paper on the true way of retrieving the disorders of the King's finances, full of large and wise counsel, after advising the King not to be impatient, and assuring him that a state of debt is not so intolerable—"for it is no new thing for the greatest Kings to be in debt," and all the great men of the Court had been in debt without any "manner of diminution of their greatness"—he returns to the charge in detail against Salisbury and the Great Contract.

"My second prayer is, that your Majesty—in respect to the hasty freeing of your state—would not descend to any means, or degree of means, which carrieth not a symmetry with your Majesty and greatness. *He is gone from whom those courses did wholly flow*. To have your wants and necessities in particular as it were hanged up in two tablets before the eyes of your lords and commons, to be talked of for four months together; To have all your courses to help yourself in revenue or profit put into printed books, which were wont to be held

*arcana imperii*; To have such worms of aldermen to lend for ten in the hundred upon good assurance, and with such entreaty (?) as if it should save the bark of your fortune; To contract still where mought be had the readiest payment, and not the best bargain; To stir a number of projects for your profit, and then to blast them, and leave your Majesty nothing but the scandal of them; To pretend even carriage between your Majesty's rights and ease of the people, and to satisfy neither. These courses and others the like I hope are gone with the deviser of them; which have turned your Majesty to inestimable prejudice."

And what he thought of saying, but on further consideration struck out, was the following. It is no wonder that he struck it out, but it shows what he felt towards Cecil.

"I protest to God, though I be not superstitious, when I saw your M.'s book against Vorstius and Arminius, and noted your zeal to deliver the majesty of God from the vain and indign comprehensions of heresy and degenerate philosophy, as you had by your pen formerly endeavoured to deliver kings from the usurpation of Rome, *perculsit illico animum* that God would set shortly upon you some visible favour, *and let me not live if I thought not of the taking away of that man.*"

And from this time onwards he scarcely ever mentions Cecil's name in his correspondence with James but with words of condemnation, which imply that Cecil's mischievous policy was the result of private ends. Yet this was the man to whom he had written the "New Year's Tide" letter six months before; a letter which is but an echo to the last of all that he had been accustomed to write to Cecil when asking assistance or offering congratulation. Cecil had, indeed, little claim on Bacon's gratitude; he had spoken him fair in public, and no doubt in secret distrusted and thwarted him. But to the last Bacon did not choose to acknowledge this. Had James disclosed something of his dead servant, who left some strange secrets behind him, which showed his unsuspected hostility to Bacon? Except on this supposition (but there is nothing to support it), no exaggeration of the liberty allowed to the language of compliment is enough to clear Bacon of

an insincerity which is almost inconceivable in any but the meanest tools of power.

"I assure myself," wrote Bacon to the King, "your Majesty taketh not me for one of a busy nature; for my estate being free from all difficulties, and I having such a large field for contemplation, as I have partly and shall much more make manifest unto your Majesty and the world, to occupy my thoughts, nothing could make me active but love and affection." So Bacon described his position with questionable accuracy—for his estate was not "free from difficulties"—in the new time coming. He was still kept out of the inner circle of the Council; but from the moment of Salisbury's death he became a much more important person. He still sued for advancement, and still met with disappointment; the "mean men" still rose above him. The lucrative place of Master of the Wards was vacated by Salisbury's death. Bacon was talked of for it, and probably expected it, for he drew up new rules for it, and a speech for the new master; but the office and the speech went to Sir George Carey. Soon after Sir George Carey died. Bacon then applied for it through the new favourite, Rochester. "He was so confident of the place that he put most of his men into new cloaks;" and the world of the day amused itself at his disappointment, when the place was given to another "mean man," Sir Walter Cope, of whom the gossips wrote that if the "last two Treasurers could look out of their graves to see those successors in that place, they would be out of countenance with themselves, and say to the world *quantum mutatus*." But Bacon's hand and counsel appear more and more in important matters—the improvement of the revenue; the defence of extreme rights of the prerogative in the case against Whitelocke; the great question of calling a parliament, and of the true and "princely" way of dealing with it. His confidential advice to the King about calling a parliament was marked by his keen perception of the facts of the situation; it was marked too by his confident reliance on skilful indirect methods and trust in the look of things; it bears traces also of his bitter feeling against Salisbury, whom he charges with treacherously fomenting the opposition of the last Parliament. There was no want of worldly wisdom in it; certainly it was more adapted to James's ideas of state-craft than the simpler plan of Sir Henry Nevill, that the King should throw himself frankly on the loyalty and good-will of Parliament. And thus he came to be on easy terms with James, who was quite capable of understanding Bacon's resource and nimbleness

of wit. In the autumn of 1613 the Chief-Justiceship of the King's Bench became vacant. Bacon at once gave the King reasons for sending Coke from the Common Pleas—where he was a check on the prerogative—to the King's Bench, where he could do less harm; while Hobart went to the Common Pleas. The promotion was obvious, but the Common Pleas suited Coke better, and the place was more lucrative. Bacon's advice was followed. Coke, very reluctantly, knowing well who had given it, and why, "not only weeping himself but followed by the tears" of all the Court of Common Pleas, moved up to the higher post. The Attorney Hobart succeeded, and Bacon at last became Attorney (October 27, 1613). In Chamberlain's gossip we have an indication, such as occurs only accidentally, of the view of outsiders: "There is a strong apprehension that little good is to be expected by this change, and that Bacon may prove a dangerous instrument."

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## CHAPTER V.

### BACON ATTORNEY-GENERAL AND CHANCELLOR.

Thus, at last, at the age of fifty-two, Bacon had gained the place which Essex had tried to get for him at thirty-two. The time of waiting had been a weary one, and it is impossible not to see that it had been hurtful to Bacon. A strong and able man, very eager to have a field for his strength and ability, who is kept out of it, as he thinks unfairly, and is driven to an attitude of suppliant dependency in pressing his claim on great persons who amuse him with words, can hardly help suffering in the humiliating process. It does a man no good to learn to beg, and to have a long training in the art. And further, this long delay kept up the distraction of his mind between the noble work on which his soul was bent, and the necessities of that "civil" or professional and political life by which he had to maintain his estate. All the time that he was "canvassing" (it is his own word) for office, and giving up his time and thoughts to the work which it involved, the great *Instauration* had to wait his hours of leisure; and his exclamation, so often repeated, *Multum incola fuit anima mea*, bears witness to the longings that haunted him in his hours of legal drudgery, or in the service of his not very thankful employers. Not but that he found compensation in the interest of public questions, in the company of the great, in the excitement of state-craft and state employment, in the pomp and enjoyment of court life. He found too much compensation; it was one of his misfortunes. But his heart was always sound in its allegiance to knowledge; and if he had been fortunate enough to have risen earlier to the greatness which he aimed at as a vantage-ground for his true work, or if he had had self-control to have dispensed with wealth and position—if he had escaped the long necessity of being a persistent and still baffled suitor—we might have had as a completed whole what we have now only in great fragments, and we should have been spared the blots which mar a career which ought to have been a noble one.

The first important matter that happened after Bacon's new appointment was the Essex divorce case, and the marriage of Lady Essex with the favourite whom Cecil's death had left at the height of power, and who from Lord Rochester was now made Earl of Somerset. With the divorce, the beginning of the scandals and tragedies of James's reign, Bacon had nothing to do. At the marriage which followed Bacon presented as his offering a masque, performed by the members of Gray's Inn, of which he bore the charges, and which cost him the enormous sum of £2000. Whether it were to repay his obligations to the Howards, or in lieu of a "fee" to Rochester, who levied toll on all favours from the King, it can hardly be said, as has been suggested, to be a protest against the great abuse of the times, the sale of offices for money. The "very splendid trifle, the Masque of Flowers," was one form of the many extravagant tributes paid but too willingly to high-handed worthlessness, of which the deeper and darker guilt was to fill all faces with shame two years afterwards.

As Attorney, Bacon had to take a much more prominent part in affairs, legal, criminal, constitutional, administrative, than he had yet been allowed to have. We know that it was his great object to show how much more active and useful an Attorney he could be than either Coke or Hobart; and as far as unflagging energy and high ability could make a good public servant, he fully carried out his purpose. In Parliament, the "addled Parliament" of 1614, in which he sat for the University of Cambridge, he did his best to reconcile what were fast becoming irreconcilable, the claims and prerogatives of an absolute king, irritable, suspicious, exacting, prodigal, with the ancient rights and liberties, growing stronger in their demands by being denied, resisted, or outwitted, of the popular element in the State. In the trials, which are so large and disagreeable a part of the history of these years—trials arising out of violent words provoked by the violent acts of power, one of which, Peacham's, became famous, because in the course of it torture was resorted to, or trials which witnessed to the corruption of the high society of the day, like the astounding series of arraignments and condemnations following on the discoveries relating to Overbury's murder, which had happened just before the Somerset marriage—Bacon had to make the best that he could for the cruel and often unequal policy of the Court; and Bacon must take his share in the responsibility for it. An effort on James's part to stop duelling brought from Bacon a worthier

piece of service, in the shape of an earnest and elaborate argument against it, full of good sense and good feeling, but hopelessly in advance of the time. On the many questions which touched the prerogative, James found in his Attorney a ready and skilful advocate of his claims, who knew no limit to them but in the consideration of what was safe and prudent to assert. He was a better and more statesmanlike counsellor, in his unceasing endeavours to reconcile James to the expediency of establishing solid and good relations with his Parliament, and in his advice as to the wise and hopeful ways of dealing with it. Bacon had no sympathy with popular wants and claims; of popularity, of all that was called popular, he had the deepest suspicion and dislike; the opinions and the judgment of average men he despised, as a thinker, a politician, and a courtier; the "malignity of the people" he thought great. "I do not love," he says, "the word *people*." But he had a high idea of what was worthy of a king, and was due to the public interests, and he saw the folly of the petty acts and haughty words, the use of which James could not resist. In his new office he once more urged on, and urged in vain, his favourite project for revising, simplifying, and codifying the law. This was a project which would find little favour with Coke, and the crowd of lawyers who venerated him—men whom Bacon viewed with mingled contempt and apprehension both in the courts and in Parliament where they were numerous, and whom he more than once advised the King to bridle and keep "in awe." Bacon presented his scheme to the King in a Proposition, or, as we should call it, a Report. It is very able and interesting; marked with his characteristic comprehensiveness and sense of practical needs, and with a confidence in his own knowledge of law which contrasts curiously with the current opinion about it. He speaks with the utmost honour of Coke's work, but he is not afraid of a comparison with him. "I do assure your Majesty," he says, "I am in good hope that when Sir Edward Coke's Reports and my Rules and Decisions shall come to posterity, there will be (whatever is now thought) question who was the greater lawyer." But the project, though it was entertained and discussed in Parliament, came to nothing. No one really cared about it except Bacon.

But in these years (1615 and 1616) two things happened of the utmost consequence to him. One was the rise, more extravagant than anything that England had seen for centuries, and in the end more fatal, of the new favourite, who from plain George Villiers became the all-powerful Duke of

Buckingham. Bacon, like the rest of the world, saw the necessity of bowing before him; and Bacon persuaded himself that Villiers was pre-eminently endowed with all the gifts and virtues which a man in his place would need. We have a series of his letters to Villiers; they are of course in the complimentary vein which was expected; but if their language is only compliment, there is no language left for expressing what a man wishes to be taken for truth. The other matter was the humiliation, by Bacon's means and in his presence, of his old rival Coke. In the dispute about jurisdiction, always slumbering and lately awakened and aggravated by Coke, between the Common Law Courts and the Chancery, Coke had threatened the Chancery with *Præmunire*. The King's jealousy took alarm, and the Chief-Justice was called before the Council. There a decree, based on Bacon's advice and probably drawn up by him, peremptorily overruled the legal doctrine maintained by the greatest and most self-confident judge whom the English courts had seen. The Chief-Justice had to acquiesce in this reading of the law; and then, as if such an affront were not enough, Coke was suspended from his office, and, further, enjoined to review and amend his published reports, where they were inconsistent with the view of law which on Bacon's authority the Star Chamber had adopted (June, 1616). This he affected to do, but the corrections were manifestly only colourable; his explanations of his legal heresies against the prerogative, as these heresies were formulated by the Chancellor and Bacon, and presented to him for recantation, were judged insufficient; and in a decree, prefaced by reasons drawn up by Bacon, in which, besides Coke's errors of law, his "deceit, contempt, and slander of the Government," his "perpetual turbulent carriage," and his affectation of popularity, were noted—he was removed from his office (Nov., 1616). So, for the present, the old rivalry had ended in a triumph for Bacon. Bacon, whom Coke had so long headed in the race, whom he had sneered at as a superficial pretender to law, and whose accomplishments and enthusiasm for knowledge he utterly despised, had not only defeated him, but driven him from his seat with dishonour. When we remember what Coke was, what he had thought of Bacon, and how he prized his own unique reputation as a representative of English law, the effects of such a disgrace on a man of his temper cannot easily be exaggerated.

But for the present Bacon had broken through the spell which had so long kept him back. He won a great deal of the King's confidence, and the King was more and more ready to make use of him, though by no means equally willing to think that Bacon knew better than himself. Bacon's view of the law, and his resources of argument and expression to make it good, could be depended upon in the keen struggle to secure and enlarge the prerogative which was now beginning. In the prerogative both James and Bacon saw the safety of the State and the only reasonable hope of good government; but in Bacon's larger and more elevated views of policy—of a policy worthy of a great king, and a king of England—James was not likely to take much interest. The memorials which it was Bacon's habit to present on public affairs were wasted on one who had so little to learn from others—so he thought and so all assured him—about the secrets of empire. Still they were proofs of Bacon's ready mind; and James, even when he disagreed with Bacon's opinion and arguments, was too clever not to see their difference from the work of other men. Bacon rose in favour; and from the first he was on the best of terms with Villiers. He professed to Villiers the most sincere devotion. According to his custom he presented him with a letter of wise advice on the duties and behaviour of a favourite. He at once began, and kept up with him to the end, a confidential correspondence on matters of public importance. He made it clear that he depended upon Villiers for his own personal prospects, and it had now become the most natural thing that Bacon should look forward to succeeding the Lord Chancellor, Ellesmere, who was fast failing. Bacon had already (Feb. 12, 1615/16). in terms which seem strange to us, but were less strange then, set forth in a letter to the King the reasons why he should be Chancellor; criticising justly enough, only that he was a party interested, the qualifications of other possible candidates, Coke, Hobart, and the Archbishop Abbott. Coke would be "an overruling nature in an overruling place," and "popular men were no sure mounters for your Majesty's saddle." Hobart was incompetent. As to Abbott, the Chancellor's place required "a whole man," and to have both jurisdiction, spiritual and temporal, "was fit only for a king." The promise that Bacon should have the place came to him three days afterwards through Villiers. He acknowledged it in a burst of gratitude (Feb. 15, 1615/16). "I will now wholly rely on your excellent and happy self.... I am yours surer to you than my own life. For, as they speak of the Turquoise stone in a ring, I will break into twenty pieces before you

bear the least fall." They were unconsciously prophetic words. But Ellesmere lasted longer than was expected. It was not till a year after this promise that he resigned. On the 7th of March, 1616/17, Bacon received the seals. He expresses his obligations to Villiers, now Lord Buckingham, in the following letter:

"MY DEAREST LORD,—It is both in cares and kindness that small ones float up to the tongue, and great ones sink down into the heart with silence. Therefore I could speak little to your Lordship to-day, neither had I fit time; but I must profess thus much, that in this day's work you are the truest and perfectest mirror and example of firm and generous friendship that ever was in court. And I shall count every day lost, wherein I shall not either study your well-doing in thought, or do your name honour in speech, or perform you service in deed. Good my Lord, account and accept me your most bounden and devoted friend and servant of all men living,

"March 7, 1616 (*i.e.* 1616/1617).  
FR. BACON, C.S."

He himself believed the appointment to be a popular one. "I know I am come in," he writes to the King soon after, "with as strong an envy of some particulars as with the love of the general." On the 7th of May, 1617, he took his seat in Chancery with unusual pomp and magnificence, and set forth, in an opening speech, with all his dignity and force, the duties of his great office and his sense of their obligation. But there was a curious hesitation in treating him as other men were treated in like cases. He was only "Lord Keeper." It was not till the following January (1617/18) that he received the office of Lord Chancellor. It was not till half a year afterwards that he was made a Peer. Then he became Baron Verulam (July, 1618), and in January, 1620/21, Viscount St. Alban's.

From this time Bacon must be thought of, first and foremost, as a Judge in the great seat which he had so earnestly sought. It was the place not merely of law, which often tied the judge's hands painfully, but of true justice, when law failed to give it. Bacon's ideas of the duties of a judge were clear and strong, as he showed in various admirable speeches and charges: his duties as regards his own conduct and reputation; his duties in keeping his

subordinates free from the taint of corruption. He was not ignorant of the subtle and unacknowledged ways in which unlawful gains may be covered by custom, and an abuse goes on because men will not choose to look at it. He entered on his office with the full purpose of doing its work better than it had ever been done. He saw where it wanted reforming, and set himself at once to reform. The accumulation and delay of suits had become grievous; at once he threw his whole energy into the task of wiping out the arrears which the bad health of his predecessor and the traditional sluggishness of the court had heaped up. In exactly three months from his appointment he was able to report that these arrears had been cleared off. "This day" (June 8, 1617), he writes to Buckingham, "I have made even with the business of the kingdom for common justice. Not one cause unheard. The lawyers drawn dry of all the motions they were to make. Not one petition unheard. And this I think could not be said in our time before."

The performance was splendid, and there is no reason to think that the work so rapidly done was not well done. We are assured that Bacon's decisions were unquestioned, and were not complained of. At the same time, before this allegation is accepted as conclusive proof of the public satisfaction, it must be remembered that the question of his administration of justice, which was at last to assume such strange proportions, has never been so thoroughly sifted as, to enable us to pronounce upon it, it should be. The natural tendency of Bacon's mind would undoubtedly be to judge rightly and justly; but the negative argument of the silence at the time of complainants, in days when it was so dangerous to question authority, and when we have so little evidence of what men said at their firesides, is not enough to show that he never failed.

But the serious thing is that Bacon subjected himself to two of the most dangerous influences which can act on the mind of a judge—the influence of the most powerful and most formidable man in England, and the influence of presents, in money and other gifts. From first to last he allowed Buckingham, whom no man, as Bacon soon found, could displease except at his own peril, to write letters to him on behalf of suitors whose causes were before him; and he allowed suitors, not often while the cause was pending, but sometimes even then, to send him directly, or through his servants, large sums of money. Both these things are explained. It would

have been characteristic of Bacon to be confident that he could defy temptation: these habits were the fashion of the time, and everybody took them for granted; Buckingham never asked his good offices beyond what Bacon thought just and right, and asked them rather for the sake of expedition than to influence his judgment. And as to the money presents—every office was underpaid; this was the common way of acknowledging pains and trouble: it was analogous to a doctor's or a lawyer's fee now. And there is no proof that either influence ever led Bacon to do wrong. This has been said, and said with some degree of force. But if it shows that Bacon was not in this matter below his age, it shows that he was not above it. No one knew better than Bacon that there were no more certain dangers to honesty and justice than the interference and solicitation of the great, and the old famous pest of bribes, of which all histories and laws were full. And yet on the highest seat of justice in the realm he, the great reformer of its abuses, allowed them to make their customary haunt. He did not mean to do wrong: his conscience was clear; he had not given thought to the mischief they must do, sooner or later, to all concerned with the Court of Chancery. With a magnificent carelessness he could afford to run safely a course closely bordering on crime, in which meaner men would sin and be ruined.

Before six months were over Bacon found on what terms he must stand with Buckingham. By a strange fatality, quite unintentionally, he became dragged into the thick of the scandalous and grotesque dissensions of the Coke family. The Court was away from London in the North; and Coke had been trying, not without hope of success, to recover the King's favour. Coke was a rich man, and Lady Compton, the mother of the Villiers, thought that Coke's daughter would be a good match for one of her younger sons. It was really a great chance for Coke; but he haggled about the portion; and the opportunity, which might perhaps have led to his taking Bacon's place, passed. But he found himself in trouble in other ways; his friends, especially Secretary Winwood, contrived to bring the matter on again, and he consented to the Villiers's terms. But his wife, the young lady's mother, Lady Hatton, would not hear of it, and a furious quarrel followed. She carried off her daughter into the country. Coke, with a warrant from Secretary Winwood, which Bacon had refused to give him, pursued her: "with his son, 'Fighting Clem,' and ten or eleven servants, weaponed, in a violent manner he repaired to the house where she was remaining, and with

a piece of timber or form broke open the door and dragged her along to his coach." Lady Hatton rushed off the same afternoon for help to Bacon.

After an overturn by the way, "at last to my Lord Keeper's they come, but could not have instant access to him, for that his people told them he was laid at rest, being not well. Then my La. Hatton desired she might be in the next room where my Lord lay, that she might be the first that [should] speak with him after he was stirring. The door-keeper fulfilled her desire, and in the meantime gave her a chair to rest herself in, and there left her alone; but not long after, she rose up and bounced against my Lord Keeper's door, and waked him and affrighted him, that he called his men to him; and they opening the door, she thrust in with them, and desired his Lp. to pardon her boldness, but she was like a cow that had lost her calf, and so justified [herself] and pacified my Lord's anger, and got his warrant and my Lo. Treasurer's warrant and others of the Council to fetch her daughter from the father and bring them both to the Council."

It was a chance that the late Chief-Justice and his wife, with their armed parties, did not meet on the road, in which case "there were like to be strange tragedies." At length the Council compelled both sides to keep the peace, and the young lady was taken for the present out of the hands of her raging parents. Bacon had assumed that the affair was the result of an intrigue between Winwood and Coke, and that the Court would take part against Coke, a man so deep in disgrace and so outrageously violent. Supposing that he had the ear of Buckingham, he wrote earnestly, persuading him to put an end to the business; and in the meantime the Council ordered Coke to be brought before the Star Chamber "for riot and force," to "be heard and sentenced as justice shall appertain." They had not the slightest doubt that they were doing what would please the King. A few days after they met, and then they learned the truth.

"Coke and his friends," writes Chamberlain, "complain of hard measure from some of the greatest at that board, and that he was too much trampled upon with ill language. And our friend [*i.e.* Winwood] passed out scot free for the warrant, which the greatest [*word illegible*] there said was subject to a *præmunire*; and withal told the Lady

Compton that they wished well to her and her sons, and would be ready to serve the Earl of Buckingham with all true affection, whereas others did it out of faction and ambition—which words glancing directly at our good friend (Winwood), he was driven to make his apology, and to show how it was put upon him from time to time by the Queen and other parties; and, for conclusion, showed a letter of approbation of all his courses from the King, making the whole table judge what faction and ambition appeared in this carriage. *Ad quod non fuit responsum.*"

None indeed, but blank faces, and thoughts of what might come next. The Council, and Bacon foremost, had made a desperate mistake. "It is evident," as Mr. Spedding says, "that he had not divined Buckingham's feelings on the subject." He was now to learn them. To his utter amazement and alarm he found that the King was strong for the match, and that the proceeding of the Council was condemned at Court as gross misconduct. In vain he protested that he was quite willing to forward the match; that in fact he had helped it. Bacon's explanations, and his warnings against Coke the King "rejected with some disdain;" he justified Coke's action; he charged Bacon with disrespect and ingratitude to Buckingham; he put aside his arguments and apologies as worthless or insincere. Such reprimands had not often been addressed, even to inferior servants. Bacon's letters to Buckingham remained at first without notice; when Buckingham answered he did so with scornful and menacing curtness. Meanwhile Bacon heard from Yelverton how things were going at Court.

"Sir E. Coke," he wrote, "hath not forborne by any engine to heave at both your Honour and myself, and he works the weightiest instrument, the Earl of Buckingham, who, as I see, sets him as close to him as his shirt, the Earl speaking in Sir Edward's phrase, and as it were menacing in his spirit."

Buckingham, he went on to say, "did nobly and plainly tell me he would not secretly bite, but whosoever had had any interest, or tasted of the opposition to his brother's marriage, he would as openly oppose them to their faces, and they should discern what favour he had by the power he would use." The Court, like a pack of dogs, had set upon Bacon. "It is too common in

every man's mouth in Court that your greatness shall be abated, and as your tongue hath been as a razor unto some, so shall theirs be to you." Buckingham said to every one that Bacon had been forgetful of his kindness and unfaithful to him: "not forbearing in open speech to tax you, as if it were an inveterate custom with you, to be unfaithful unto him, as you were to the Earls of Essex and Somerset."

All this while Bacon had been clearly in the right. He had thrust himself into no business that did not concern him. He had not, as Buckingham accuses him of having done, "overtroubled" himself with the marriage. He had done his simple duty as a friend, as a councillor, as a judge. He had been honestly zealous for the Villiers's honour, and warned Buckingham of things that were beyond question. He had curbed Coke's scandalous violence, perhaps with no great regret, but with manifest reason. But for this he was now on the very edge of losing his office; it was clear to him, as it is clear to us, that nothing could save him but absolute submission. He accepted the condition. How this submission was made and received, and with what gratitude he found that he was forgiven, may be seen in the two following letters. Buckingham thus extends his grace to the Lord Keeper, and exhorts him to better behaviour:

"But his Majesty's direction in answer of your letter hath given me occasion to join hereunto a discovery unto you of mine inward thoughts, proceeding upon the discourse you had with me this day. For I do freely confess that your offer of submission unto me, and in writing (if so I would have it), battered so the unkindness that I had conceived in my heart for your behaviour towards me in my absence, as out of the sparks of my old affection towards you I went to sound his Majesty's intention how he means to behave himself towards you, specially in any public meeting; where I found on the one part his Majesty so little satisfied with your late answer unto him, which he counted (for I protest I use his own terms) *confused and childish*, and his vigorous resolution on the other part so fixed, that he would put some public exemplary mark upon you, as I protest the sight of his deep-conceived indignation quenched my passion, making me upon the instant change from the person of a party into a peace-maker; so as I was forced upon my knees to beg of his Majesty that he would put no

public act of disgrace upon you, and, as I dare say, no other person would have been patiently heard in this suit by his Majesty but myself, so did I (though not without difficulty) obtain thus much—that he would not so far disable you from the merit of your future service as to put any particular mark of disgrace upon your person. Only thus far his Majesty protesteth, that upon the conscience of his office he cannot omit (though laying aside all passion) to give a kingly reprimand at his first sitting in council to so many of his councillors as were then here behind, and were actors in this business, for their ill behaviour in it. Some of the particular errors committed in this business he will name, but without accusing any particular persons by name.

"Thus your Lordship seeth the fruits of my natural inclination; and I protest all this time past it was no small grief unto me to hear the mouth of so many upon this occasion open to load you with innumerable malicious and detracting speeches, as if no music were more pleasing to my ears than to rail of you, which made me rather regret the ill nature of mankind, that like dogs love to set upon him that they see once snatched at. And to conclude, my Lord, you have hereby a fair occasion so to make good hereafter your reputation by your sincere service to his Majesty, as also by your firm and constant kindness to your friends, as I may (your Lordship's old friend) participate of the comfort and honour that will thereby come to you. Thus I rest at last

"Your Lordship's faithful friend and servant,  
"G.B."

"MY EVER BEST LORD, now better than yourself,—Your Lordship's pen, or rather pencil, hath pourtrayed towards me such magnanimity and nobleness and true kindness, as methinketh I see the image of some ancient virtue, and not anything of these times. It is the line of my life, and not the lines of my letter, that must express my thankfulness; wherein if I fail, then God fail me, and make me as miserable as I think myself at this time happy by this reviver, through his Majesty's singular clemency, and your incomparable love and

favour. God preserve you, prosper you, and reward you for your kindness to

"Your raised and infinitely obliged friend and servant,

"Sept. 22, 1617.

FR. BACON, C.S."

Thus he had tried his strength with Buckingham. He had found that this, "a little parent-like" manner of advising him, and the doctrine that a true friend "ought rather to go against his mind than his good," was not what Buckingham expected from him. And he never ventured on it again. It is not too much to say that a man who could write as he now did to Buckingham, could not trust himself in any matter in which Buckingham, was interested.

But the reconciliation was complete, and Bacon took his place more and more as one of the chief persons in the Government. James claimed so much to have his own way, and had so little scruple in putting aside, in his superior wisdom, sometimes very curtly, Bacon's or any other person's recommendations, that though his services were great, and were not unrecognised, he never had the power and influence in affairs to which his boundless devotion to the Crown, his grasp of business, and his willing industry, ought to have entitled him. He was still a servant, and made to feel it, though a servant in the "first form." It was James and Buckingham who determined the policy of the country, or settled the course to be taken in particular transactions; when this was settled, it was Bacon's business to carry it through successfully. In this he was like all the other servants of the Crown, and like them he was satisfied with giving his advice, whether it were taken or not; but unlike many of them he was zealous in executing with the utmost vigour and skill the instructions which were given him. Thus he was required to find the legal means for punishing Raleigh; and, as a matter of duty, he found them. He was required to tell the Government side of the story of Raleigh's crimes and punishment—which really was one side of the story, only not by any means the whole; and he told it, as he had told the Government story against Essex, with force, moderation, and good sense. Himself, he never would have made James's miserable blunders about Raleigh; but the blunders being made, it was his business to do his best to help the King out of them. When Suffolk, the Lord Treasurer, was

disgraced and brought before the Star Chamber for corruption and embezzlement in his office, Bacon thought that he was doing no more than his duty in keeping Buckingham informed day by day how the trial was going on; how he had taken care that Suffolk's submission should not stop it—"for all would be but a play on the stage if justice went not on in the right course;" how he had taken care that the evidence went well—"I will not say I sometime help it, as far as was fit for a judge;" how, "a little to warm the business" ... "I spake a word, that he that did draw or milk treasure from Ireland, did not, *emulgere*, milk money, but blood." This, and other "little things" like it, while he was sitting as a judge to try, if the word may be used, a personal enemy of Buckingham, however bad the case might be against Suffolk, sound strange indeed to us; and not less so when, in reporting the sentence and the various opinions of the Council about it, he, for once, praises Coke for the extravagance of his severity: "Sir Edward Coke did his part—I have not heard him do better—and began with a fine of £100,000; but the judges first, and most of the rest, reduced it to £30,000. I do not dislike that thing passed moderately; and all things considered, it is not amiss, and might easily have been worse."

In all this, which would have been perfectly natural from an Attorney-General of the time, Bacon saw but his duty, even as a judge between the Crown and the subject. It was what was expected of those whom the King chose to employ, and whom Buckingham chose to favour. But a worse and more cruel case, illustrating the system which a man like Bacon could think reasonable and honourable, was the disgrace and punishment of Yelverton, the Attorney-General, the man who had stood by Bacon, and in his defence had faced Buckingham, knowing well Buckingham's dislike of himself, when all the Court turned against Bacon in his quarrel with Coke and Lady Compton. Towards the end of the year 1620, on the eve of a probable meeting of Parliament, there was great questioning about what was to be done about certain patents and monopolies—monopolies for making gold and silk thread, and for licensing inns and ale-houses—which were in the hands of Buckingham's brothers and their agents. The monopolies were very unpopular; there was always doubt as to their legality; they were enforced oppressively and vexatiously by men like Michell and Mompesson, who acted for the Villiers; and the profits of them went, for the most part, not into the Exchequer, but into the pockets of the hangers-on of

Buckingham. Bacon defended them both in law and policy, and his defence is thought by Mr. Gardiner to be not without grounds; but he saw the danger of obstinacy in maintaining what had become so hateful in the country, and strongly recommended that the more indefensible and unpopular patents should be spontaneously given up, the more so as they were of "no great fruit." But Buckingham's insolent perversity "refused to be convinced." The Council, when the question was before them, decided to maintain them. Bacon, who had rightly voted in the minority, thus explains his own vote to Buckingham: "The King did wisely put it upon and consult, whether the patents were at this time to be removed by Act of Council before Parliament. *I opined (but yet somewhat like Ovid's mistress, that strove, but yet as one that would be overcome), that yes!*" But in the various disputes which had arisen about them, Yelverton had shown that he very much disliked the business of defending monopolies, and sending London citizens to jail for infringing them. He did it, but he did it grudgingly. It was a great offence in a man whom Buckingham had always disliked; and it is impossible to doubt that what followed was the consequence of his displeasure.

"In drawing up a new charter for the city of London," writes Mr. Gardiner, "Yelverton inserted clauses for which he was unable to produce a warrant. The worst that could be said was that he had, through inadvertence, misunderstood the verbal directions of the King. Although no imputation of corruption was brought against him, yet he was suspended from his office, and prosecuted in the Star Chamber. He was then sentenced to dismissal from his post, to a fine of £4000, and to imprisonment during the Royal pleasure."

In the management of this business Bacon had the chief part. Yelverton, on his suspension, at once submitted. The obnoxious clauses are not said to have been of serious importance, but they were new clauses which the King had not sanctioned, and it would be a bad precedent to pass over such unauthorised additions even by an Attorney-General. "I mistook many things," said Yelverton afterwards, in words which come back into our minds at a later period, "I was improvident in some things, and too credulous in all things." It might have seemed that dismissal, if not a severe reprimand, was punishment enough. But the submission was not enough, in

Bacon's opinion, "for the King's honour." He dwelt on the greatness of the offence, and the necessity of making a severe example. According to his advice, Yelverton was prosecuted in the Star Chamber. It was not merely a mistake of judgment. "Herein," said Bacon, "I note the wisdom of the law of England, which termeth the highest contempt and excesses of authority *Misprisions*; which (if you take the sound and derivation of the word) is but *mistaken*; but if you take the use and acception of the word, it is high and heinous contempt and usurpation of authority; whereof the reason I take to be and the name excellently imposed, for that main mistaking, it is ever joined with contempt; for he that reveres will not easily mistake; but he that slights, and thinks more of the greatness of his place than of the duty of his place, will soon commit misprisions." The day would come when this doctrine would be pressed with ruinous effect against Bacon himself. But now he expounded with admirable clearness the wrongness of carelessness about warrants and of taking things for granted. He acquitted his former colleague of "corruption of reward;" but "in truth that makes the offence rather divers than less;" for some offences "are black, and others scarlet, some sordid, some presumptuous." He pronounced his sentence—the fine, the imprisonment; "for his place, I declare him unfit for it." "And the next day," says Mr. Spedding, "he reported to Buckingham the result of the proceeding," and takes no small credit for his own part in it.

It was thus that the Court used Bacon, and that Bacon submitted to be used. He could have done, if he had been listened to, much nobler service. He had from the first seen, and urged as far as he could, the paramount necessity of retrenchment in the King's profligate expenditure. Even Buckingham had come to feel the necessity of it at last; and now that Bacon filled a seat at the Council, and that the prosecution of Suffolk and an inquiry into the abuses of the Navy had forced on those in power the urgency of economy, there was a chance of something being done to bring order into the confusion of the finances. Retrenchment began at the King's kitchen and the tables of his servants; an effort was made, not unsuccessfully, to extend it wider, under the direction of Lionel Cranfield, a self-made man of business from the city; but with such a Court the task was an impossible one. It was not Bacon's fault, though he sadly mismanaged his own private affairs, that the King's expenditure was not managed soberly and wisely. Nor was it Bacon's fault, as far as advice went, that James was always trying either to evade or to outwit a Parliament which he could not, like the Tudors, overawe. Bacon's uniform counsel had been—Look on a Parliament as a certain necessity, but not only as a necessity, as also a unique and most precious means for uniting the Crown with the nation, and proving to the world outside how Englishmen love and honour their King, and their King trusts his subjects. Deal with it frankly and nobly as becomes a king, not suspiciously like a huckster in a bargain. Do not be afraid of Parliament. Be skilful in calling it, but don't attempt to "pack" it. Use all due adroitness and knowledge of human nature, and necessary firmness and majesty, in managing it; keep unruly and mischievous people in their place, but do not be too anxious to meddle—"let nature work;" and above all, though of course you want money from it, do not let that appear as the chief or real cause of calling it. Take the lead in legislation. Be ready with some interesting or imposing points of reform, or policy, about which you ask your Parliament to take counsel with you. Take care to "frame and have ready some commonwealth bills, that may add respect to the King's government and acknowledgment of his care; not *wooing* bills to make the King and his graces cheap, but good matter to set the Parliament on work, that an empty stomach do not feed on humour." So from the first had Bacon always thought; so he thought when he watched, as a spectator, James's blunders with his first Parliament of 1604; so had he earnestly counselled

James, when admitted to his confidence, as to the Parliaments of 1614 and 1615; so again, but in vain, as Chancellor, he advised him to meet the Parliament of 1620. It was wise, and from his point of view honest advice, though there runs all through it too much reliance on appearances which were not all that they seemed; there was too much thought of throwing dust in the eyes of troublesome and inconvenient people. But whatever motives there might have been behind, it would have been well if James had learned from Bacon how to deal with Englishmen. But he could not. "I wonder," said James one day to Gondomar, "that my ancestors should ever have permitted such an institution as the House of Commons to have come into existence. I am a stranger, and found it here when I arrived, so that I am obliged to put up with what I cannot get rid of." James was the only one of our many foreign kings who, to the last, struggled to avoid submitting himself to the conditions of an English throne.

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## CHAPTER VI.

### BACON'S FALL.

When Parliament met on January 30, 1620/21, and Bacon, as Lord Chancellor, set forth in his ceremonial speeches to the King and to the Speaker the glories and blessings of James's reign, no man in England had more reason to think himself fortunate. He had reached the age of sixty, and had gained the object of his ambition. More than that, he was conscious that in his great office he was finding full play for his powers and his high public purposes. He had won greatly on the confidence of the King. He had just received a fresh mark of honour from him: a few days before he had been raised a step in the peerage, and he was now Viscount St. Alban's. With Buckingham he seemed to be on terms of the most affectionate familiarity, exchanging opinions freely with him on every subject. And Parliament met in good-humour. They voted money at once. One of the matters which interested Bacon most—the revision of the Statute Book—they took up as one of their first measures, and appointed a Select Committee to report upon it. And what, amid the apparent felicity of the time, was of even greater personal happiness to Bacon, the first step of the "Great Instauration" had been taken. During the previous autumn, Oct. 12, 1620, the *Novum Organum*, the first instalment of his vast design, was published, the result of the work of thirty years; and copies were distributed to great people, among others to Coke. He apprehended no evil; he had nothing to fear, and much to hope from the times.

His sudden and unexpected fall, so astonishing and so irreparably complete, is one of the strangest events of that still imperfectly comprehended time. There had been, and were still to be, plenty of instances of the downfall of power, as ruinous and even more tragic, though scarcely any one more pathetic in its surprise and its shame. But it is hard to find one of which so little warning was given, and the causes of which are at once in part so clear, and in part so obscure and unintelligible. Such disasters had to be

reckoned upon as possible chances by any one who ventured into public life. Montaigne advises that the discipline of pain should be part of every boy's education, for the reason that every one in his day might be called upon to undergo the torture. And so every public man, in the England of the Tudors and Stuarts, entered on his career with the perfectly familiar expectation of possibly closing it—it might be in an honourable and ceremonious fashion, in the Tower and on the scaffold—just as he had to look forward to the possibility of closing it by small-pox or the plague. So that when disaster came, though it might be unexpected, as death is unexpected, it was a turn of things which ought not to take a man by surprise. But some premonitory signs usually gave warning. There was nothing to warn Bacon that the work which he believed he was doing so well would be interrupted.

We look in vain for any threatenings of the storm. What the men of his time thought and felt about Bacon it is not easy to ascertain. Appearances are faint and contradictory; he himself, though scornful of judges who sought to be "popular," believed that he "came in with the favour of the general;" that he "had a little popular reputation, which followeth me whether I will or no." No one for years had discharged the duties of his office with greater efficiency. Scarcely a trace remains of any suspicion, previous to the attack upon him, of the justice of his decisions; no instance was alleged that, in fact, impure motives had controlled the strength and lucidity of an intellect which loved to be true and right for the mere pleasure of being so. Nor was there anything in Bacon's political position to make him specially obnoxious above all others of the King's Council. He maintained the highest doctrines of prerogative; but they were current doctrines, both at the Council board and on the bench; and they were not discredited nor extinguished by his fall. To be on good terms with James and Buckingham meant a degree of subservience which shocks us now; but it did not shock people then, and he did not differ from his fellows in regarding it as part of his duty as a public servant of the Crown. No doubt he had enemies—some with old grudges like Southampton, who had been condemned with Essex; some like Suffolk, smarting under recent reprimands and the biting edge of Bacon's tongue; some like Coke, hating him from constitutional antipathies and the strong antagonism of professional doctrines, for a long course of rivalry and for mortifying defeats. But there is no appearance of

preconcerted efforts among them to bring about his overthrow. He did not at the time seem to be identified with anything dangerous or odious. There was no doubt a good deal of dissatisfaction with Chancery—among the common lawyers, because it interfered with their business; in the public, partly from the traditions of its slowness, partly from its expensiveness, partly because, being intended for special redress of legal hardship, it was sure to disappoint one party to a suit. But Bacon thought that he had reformed Chancery. He had also done a great deal to bring some kind of order, or at least hopefulness of order, into the King's desperate finances. And he had never set himself against Parliament. On the contrary, he had always been forward to declare that the King could not do without Parliament, and that Parliament only needed to be dealt with generously, and as "became a King," to be not a danger and hindrance to the Crown but its most sincere and trustworthy support.

What was then to portend danger to Bacon when the Parliament of 1620/21 met? The House of Commons at its meeting was thoroughly loyal and respectful; it meant to be *benedictum et pacificum parliamentum*. Every one knew that there would be "grievances" which would not be welcome to the Court, but they did not seem likely to touch him. Every one knew that there would be questions raised about unpopular patents and oppressive monopolies, and about their legality; and it was pretty well agreed upon at Court that they should be given up as soon as complained of. But Bacon was not implicated more than the Crown lawyers before him, in what all the Crown lawyers had always defended. There was dissatisfaction about the King's extravagance and wastefulness, about his indecision in the cause of the Elector Palatine, about his supposed intrigues with Papistical and tyrannical Spain; but Bacon had nothing to do with all this except, as far as he could, to give wise counsel and warning. The person who made the King despised and hated was the splendid and insolent favourite, Buckingham. It might have been thought that the one thing to be set against much that was wrong in the State was the just and enlightened and speedy administration of equity in the Chancery.

When Parliament met, though nothing seemed to threaten mischief, it met with a sturdy purpose of bringing to account certain delinquents whose arrogance and vexations of the subjects had provoked the country, and who

were supposed to shelter themselves under the countenance of Buckingham. Michell and Mompesson were rascals whose misdemeanors might well try the patience of a less spirited body than an English House of Commons. Buckingham could not protect them, and hardly tried to do so. But just as one electric current "induces" another by neighbourhood, so all this deep indignation against Buckingham's creatures created a fierce temper of suspicion about corruption all through the public service. Two Committees were early appointed by the House of Commons: one a Committee on Grievances, such as the monopolies; the other, a Committee to inquire into abuses in the Courts of Justice and receive petitions about them. In the course of the proceedings, the question arose in the House as to the authorities or "referees" who had certified to the legality of the Crown patents or grants which had been so grossly abused; and among these "referees" were the Lord Chancellor and other high officers, both legal and political.

It was the little cloud. But lookers-on like Chamberlain did not think much of it. "The referees," he wrote on Feb. 29th, "who certified the legality of the patents are glanced at, but they are chiefly above the reach of the House; they attempt so much that they will accomplish little." Coke, who was now the chief leader in Parliament, began to talk ominously of precedents, and to lay down rules about the power of the House to punish—rules which were afterwards found to have no authority for them. Cranfield, the representative of severe economy, insisted that the honour of the King required that the referees, whoever they were, should be called to account. The gathering clouds shifted a little, when the sense of the House seemed to incline to giving up all retrospective action, and to a limitation for the future by statute of the questionable prerogative—a limitation which was in fact attempted by a bill thrown out by the Lords. But they gathered again when the Commons determined to bring the whole matter before the House of Lords. The King wrote to warn Bacon of what was coming. The proposed conference was staved off by management for a day or two, but it could not be averted, and the Lords showed their eagerness for it. And two things by this time—the beginning of March—seemed now to have become clear, first, that under the general attack on the referees was intended a blow against Bacon; next, that the person whom he had most reason to fear was Sir Edward Coke.

The storm was growing; but Bacon was still unalarmed, though Buckingham had been frightened into throwing the blame on the referees.

"I do hear," he writes to Buckingham (dating his letter on March 7th, "the day I received the seal"), "from divers of judgement, that tomorrow's conference is like to pass in a calm, as to the referees. Sir Lionel Cranfield, who hath been formerly the trumpet, said yesterday that he did now incline unto Sir John Walter's opinion and motion not to have the referees meddled with, otherwise than to discount it from the King; and so not to look back, but to the future. And I do hear almost all men of judgement in the House wish now that way. I woo nobody; I do but listen, and I have doubt only of Sir Edward Coke, who I wish had some round *caveat* given him from the King; for your Lordship hath no great power with him. But a word from the King mates him."

But Coke's opportunity had come. The House of Commons was disposed for gentler measures. But he was able to make it listen to his harsher counsels, and from this time his hand appears in all that was done. The first conference was a tame and dull one. The spokesmen had been slack in their disagreeable and perhaps dangerous duty. But Coke and his friends took them sharply to task. "The heart and tongue of Sir Edward Coke are true relations," said one of his fervent supporters; "but his pains hath not reaped that harvest of praise that he hath deserved. For the referees, they are as transcendent delinquents as any other, and sure their souls made a wilful elopement from their bodies when they made these certificates." A second conference was held with the Lords, and this time the charge was driven home. The referees were named, the Chancellor at the head of them. When Bacon rose to explain and justify his acts he was sharply stopped, and reminded that he was transgressing the orders of the House in speaking till the Committees were named to examine the matter. What was even more important, the King had come to the House of Lords (March 10th), and frightened, perhaps, about his subsidies, told them "that he was not guilty of those grievances which are now discovered, but that he grounded his judgement upon others who have misled him." The referees would be attacked, people thought, if the Lower House had courage.

All this was serious. As things were drifting, it seemed as if Bacon might have to fight the legal question of the prerogative in the form of a criminal charge, and be called upon to answer the accusation of being the minister of a crown which legal language pronounced absolute, and of a King who interpreted legal language to the letter; and further, to meet his accusers after the King himself had disavowed what his servant had done. What passed between Bacon and the King is confused and uncertain; but after his speech the King could scarcely have thought of interfering with the inquiry. The proceedings went on; Committees were named for the several points of inquiry; and Bacon took part in these arrangements. It was a dangerous position to have to defend himself against an angry House of Commons, led and animated by Coke and Cranfield. But though the storm had rapidly thickened, the charges against the referees were not against him alone. His mistake in law, if it was a mistake, was shared by some of the first lawyers and first councillors in England. There was a battle before him, but not a hopeless one. "*Modicæ fidei, quare dubitasti*" he writes about this time to an anxious friend.

But in truth the thickening storm had been gathering over his head alone. It was against him that the whole attack was directed; as soon as it took a different shape, the complaints against the other referees, such as the Chief-Justice, who was now Lord Treasurer, though some attempt was made to press them, were quietly dropped. What was the secret history of these weeks we do not know. But the result of Bacon's ruin was that Buckingham was saved. "As they speak of the Turquoise stone in a ring," Bacon had said to Buckingham when he was made Chancellor, "I will break into twenty pieces before you have the least fall." Without knowing what he pledged himself to, he was taken at his word.

At length the lightning fell. During the early part of March, while these dangerous questions were mooted about the referees, a Committee, appointed early in the session, had also been sitting on abuses in courts of justice, and as part of their business, an inquiry had been going on into the ways of the subordinate officers of the Court of Chancery. Bacon had early (Feb. 17th) sent a message to the Committee courting full inquiry, "willingly consenting that any man might speak anything of his Court." On the 12th of March the chairman, Sir R. Philips, reported that he had in his

hands "divers petitions, many frivolous and clamorous, many of weight and consequence." Cranfield, who presided over the Court of Wards, had quarrelled fiercely with the Chancery, where he said there was "neither Law, Equity, nor Conscience," and pressed the inquiry, partly, it may be, to screen his own Court, which was found fault with by the lawyers. Some scandalous abuses were brought to light in the Chancery. They showed that "Bacon was at fault in the art of government," and did not know how to keep his servants in order. One of them, John Churchill, an infamous forger of Chancery orders, finding things going hard with him, and "resolved," it is said, "not to sink alone," offered his confessions of all that was going on wrong in the Court. But on the 15th of March things took another turn. It was no longer a matter of doubtful constitutional law; no longer a question of slack discipline over his officers. To the astonishment, if not of the men of his own day, at least to the unexhausted astonishment of times following, a charge was suddenly reported from the Committee to the Commons against the Lord Chancellor, not of straining the prerogative, or of conniving at his servants' misdoings, but of being himself a corrupt and venal judge. Two suitors charged him with receiving bribes. Bacon was beginning to feel worried and anxious, and he wrote thus to Buckingham. At length he had begun to see the meaning of all these inquiries, and to what they were driving.

"MY VERY GOOD LORD,—Your Lordship spake of Purgatory. I am now in it, but my mind is in a calm, for my fortune is not my felicity. I know I have clean hands and a clean heart, and I hope a clean house for friends or servants. But Job himself, or whosoever was the justest judge, by such hunting for matters against him as hath been used against me, may for a time seem foul, specially in a time when greatness is the mark and accusation is the game. And if this be to be a Chancellor. I think if the great seal lay upon Hounslow Heath nobody would take it up. But the King and your Lordship will, I hope, put an end to these miseries one way or other. And in troth that which I fear most is lest continual attendance and business, together with these cares, and want of time to do my weak body right this spring by diet and physic, will cast me down; and then it will be thought feigning or fainting. But I hope in God I shall hold out. God prosper you."

The first charges attracted others, which were made formal matters of complaint by the House of Commons. John Churchill, to save himself, was busy setting down cases of misdoing; and probably suitors of themselves became ready to volunteer evidence. But of this Bacon as yet knew nothing. He was at this time only aware that there were persons who were "hunting out complaints against him," that the attack was changed from his law to his private character; he had found an unfavourable feeling in the House of Lords; and he knew well enough what it was to have powerful enemies in those days when a sentence was often settled before a trial. To any one, such a state of things was as formidable as the first serious symptoms of a fever. He was uneasy, as a man might well be on whom the House of Commons had fixed its eye, and to whom the House of Lords had shown itself unfriendly. But he was as yet conscious of nothing fatal to his defence, and he knew that if false accusations could be lightly made they could also be exposed.

A few days after the first mention of corruption the Commons laid their complaints of him before the House of Lords, and on the same day (March 19) Bacon, finding himself too ill to go to the House, wrote to the Peers by Buckingham, requesting them that as some "complaints of base bribery" had come before them, they would give him a fair opportunity of defending himself, and of cross-examining witnesses; especially begging, that considering the number of decrees which he had to make in a year—more than two thousand—and "the courses which had been taken in hunting out complaints against him," they would not let their opinion of him be affected by the mere number of charges that might be made. Their short verbal answer, moved by Southampton (March 20), that they meant to proceed by right rule of justice, and would be glad if he cleared his honour, was not encouraging. And now that the Commons had brought the matter before them, the Lords took it entirely into their own hands, appointing three Committees, and examining the witnesses themselves. New witnesses came forward every day with fresh cases of gifts and presents, "bribes" received by the Lord Chancellor. When Parliament rose for the Easter vacation (March 27-April 17), the Committees continued sitting. A good deal probably passed of which no record remains. When the Commons met again (April 17) Coke was full of gibes about *Instauratio Magna*—the true *Instauratio* was to restore laws—and two days after an Act was brought in

for review and reversal of decrees in Courts of Equity. It was now clear that the case against Bacon had assumed formidable dimensions, and also a very strange, and almost monstrous shape. For the Lords, who were to be the judges, had by their Committees taken the matter out of the hands of the Commons, the original accusers, and had become themselves the prosecutors, collecting and arranging evidence, accepting or rejecting depositions, and doing all that counsel or the committing magistrate would do preliminary to a trial. There appears to have been no cross-examining of witnesses on Bacon's behalf, or hearing witnesses for him—not unnaturally at this stage of business, when the prosecutors were engaged in making out their own case; but considering that the future judges had of their own accord turned themselves into the prosecutors, the unfairness was great. At the same time it does not appear that Bacon did anything to watch how things went in the Committees, which had his friends in them as well as his enemies, and are said to have been open courts. Towards the end of March, Chamberlain wrote to Carleton that "the Houses were working hard at cleansing out the Augæan stable of monopolies, and also extortions in Courts of Justice. The petitions against the Lord Chancellor were too numerous to be got through: his chief friends and brokers of bargains, Sir George Hastings and Sir Richard Young, and others attacked, are obliged to accuse him in their own defence, though very reluctantly. His ordinary bribes were £300, £400, and even £1000.... The Lords admit no evidence except on oath. One Churchill, who was dismissed from the Chancery Court for extortion, is the chief cause of the Chancellor's ruin."<sup>3</sup> Bacon was greatly alarmed. He wrote to Buckingham, who was "his anchor in these floods." He wrote to the King; he was at a loss to account for the "tempest that had come on him;" he could not understand what he had done to offend the country or Parliament; he had never "taken rewards to pervert justice, however he might be frail, and partake of the abuse of the time."

"Time hath been when I have brought unto you *genitum columbæ*, from others. Now I bring it from myself. I fly unto your Majesty with the wings of a dove, which once within these seven days I thought would have carried me a higher flight.

"When I enter into myself, I find not the materials of such a tempest as is comen upon me. I have been (as your Majesty knoweth best) never

author of any immoderate counsel, but always desired to have things carried *suavibus modis*. I have been no avaricious oppressor of the people. I have been no haughty or intolerable or hateful man, in my conversation or carriage. I have inherited no hatred from my father, but am a good patriot born. Whence should this be? For these are the things that use to raise dislikes abroad."

And he ended by entreating the King to help him:

"That which I thirst after, as the hart after the streams, is that I may know by my matchless friend [Buckingham] that presenteth to you this letter, your Majesty's heart (which is an *abyssus* of goodness, as I am an *abyssus* of misery) towards me. I have been ever your man, and counted myself but an usufructuary of myself, the property being yours; and now making myself an oblation to do with me as may best conduce to the honour of your justice, the honour of your mercy, and the use of your service, resting as

"Clay in your Majesty's gracious hands

"Fr. St. Aldan, Canc.

"March 25, 1621."

To the world he kept up an undismayed countenance: he went down to Gorhambury, attended by troops of friends. "This man," said Prince Charles, when he met his company, "scorns to go out like a snuff." But at Gorhambury he made his will, leaving "his name to the next ages and to foreign nations;" and he wrote a prayer, which is a touching evidence of his state of mind—

"Most gracious Lord God, my merciful Father, from my youth up, my Creator, my Redeemer, my Comforter. Thou (O Lord) soundest and searchest the depths and secrets of all hearts; thou knowedgest the upright of heart, thou judgest the hypocrite, thou ponderest men's thoughts and doings as in a balance, thou measurest their intentions as with a line, vanity and crooked ways cannot be hid from thee.

"Remember (O Lord) how thy servant hath walked before thee; remember what I have first sought, and what hath been principal in

mine intentions. I have loved thy assemblies, I have mourned for the divisions of thy Church, I have delighted in the brightness of thy sanctuary. This vine which thy right hand hath planted in this nation, I have ever prayed unto thee that it might have the first and the latter rain; and that it might stretch her branches to the seas and to the floods. The state and bread of the poor and oppressed have been precious in my eyes: I have hated all cruelty and hardness of heart; I have (though in a despised weed) procured the good of all men. If any have been mine enemies, I thought not of them; neither hath the sun almost set upon my displeasure; but I have been as a dove, free from superfluity of maliciousness. Thy creatures have been my books, but thy Scriptures much more. I have sought thee in the courts, fields, and gardens, but I have found thee in thy temples.

"Thousand have been my sins, and ten thousand my transgressions; but thy sanctifications have remained with me, and my heart, through thy grace, hath been an unquenched coal upon thy altar. O Lord, my strength, I have since my youth met with thee in all my ways, by thy fatherly compassions, by thy comfortable chastisements, and by thy most visible providence. As thy favours have increased upon me, so have thy corrections; so as thou hast been alway near me, O Lord; and ever as my worldly blessings were exalted, so secret darts from thee have pierced me; and when I have ascended before men, I have descended in humiliation before thee.

"And now when I thought most of peace and honour, thy hand is heavy upon me, and hath humbled me, according to thy former loving-kindness, keeping me still in thy fatherly school, not as a bastard, but as a child. Just are thy judgements upon me for my sins, which are more in number than the sands of the sea, but have no proportion to thy mercies; for what are the sands of the sea to the sea, earth, heavens? and all these are nothing to thy mercies.

"Besides my innumerable sins, I confess before thee that I am debtor to thee for the gracious talent of thy gifts and graces, which I have misspent in things for which I was least fit; so as I may truly say, my soul hath been a stranger in the course of my pilgrimage. Be merciful

unto me (O Lord) for my Saviour's sake, and receive me into thy bosom, or guide me in thy ways."

Bacon up to this time strangely, if the Committees were "open Courts," was entirely ignorant of the particulars of the charge which was accumulating against him. He had an interview with the King, which was duly reported to the House, and he placed his case before James, distinguishing between the "three cases of bribery supposed in a judge—a corrupt bargain; carelessness in receiving a gift while the cause is going on; and, what is innocent, receiving a gift after it is ended." And he meant in such words as these to place himself at the King's disposal, and ask his direction:

"For my fortune, *summa summarum* with me is, that I may not be made altogether unprofitable to do your Majesty service or honour. If your Majesty continue me as I am, I hope I shall be a new man, and shall reform things out of feeling, more than another can do out of example. If I cast part of my burden, I shall be more strong and *delivré* to bear the rest. And, to tell your Majesty what my thoughts run upon, I think of writing a story of England, and of recompiling of your laws into a better digest."

The King referred him to the House; and the House now (April 19th) prepared to gather up into "one brief" the charges against the Lord Chancellor, still, however, continuing open to receive fresh complaints.

Meanwhile the chase after abuses of all kinds was growing hotter in the Commons—abuses in patents and monopolies, which revived the complaints against referees, among whom Bacon was frequently named, and abuses in the Courts of Justice. The attack passed by and spared the Common Law Courts, as was noticed in the course of the debates; it spared Cranfield's Court, the Court of Wards. But it fell heavily on the Chancery and the Ecclesiastical Courts. "I have neither power nor will to defend Chancery," said Sir John Bennett, the judge of the Prerogative Court; but a few weeks after his turn came, and a series of as ugly charges as could well be preferred against a judge, charges of extortion as well as bribery, were reported to the House by its Committee. There can be no doubt of the grossness of many of these abuses, and the zeal against them was honest, though it would have shown more courage if it had flown at higher game;

but the daily discussion of them helped to keep alive and inflame the general feeling against so great a "delinquent" as the Lord Chancellor was supposed to be. And, indeed, two of the worst charges against him were made before the Commons. One was a statement made in the House by Sir George Hastings, a member of the House, who had been the channel of Awbry's gift, that when he had told Bacon that if questioned he must admit it, Bacon's answer was: "George, if you do so, I must deny it upon my honour—upon my oath." The other was that he had given an opinion in favour of some claim of the Masters in Chancery for which he received £1200, and with which he said that all the judges agreed—an assertion which all the judges denied. Of these charges there is no contradiction.<sup>4</sup>

Bacon made one more appeal to the King (April 21). He hoped that, by resigning the seal, he might be spared the sentence:

"But now if not *per omnipotentiam* (as the divines speak), but *per potestatem suaviter disponentem*, your Majesty will graciously save me from a sentence with the good liking of the House, and that cup may pass from me; it is the utmost of my desires.

"This I move with the more belief, because I assure myself that if it be reformation that is sought, the very taking away the seal, upon my general submission, will be as much in example for these four hundred years as any further severity."

At length, informally, but for the first time distinctly, the full nature of the accusation, with its overwhelming list of cases, came to Bacon's knowledge (April 20 or 21). From the single charge, made in the middle of March, it had swelled in force and volume like a rising mountain torrent. That all these charges should have sprung out of the ground from their long concealment is strange enough. How is it that nothing was heard of them when the things happened? And what is equally strange is that these charges were substantially true and undeniable; that this great Lord Chancellor, so admirable in his despatch of business, hitherto so little complained of for wrong or unfair decisions, had been in the habit of receiving large sums of money from suitors, in some cases certainly while the suit was pending. And further, while receiving them, while perfectly aware of the evil of

receiving gifts on the seat of judgment, while emphatically warning inferior judges against yielding to the temptation, he seems really to have continued unconscious of any wrong-doing while gift after gift was offered and accepted. But nothing is so strange as the way in which Bacon met the charges. Tremendous as the accusation was, he made not the slightest fight about it. Up to this time he had held himself innocent. Now, overwhelmed and stunned, he made no attempt at defence; he threw up the game without a struggle, and volunteered an absolute and unreserved confession of his guilt—that is to say, he declined to stand his trial. Only, he made an earnest application to the House of Lords, in proceeding to sentence, to be content with a general admission of guilt, and to spare him the humiliation of confessing the separate facts of alleged "bribery" which were contained in the twenty-eight Articles of his accusation. This submission, "grounded only on rumour," for the Articles of charge had not yet been communicated to him by the accusers, took the House by surprise. "No Lord spoke to it, after it had been read, for a long time." But they did not mean that he should escape with this. The House treated the suggestion with impatient scorn (April 24). "It is too late," said Lord Saye. "No word of confession of any corruption in the Lord Chancellor's submission," said Southampton; "it stands with the justice and honour of this House not to proceed without the parties' particular confession, or to have the parties to hear the charge, and we to hear the parties answer." The demand of the Lords was strictly just, but cruel; the Articles were now sent to him; he had been charged with definite offences; he must answer yes or no, confess them or defend himself. A further question arose whether he should not be sent for to appear at the bar. He still held the seals. "Shall the Great Seal come to the bar?" asked Lord Pembroke. It was agreed that he was to be asked whether he would acknowledge the particulars. His answer was "that he will make no manner of defence to the charge, but meaneth to acknowledge corruption, and to make a particular confession to every point, and after that a humble submission. But he humbly craves liberty that, when the charge is more full than he finds the truth of the fact, he may make a declaration of the truth in such particulars, the charge being brief and containing not all the circumstances." And such a confession he made. "My Lords," he said, to those who were sent to ask whether he would stand to it, "it is my act, my hand, my heart. I beseech your Lordships be merciful to a broken reed." This was, of course, followed by a request to the King from the House to

"sequester" the Great Seal. A commission was sent to receive it (May 1). "The worse, the better," he answered to the wish, "that it had been better with him." "By the King's great favour I received the Great Seal; by my own great fault I have lost it." They intended him now to come to the bar to receive his sentence. But he was too ill to leave his bed. They did not push this point farther, but proceeded to settle the sentence (May 3). He had asked for mercy, but he did not get it. There were men who talked of every extremity short of death. Coke, indeed, in the Commons, from his store of precedents, had cited cases where judges had been hanged for bribery. But the Lords would not hear of this. "His offences foul," said Lord Arundel; "his confession pitiful. Life not to be touched." But Southampton, whom twenty years before he had helped to involve in Essex's ruin, urged that he should be degraded from the peerage; and asked whether, at any rate, "he whom this House thinks unfit to be a constable shall come to the Parliament." He was fined £40,000. He was to be imprisoned in the Tower during the King's pleasure. He was to be incapable of any office, place, or employment in the State or Commonwealth. He was never to sit in Parliament or come within the verge of the Court. This was agreed to, Buckingham only dissenting. "The Lord Chancellor is so sick," he said, "that he cannot live long."

What is the history of this tremendous catastrophe by which, in less than two months, Bacon was cast down from the height of fortune to become a byword of shame? He had enemies, who certainly were glad, but there is no appearance that it was the result of any plot or combination against him. He was involved, accidentally, it may almost be said, in the burst of anger excited by the intolerable dealings of others. The indignation provoked by Michell and Mompesson and their associates at that particular moment found Bacon in its path, doing, as it seemed, in his great seat of justice, even worse than they; and when he threw up all attempt at defence, and his judges had his hand to an unreserved confession of corruption, both generally, and in the long list of cases alleged against him, it is not wonderful that they came to the conclusion, as the rest of the world did, that he was as bad as the accusation painted him—a dishonest and corrupt judge. Yet it is strange that they should not have observed that not a single charge of a definitely unjust decision was brought, at any rate was proved, against him. He had taken money, they argued, and therefore he must be

corrupt; but if he had taken money to pervert judgment, some instance of the iniquity would certainly have been brought forward and proved. There is no such instance to be found; though, of course, there were plenty of dissatisfied suitors; of course the men who had paid their money and lost their cause were furious. But in vain do we look for any case of proved injustice. The utmost that can be said is that in some cases he showed favour in pushing forward and expediting suits. So that the real charge against Bacon assumes, to us who have not to deal practically with dangerous abuses, but to judge conduct and character, a different complexion. Instead of being the wickedness of perverting justice and selling his judgments for bribes, it takes the shape of allowing and sharing in a dishonourable and mischievous system of payment for service, which could not fail to bring with it temptation and discredit, and in which fair reward could not be distinguished from unlawful gain. Such a system it was high time to stop; and in this rough and harsh way, which also satisfied some personal enmities, it was stopped. We may put aside for good the charge on which he was condemned, and which in words he admitted—of being corrupt as a judge. His real fault—and it was a great one—was that he did not in time open his eyes to the wrongness and evil, patent to every one, and to himself as soon as pointed out, of the traditional fashion in his court of eking out by irregular gifts the salary of such an office as his.

Thus Bacon was condemned both to suffering and to dishonour; and, as has been observed, condemned without a trial. But it must also be observed that it was entirely owing to his own act that he had not a trial, and with a trial the opportunity of cross-examining witnesses and of explaining openly the matters urged against him. The proceedings in the Lords were preliminary to the trial; when the time came, Bacon, of his own choice, stopped them from going farther, by his confession and submission. Considering the view which he claimed to take of his own case, his behaviour was wanting in courage and spirit. From the moment that the attack on him shifted from a charge of authorising illegal monopolies to a charge of personal corruption, he never fairly met his accusers. The distress and anxiety, no doubt, broke down his health; and twice, when he was called upon to be in his place in the House of Lords, he was obliged to excuse himself on the ground that he was too ill to leave his bed. But between the time of the first charge and his condemnation seven weeks elapsed; and though he was able to go down to

Gorhambury, he never in that time showed himself in the House of Lords. Whether or not, while the Committees were busy in collecting the charges, he would have been allowed to take part, to put questions to the witnesses, or to produce his own, he never attempted to do so; and by the course he took there was no other opportunity. To have stood his trial could hardly have increased his danger, or aggravated his punishment; and it would only have been worthy of his name and place, if not to have made a fight for his character and integrity, at least to have bravely said what he had made up his mind to admit, and what no one could have said more nobly and pathetically, in open Parliament. But he was cowed at the fierceness of the disapprobation manifest in both Houses. He shrunk from looking his peers and his judges in the face. His friends obtained for him that he should not be brought to the bar, and that all should pass in writing. But they saved his dignity at the expense of his substantial reputation. The observation that the charges against him were not sifted by cross-examination applies equally to his answers to them. The allegations of both sides would have come down to us in a more trustworthy shape if the case had gone on. But to give up the struggle, and to escape by any humiliation from a regular public trial, seems to have been his only thought when he found that the King and Buckingham could not or would not save him.

But the truth is that he knew that a trial of this kind was a trial only in name. He knew that, when a charge of this sort was brought, it was not meant to be really investigated in open court, but to be driven home by proofs carefully prepared beforehand, against which the accused had little chance. He knew, too, that in those days to resist in earnest an accusation was apt to be taken as an insult to the court which entertained it. And further, for the prosecutor to accept a submission and confession without pushing to the formality of a public trial, and therefore a public exposure, was a favour. It was a favour which by his advice, as against the King's honour, had been refused to Suffolk; it was a favour which, in a much lighter charge, had by his advice been refused to his colleague Yelverton only a few months before, when Bacon, in sentencing him, took occasion to expatiate on the heinous guilt of misprisions or mistakes in men in high places. The humiliation was not complete without the trial, but it was for humiliation and not fair investigation that the trial was wanted. Bacon knew that the

trial would only prolong his agony, and give a further triumph to his enemies.

That there was any plot against Bacon, and much more that Buckingham to save himself was a party to it, is of course absurd. Buckingham, indeed, was almost the only man in the Lords who said anything for Bacon, and, alone, he voted against his punishment. But considering what Buckingham was, and what he dared to do when he pleased, he was singularly cool in helping Bacon. Williams, the astute Dean of Westminster, who was to be Bacon's successor as Lord Keeper, had got his ear, and advised him not to endanger himself by trying to save delinquents. He did not. Indeed, as the inquiry went on, he began to take the high moral ground; he was shocked at the Chancellor's conduct; he would not have believed that it could have been so bad; his disgrace was richly deserved. Buckingham kept up appearances by saying a word for him from time to time in Parliament, which he knew would be useless, and which he certainly took no measures to make effective. It is sometimes said that Buckingham never knew what dissimulation was. He was capable, at least, of the perfidy and cowardice of utter selfishness. Bacon's conspicuous fall diverted men's thoughts from the far more scandalous wickedness of the great favourite. But though there was no plot, though the blow fell upon Bacon almost accidentally, there were many who rejoiced to be able to drive it home. We can hardly wonder that foremost among them was Coke. This was the end of the long rivalry between Bacon and Coke, from the time that Essex pressed Bacon against Coke in vain to the day when Bacon as Chancellor drove Coke from his seat for his bad law, and as Privy Councillor ordered him to be prosecuted in the Star Chamber for riotously breaking open men's doors to get his daughter. The two men thoroughly disliked and undervalued one another. Coke made light of Bacon's law. Bacon saw clearly Coke's narrowness and ignorance out of that limited legal sphere in which he was supposed to know everything, his prejudiced and interested use of his knowledge, his coarseness and insolence. But now in Parliament Coke was supreme, "our Hercules," as his friends said. He posed as the enemy of all abuses and corruption. He brought his unrivalled, though not always accurate, knowledge of law and history to the service of the Committees, and took care that the Chancellor's name should not be forgotten when it could be connected with some bad business of patent or Chancery abuse. It was the

great revenge of the Common Law on the encroaching and insulting Chancery which had now proved so foul. And he could not resist the opportunity of marking the revenge of professional knowledge over Bacon's airs of philosophical superiority. "To restore things to their original" was his sneer in Parliament, "this, *Instauratio Magna. Instaurare paras—Instaura leges justitiamque prius.*" <sup>5</sup>

The charge of corruption was as completely a surprise to Bacon as it was to the rest of the world. And yet, as soon as the blot was hit, he saw in a moment that his position was hopeless—he knew that he had been doing wrong; though all the time he had never apparently given it a thought, and he insisted, what there is every reason to believe, that no present had induced him to give an unjust decision. It was the power of custom over a character naturally and by habit too pliant to circumstances. Custom made him insensible to the evil of receiving recommendations from Buckingham in favour of suitors. Custom made him insensible to the evil of what it seems every one took for granted—receiving gifts from suitors. In the Court of James I. the atmosphere which a man in office breathed was loaded with the taint of gifts and bribes. Presents were as much the rule, as indispensable for those who hoped to get on, as they are now in Turkey. Even in Elizabeth's days, when Bacon was struggling to win her favour, and was in the greatest straits for money, he borrowed £500 to buy a jewel for the Queen. When he was James's servant the giving of gifts became a necessity. New Year's Day brought round its tribute of gold vases and gold pieces to the King and Buckingham. And this was the least. Money was raised by the sale of officers and titles. For £20,000, having previously offered £10,000 in vain, the Chief-Justice of England, Montague, became Lord Mandeville and Treasurer. The bribe was sometimes disguised: a man became a Privy Councillor, like Cranfield, or a Chief-Justice, like Ley (afterwards "the good Earl," "unstained with gold or fee," of Milton's Sonnet), by marrying a cousin or a niece of Buckingham. When Bacon was made a Peer, he had also given him "the making of a Baron;" that is to say, he might raise money by bargaining with some one who wanted a peerage; when, however, later on, he asked Buckingham for a repetition of the favour, Buckingham gave him a lecture on the impropriety of prodigality, which should make it seem that "while the King was asking money of Parliament with one hand he was giving with the other." How things were

in Chancery in the days of the Queen, and of Bacon's predecessors, we know little; but Bacon himself implies that there was nothing new in what he did. "All my lawyers," said James, "are so bred and nursed in corruption that they cannot leave it." Bacon's Chancellorship coincided with the full bloom of Buckingham's favour; and Buckingham set the fashion, beyond all before him, of extravagance in receiving and spending. Encompassed by such assumptions and such customs, Bacon administered the Chancery. Suitors did there what people did everywhere else; they acknowledged by a present the trouble they gave, or the benefit they gained. It may be that Bacon's known difficulties about money, his expensive ways and love of pomp, his easiness of nature, his lax discipline over his servants, encouraged this profuseness of giving. And Bacon let it be. He asked no questions; he knew that he worked hard and well; he knew that it could go on without affecting his purpose to do justice "from the greatest to the groom." A stronger character, a keener conscience, would have faced the question, not only whether he was not setting the most ruinous of precedents, but whether any man could be so sure of himself as to go on dealing justly with gifts in his hands. But Bacon, who never dared to face the question, what James was, what Buckingham was, let himself be spellbound by custom. He knew in the abstract that judges ought to have nothing to do with gifts, and had said so impressively in his charges to them. Yet he went on self-complacent, secure, almost innocent, building up a great tradition of corruption in the very heart of English justice, till the challenge of Parliament, which began in him its terrible and relentless, but most unequal, prosecution of justice against ministers who had betrayed the commonwealth in serving the Crown, woke him from his dream, and made him see, as others saw it, the guilt of a great judge who, under whatever extenuating pretext, allowed the suspicion to arise that he might sell justice. "In the midst of a state of as great affliction as mortal man can endure," he wrote to the Lords of the Parliament, in making his submission, "I shall begin with the professing gladness in some things. The first is that hereafter the greatness of a judge or magistrate shall be no sanctuary or protection of guiltiness, which is the beginning of a golden world. The next, that after this example it is like that judges will fly from anything that is in the likeness of corruption as from a serpent." Bacon's own judgment on himself, deliberately repeated, is characteristic, and probably comes near the truth. "Howsoever, I acknowledge the sentence just and for reformation's sake

fit," he writes to Buckingham from the Tower, where, for form's sake, he was imprisoned for a few miserable days, he yet had been "the justest Chancellor that hath been in the five changes that have been since Sir Nicolas Bacon's time." He repeated the same thing yet more deliberately in later times. *"I was the justest judge that was in England these fifty years. But it was the justest censure in Parliament that was these two hundred years."*

He might have gone on to add, "the Wisest Counsellor; and yet none on whom rested heavier blame; none of whom England might more justly complain." Good counsels given, submissive acquiescence in the worst—this is the history of his statesmanship. Bacon, whose eye was everywhere, was not sparing of his counsels. On all the great questions of the time he has left behind abundant evidence, not only of what he thought, but of what he advised. And in every case these memorials are marked with the insight, the independence, the breadth of view, and the moderation of a mind which is bent on truth. He started, of course, from a basis which we are now hardly able to understand or allow for, the idea of absolute royal power and prerogative which James had enlarged and hardened out of the Kingship of the Tudors, itself imperious and arbitrary enough, but always seeking, with a tact of which James was incapable, to be in touch and sympathy with popular feeling. But it was a basis which in principle every one of any account as yet held or professed to hold, and which Bacon himself held on grounds of philosophy and reason. He could see no hope for orderly and intelligent government except in a ruler whose wisdom had equal strength to assert itself; and he looked down with incredulity and scorn on the notion of anything good coming out of what the world then knew or saw of popular opinion or parliamentary government. But when it came to what was wise and fitting for absolute power to do in the way of general measures and policy, he was for the most part right. He saw the inexorable and pressing necessity of putting the finance of the kingdom on a safe footing. He saw the necessity of a sound and honest policy in Ireland. He saw the mischief of the Spanish alliance in spite of his curious friendship with Gondomar, and detected the real and increasing weakness of the Spanish monarchy, which still awed mankind. He saw the growing danger of abuses in Church and State which were left untouched, and were protected by the punishment of those who dared to complain of them. He

saw the confusion and injustice of much of that common law of which the lawyers were so proud; and would have attempted, if he had been able, to emulate Justinian, and anticipate the Code Napoleon, by a rational and consistent digest. Above all, he never ceased to impress on James the importance, and, if wisely used, the immense advantages, of his Parliaments. Himself, for great part of his life, an active and popular member of the House of Commons, he saw that not only it was impossible to do without it, but that, if fairly, honourably, honestly dealt with, it would become a source of power and confidence which would double the strength of the Government both at home and abroad. Yet of all this wisdom nothing came. The finance of the kingdom was still ruined by extravagance and corruption in a time of rapidly-developing prosperity and wealth. The wounds of Ireland were unhealed. It was neither peace nor war with Spain, and hot infatuation for its friendship alternated with cold fits of distrust and estrangement. Abuses flourished and multiplied under great patronage. The King's one thought about Parliament was how to get as much money out of it as he could, with as little other business as possible. Bacon's counsels were the prophecies of Cassandra in that so prosperous but so disastrous reign. All that he did was to lend the authority of his presence, in James's most intimate counsels, to policy and courses of which he saw the unwisdom and the perils. James and Buckingham made use of him when they wanted. But they would have been very different in their measures and their statesmanship if they had listened to him.

Mirabeau said, what of course had been said before him, "*On ne vaut, dans la partie exécutive de la vie humaine, que par le caractère.*" This is the key to Bacon's failures as a judge and as a statesman, and why, knowing so much more and judging so much more wisely than James and Buckingham, he must be identified with the misdoings of that ignoble reign. He had the courage of his opinions; but a man wants more than that: he needs the manliness and the public spirit to enforce them, if they are true and salutary. But this is what Bacon had not. He did not mind being rebuffed; he knew that he was right, and did not care. But to stand up against the King, to contradict him after he had spoken, to press an opinion or a measure on a man whose belief in his own wisdom was infinite, to risk not only being set down as a dreamer, but the King's displeasure, and the ruin of being given over to the will of his enemies, this Bacon had not the fibre or the stiffness

or the self-assertion to do. He did not do what a man of firm will and strength of purpose, a man of high integrity, of habitual resolution, would have done. Such men insist when they are responsible, and when they know that they are right; and they prevail, or accept the consequences. Bacon, knowing all that he did, thinking all that he thought, was content to be the echo and the instrument of the cleverest, the foolishest, the vainest, the most pitifully unmanly of English kings.

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## **CHAPTER VII.**

### **BACON'S LAST YEARS. [1621-1626.]**

The tremendous sentences of those days, with their crushing fines, were often worse in sound than in reality. They meant that for the moment a man was defeated and disgraced. But it was quite understood that it did not necessarily follow that they would be enforced in all their severity. The fine might be remitted, the imprisonment shortened, the ban of exclusion taken off. At another turn of events or caprice the man himself might return to favour, and take his place in Parliament or the Council as if nothing had happened. But, of course, a man might have powerful enemies, and the sentence might be pressed. His fine might be assigned to some favourite; and he might be mined, even if in the long run he was pardoned; or he might remain indefinitely a prisoner. Raleigh had remained to perish at last in dishonour. Northumberland, Raleigh's fellow-prisoner, after fifteen years' captivity, was released this year. The year after Bacon's condemnation such criminals as Lord and Lady Somerset were released from the Tower, after a six years' imprisonment. Southampton, the accomplice of Essex, Suffolk, sentenced as late as 1619 by Bacon for embezzlement, sat in the House of Peers which judged Bacon, and both of them took a prominent part in judging him.

To Bacon the sentence was ruinous. It proved an irretrievable overthrow as regards public life, and, though some parts of it were remitted and others lightened, it plunged his private affairs into trouble which weighed heavily on him for his few remaining years. To his deep distress and horror he had to go to the Tower to satisfy the terms of his sentence. "Good my Lord," he writes to Buckingham, May 31, "procure my warrant for my discharge this day. Death is so far from being unwelcome to me, as I have called for it as far as Christian resolution would permit any time these two months. But to die before the time of his Majesty's grace, in this disgraceful place, is even

the worst that could be." He was released after two or three days, and he thanks Buckingham (June 4) for getting him out to do him and the King faithful service—"wherein, by the grace of God, your Lordship shall find that my adversity hath neither *spent* nor *pent* my spirits." In the autumn his fine was remitted—that is, it was assigned to persons nominated by Bacon, who, as the Crown had the first claim on all his goods, served as a protection against his other creditors, who were many and some of them clamorous—and it was followed by his pardon. His successor, Williams, now Bishop of Lincoln, who stood in great fear of Parliament, tried to stop the pardon. The assignment of the fine, he said to Buckingham, was a gross job—"it is much spoken against, not for the matter (for no man objects to that), but for the manner, which is full of knavery, and a wicked precedent. For by this assignment he is protected from all his creditors, which (I dare say) was neither his Majesty's nor your Lordship's meaning." It was an ill-natured and cowardly piece of official pedantry to plunge deeper a drowning man; but in the end the pardon was passed. It does not appear whether Buckingham interfered to overrule the Lord Keeper's scruples. Buckingham was certainly about this time very much out of humour with Bacon, for a reason which, more than anything else, discloses the deep meanness which lurked under his show of magnanimity and pride. He had chosen this moment to ask Bacon for York House. This meant that Bacon would never more want it. Even Bacon was stung by such a request to a friend in his condition, and declined to part with it; and Buckingham accordingly was offended, and made Bacon feel it. Indeed, there is reason to think with Mr. Spedding that for the sealing of his pardon Bacon was indebted to the good offices with the King, not of Buckingham, but of the Spaniard, Gondomar, with whom Bacon had always been on terms of cordiality and respect, and who at this time certainly "brought about something on his behalf, which his other friends either had not dared to attempt or had not been able to obtain."

But, though Bacon had his pardon, he had not received permission to come within the verge of the Court, which meant that he could not live in London. His affairs were in great disorder, his health was bad, and he was cut off from books. He wrote an appeal to the Peers who had condemned him, asking them to intercede with the King for the enlargement of his liberty. "I am old," he wrote, "weak, ruined, in want, a very subject of pity." The

Tower at least gave him the neighbourhood of those who could help him. "There I could have company, physicians, conference with my creditors and friends about my debts and the necessities of my estate, helps for my studies and the writings I have in hand. Here I live upon the sword-point of a sharp air, endangered if I go abroad, dulled if I stay within, solitary and comfortless, without company, banished from all opportunities to treat with any to do myself good, and to help out my wrecks." If the Lords would recommend his suit to the King, "You shall do a work of charity and nobility, you shall do me good, you shall do my creditors good, and it may be you shall do posterity good, if out of the carcase of dead and rotten greatness (as out of Samson's lion) there may be honey gathered for the use of future times." But Parliament was dissolved before the touching appeal reached them; and Bacon had to have recourse to other expedients. He consulted Selden about the technical legality of the sentence. He appealed to Buckingham, who vouchsafed to appear more placable. Once more he had recourse to Gondomar, "in that solitude of friends, which is the base-court of adversity," as a man whom he had "observed to have the magnanimity of his own nation and the cordiality of ours, and I am sure the wit of both"—and who had been equally kind to him in "both his fortunes;" and he proposed through Gondomar to present Gorhambury to Buckingham "for nothing," as a peace-offering. But the purchase of his liberty was to come in another way. Bacon had reconciled himself to giving up York House; but now Buckingham would not have it: he had found another house, he said, which suited him as well. That is to say, he did not now choose to have York House from Bacon himself; but he meant to have it. Accordingly, Buckingham let Bacon know through a friend of Bacon's, Sir Edward Sackville, that the price of his liberty to live in London was the cession of York House—not to Buckingham, but of all men in the world, to Lionel Cranfield, the man who had been so bitter against Bacon in the House of Commons. This is Sir Edward Sackville's account to Bacon of his talk with Buckingham; it is characteristic of every one concerned:

"In the forenoon he laid the law, but in the afternoon he preached the gospel; when, after some revivations of the old distaste concerning York House, he most nobly opened his heart unto me; wherein I read that which augured much good towards you. After which revelation the book was again sealed up, and must in his own time only by himself be

again manifested unto you. I have leave to remember some of the vision, and am not forbidden to write it. He vowed (not court like), but constantly to appear your friend so much, as if his Majesty should abandon the care of you, you should share his fortune with him. He pleased to tell me how much he had been beholden to you, how well he loved you, how unkindly he took the denial of your house (for so he will needs understand it); but the close for all this was harmonious, since he protested he would seriously begin to study your ends, now that the world should see he had no ends on you. He is in hand with the work, and therefore will by no means accept of your offer, though I can assure you the tender hath much won upon him, and mellowed his heart towards you, and your genius directed you aright when you writ that letter of denial to the Duke. The King saw it, and all the rest, which made him say unto the Marquis, you played an after-game well; and that now he had no reason to be much offended.

"I have already talked of the Revelation, and now am to speak in apocalyptical language, which I hope you will rightly comment: whereof if you make difficulty, the bearer can help you with the key of the cypher.

"My Lord Falkland by this time hath showed you London from Highgate. *If York House were gone, the town were yours*, and all your straitest shackles clean off, besides more comfort than the city air only. The Marquis would be exceeding glad the Treasurer had it. This I know; yet this you must not know from me. Bargain with him presently, upon as good conditions as you can procure, so you have direct motion from the Marquis to let him have it. Seem not to dive into the secret of it, though you are purblind if you see not through it. I have told Mr. Meautys how I would wish your Lordship now to make an end of it. From him I beseech you take it, and from me only the advice to perform it. If you part not speedily with it, you may defer the good which is approaching near you, and disappointing other aims (which must either shortly receive content or never), perhaps anew yield matter of discontent, though you may be indeed as innocent as before. Make the Treasurer believe that since the Marquis will by no means accept of it, and that you must part with it, you are more willing

to pleasure him than anybody else, because you are given to understand my Lord Marquis so inclines; which inclination, if the Treasurer shortly send unto you about it, desire may be more clearly manifested than as yet it hath been; since as I remember none hitherto hath told you *in terminis terminantibus* that the Marquis desires you should gratify the Treasurer. I know that way the hare runs, and that my Lord Marquis longs until Cranfield hath it; and so I wish too, for your good; yet would not it were absolutely passed until my Lord Marquis did send or write unto you to let him have it; for then his so disposing of it were but the next degree removed from the immediate acceptance of it, and your Lordship freed from doing it otherwise than to please him, and to comply with his own will and way."

It need hardly be said that when Cranfield got it, it soon passed into Buckingham's hands. "Bacon consented to part with his house, and Buckingham in return consented to give him his liberty." Yet Bacon could write to him, "low as I am, I had rather sojourn in a college in Cambridge than recover a good fortune by any other but yourself." "As for York House," he bids Toby Matthews to let Buckingham know, "that *whether in a straight line or a compass line*, I meant it for his Lordship, in the way which I thought might please him best." But liberty did not mean either money or recovered honour. All his life long he had made light of being in debt; but since his fall this was no longer a condition easy to bear. He had to beg some kind of pension of the King. He had to beg of Buckingham; "a small matter for my debts would do me more good now than double a twelvemonth hence. I have lost six thousand by the year, besides caps and courtesies. Two things I may assure your Lordship. The one, that I shall lead such a course of life as whatsoever the King doth for me shall rather sort to his Majesty's and your Lordship's honour than to envy; the other, that whatsoever men talk, I can play the good husband, and the King's bounty shall not be lost."

It might be supposed from the tone of these applications that Bacon's mind was bowed down and crushed by the extremity of his misfortune. Nothing could be farther from the truth. In his behaviour during his accusation there was little trace of that high spirit and fortitude shown by far inferior men under like disasters. But the moment the tremendous strain of his

misfortunes was taken off, the vigour of his mind recovered itself. The buoyancy of his hopefulness, the elasticity of his energy, are as remarkable as his profound depression. When the end was approaching, his thoughts turned at once to other work to be done, ready in plan, ready to be taken up and finished. At the close of his last desperate letter to the King he cannot resist finishing at once with a jest, and with the prospect of two great literary undertakings—

"This is my last suit which I shall make to your Majesty in this business, prostrating myself at your mercy seat, after fifteen years service, wherein I have served your Majesty in my poor endeavours with an entire heart, and, as I presumed to say unto your Majesty, am still a virgin for matters that concern your person and crown; and now only craving that after eight steps of honour I be not precipitated altogether. But because he that hath taken bribes is apt to give bribes, I will go further, and present your Majesty with a bribe. For if your Majesty will give me peace and leisure, and God give me life, I will present your Majesty with a good history of England, and a better digest of your laws."

The Tower did, indeed, to use a word of the time, "mate" him. But the moment he was out of it, his quick and fertile mind was immediately at work in all directions, reaching after all kinds of plans, making proof of all kinds of expedients to retrieve the past, arranging all kinds of work according as events might point out the way. His projects for history, for law, for philosophy, for letters, occupy quite as much of his thoughts as his pardon and his debts; and they, we have seen, occupied a good deal. If he was pusillanimous in the moment of the storm, his spirit, his force, his varied interests, returned the moment the storm was past. His self-reliance, which was boundless, revived. He never allowed himself to think, however men of his own time might judge him, that the future world would mistake him. "*Aliquis fui inter vivos*," he writes to Gondomar, "*neque omnino intermoriari apud posteros*." Even in his time he did not give up the hope of being restored to honour and power. He compared himself to Demosthenes, to Cicero, to Seneca, to Marcus Livius, who had been condemned for corrupt dealings as he had been, and had all recovered favour and position. Lookers-on were puzzled and shocked. "He has," writes Chamberlain, "no

manner of feeling of his fall, but continuing vain and idle in all his humours as when he was at the highest." "I am said," Bacon himself writes, "to have a feather in my head."

Men were mistaken. His thoughts were, for the moment, more than ever turned to the future; but he had not given up hope of having a good deal to say yet to the affairs of the present. Strangely enough, as it seems to us, in the very summer after that fatal spring of 1621 the King called for his opinion concerning the reformation of Courts of Justice; and Bacon, just sentenced for corruption and still unpardoned, proceeds to give his advice as if he were a Privy Councillor in confidential employment. Early in the following year he, according to his fashion, surveyed his position, and drew up a paper of memoranda, like the notes of the *Commentarius Solutus* of 1608, about points to be urged to the King at an interview. Why should not the King employ him again? "Your Majesty never chid me;" and as to his condemnation, "as the fault was not against your Majesty, so my fall was not your act." "Therefore," he goes on, "if your Majesty do at any time find it fit for your affairs to employ me publicly upon the stage, I shall so live and spend my time as neither discontinuance shall disable me nor adversity shall discourage me, nor anything that I do give any new scandal or envy upon me." He insists very strongly that the King's service never miscarried in his hands, for he simply carried out the King's wise counsels. "That his Majesty's business never miscarried in my hands I do not impute to any extraordinary ability in myself, but to my freedom from any particular, either friends or ends, and my careful receipt of his directions, being, as I have formerly said to him, but as a bucket and cistern to that fountain—a bucket to draw forth, a cistern to preserve." He is not afraid of the apparent slight to the censure passed on him by Parliament. "For envy, it is an almanack of the old year, and as a friend of mine said, *Parliament died penitent towards me*." "What the King bestows on me will be further seen than on Paul's steeple." "There be mountebanks, as well in the civil body as in the natural; I ever served his Majesty with modesty; no shouting, no undertaking." In the odd fashion of the time—a fashion in which no one more delighted than himself—he lays hold of sacred words to give point to his argument.

"I may allude to the three petitions of the Litany—*Libera nos Domine; parce nobis, Domine; exaudi nos, Domine*. In the first, I am persuaded that his Majesty had a mind to do it, and could not conveniently in respect of his affairs. In the second, he hath done it in my fine and pardon. In the third, he hath likewise performed, in restoring to the light of his countenance."

But if the King did not see fit to restore him to public employment, he would be ready to give private counsel; and he would apply himself to any "literary province" that the King appointed. "I am like ground fresh. If I be left to myself I will graze and bear natural philosophy; but if the King will plough me up again, and sow me with anything, I hope to give him some yield." "Your Majesty hath power; I have faith. Therefore a miracle may be wrought." And he proposes, for matters in which his pen might be useful, first, as "active" works, the recompiling of laws; the disposing of wards, and generally the education of youth; the regulation of the jurisdiction of Courts; and the regulation of Trade; and for "contemplative," the continuation of the history of Henry VIII.; a general treatise *de Legibus et Justitia*; and the "Holy War" against the Ottomans.

When he wrote this he had already shown what his unquelled energy could accomplish. In the summer and autumn after his condemnation, amid all the worries and inconveniences of that time, moving about from place to place, without his books, and without free access to papers and records, he had written his *History of Henry VII*. The theme had, no doubt, been long in his head. But the book was the first attempt at philosophical history in the language, and it at once takes rank with all that the world had yet seen, in classical times and more recently in Italy, of such history. He sent the book, among other persons, to the Queen of Bohemia, with a phrase, the translation of a trite Latin commonplace, which may have been the parent of one which became famous in our time; and with an expression of absolute confidence in the goodness of his own work.

"I have read in books that it is accounted a great bliss for a man to have *Leisure with Honour*. That was never my fortune. For time was, I had Honour without Leisure; and now I have *Leisure without Honour*.... But my desire is now to have *Leisure without Loitering*, and

not to become an abbey-lubber, as the old proverb was, but to yield some fruit of my private life.... If King Henry were alive again, I hope verily he would not be so angry with me for not flattering him, as well pleased in seeing himself so truly described in colours that will last and be believed."

But the tide had turned against him for good. A few fair words, a few grudging doles of money to relieve his pressing wants, and those sometimes intercepted and perhaps never rightly granted from an Exchequer which even Cranfield's finance could not keep filled, were all the graces that descended upon him from those fountains of goodness in which he professed to trust with such boundless faith. The King did not want him, perhaps did not trust him, perhaps did not really like him. When the *Novum Organum* came out, all that he had to say about it was in the shape of a profane jest that "it was like the peace of God—it passed all understanding." Other men had the ear of Buckingham; shrewd, practical men of business like Cranfield, who hated Bacon's loose and careless ways, or the clever ecclesiastic Williams, whose counsel had steered Buckingham safely through the tempest that wrecked Bacon, and who, with no legal training, had been placed in Bacon's seat. "I thought," said Bacon, "that I should have known my successor." Williams, for his part, charged Bacon with trying to cheat his creditors, when his fine was remitted. With no open quarrel, Bacon's relations to Buckingham became more ceremonious and guarded; the "My singular good Lord" of the former letters becomes, now that Buckingham had risen so high and Bacon had sunk so low, "Excellent Lord." The one friend to whom Bacon had once wished to owe everything had become the great man, now only to be approached with "sweet meats" and elaborate courtesy. But it was no use. His full pardon Bacon did not get, though earnestly suing for it, that he might not "die in ignominy." He never sat again in Parliament. The Provostship of Eton fell vacant, and Bacon's hopes were kindled. "It were a pretty cell for my fortune. The College and School I do not doubt but I shall make to flourish." But Buckingham had promised it to some nameless follower, and by some process of exchange it went to Sir Henry Wotton. His English history was offered in vain. His digest of the Laws was offered in vain. In vain he wrote a memorandum on the regulation of usury; notes of advice to Buckingham; elaborate reports and notes of speeches about a war with Spain, when that for a while loomed

before the country. In vain he affected an interest which he could hardly have felt in the Spanish marriage, and the escapade of Buckingham and Prince Charles, which "began," he wrote, "like a fable of the poets, but deserved all in a piece a worthy narration." In vain, when the Spanish marriage was off and the French was on, he proposed to offer to Buckingham "his service to live a summer as upon mine own delight at Paris, to settle a fast intelligence between France and us;" "I have somewhat of the French," he said, "I love birds, as the King doth." Public patronage and public employment were at an end for him. His petitions to the King and Buckingham ceased to be for office, but for the clearing of his name and for the means of living. It is piteous to read the earnestness of his requests. "Help me (dear Sovereign lord and master), pity me so far as that I who have borne a bag be not now in my age forced in effect to bear a wallet." The words are from a carefully-prepared and rhetorical letter which was not sent, but they express what he added to a letter presenting the *De Augmentis*; "*det Vestra Majestas obolum Belisario*." Again, "I prostrate myself at your Majesty's feet; I your ancient servant, now sixty-four years old in age, and three years and five months old in misery. I desire not from your Majesty means, nor place, nor employment, but only after so long a time of expiation, a complete and total remission of the sentence of the Upper House, to the end that blot of ignominy may be removed from me, and from my memory and posterity, that I die not a condemned man, but may be to your Majesty, as I am to God, *nova creatura*." But the pardon never came. Sir John Bennett, who had been condemned as a corrupt judge by the same Parliament, and between whose case and Bacon's there was as much difference, "I will not say as between black and white, but as between black and gray," had got his full pardon, "and they say shall sit in Parliament." Lord Suffolk had been one of Bacon's judges. "I hope I deserve not to be the only outcast." But whether the Court did not care, or whether, as he once suspected, there was some old enemy like Coke, who "had a tooth against him," and was watching any favour shown him, he died without his wish being fulfilled, "to live out of want and to die out of ignominy."

Bacon was undoubtedly an impoverished man, and straitened in his means; but this must be understood as in relation to the rank and position which he still held, and the work which he wanted done for the *Instauratio*. His will,

dated a few months before his death, shows that it would be a mistake to suppose that he was in penury. He no doubt often wanted ready money, and might be vexed by creditors. But he kept a large household, and was able to live in comfort at Gray's Inn or at Gorhambury. A man who speaks in his will of his "four coach geldings and his best caroache," besides many legacies, and who proposes to found two lectures at the universities, may have troubles about debts and be cramped in his expenditure, but it is only relatively to his station that he can be said to be poor. And to subordinate officers of the Treasury who kept him out of his rights, he could still write a sharp letter, full of his old force and edge. A few months before his death he thus wrote to the Lord Treasurer Ley, who probably had made some difficulty about a claim for money:

"MY LORD,—I humbly entreat your Lordship, and (if I may use the word) advise your Lordship to make me a better answer. Your Lordship is interested in honour, in the opinion of all that hear how I am dealt with. If your Lordship malice me for Long's cause, surely it was one of the justest businesses that ever was in Chancery. I will avouch it; and how deeply I was tempted therein, your Lordship knoweth best. Your Lordship may do well to think of your grave as I do of mine; and to beware of hardness of heart. And as for fair words, it is a wind by which neither your Lordship nor any man else can sail long. Howsoever, I am the man that shall give all due respects and reverence to your great place.

"20th June, 1625.  
FR. ST. ALBAN."

Bacon always claimed that he was not "vindictive." But considering how Bishop Williams, when he was Lord Keeper, had charged Bacon with "knavery" and "deceiving his creditors" in the arrangements about his fine, it is not a little strange to find that at the end of his life Bacon had so completely made friends with him that he chose him as the person to whom he meant to leave his speeches and letters, which he was "willing should not be lost," and also the charge of superintending two foundations of £200 a year for Natural Science at the universities. And the Bishop accepted the charge.

The end of this, one of the most pathetic of histories, was at hand; the end was not the less pathetic because it came in so homely a fashion. On a cold day in March he stopped his coach in the snow on his way to Highgate, to try the effect of cold in arresting putrefaction. He bought a hen from a woman by the way, and stuffed it with snow. He was taken with a bad chill, which forced him to stop at a strange house, Lord Arundel's, to whom he wrote his last letter—a letter of apology for using his house. He did not write the letter as a dying man. But disease had fastened on him. A few days after, early on Easter morning, April 9, 1626, he passed away. He was buried at St. Albans, in the Church of St. Michael, "the only Christian church within the walls of old Verulam." "For my name and memory," he said in his will, "I leave it to men's charitable speeches, and to foreign nations and the next ages." So he died: the brightest, richest, largest mind but one, in the age which had seen Shakespeare and his fellows; so bright and rich and large that there have been found those who identify him with the writer of *Hamlet* and *Othello*. That is idle. Bacon could no more have written the plays than Shakespeare could have prophesied the triumphs of natural philosophy. So ended a career, than which no other in his time had grander and nobler aims—aims, however mistaken, for the greatness and good of England; aims for the enlargement of knowledge and truth, and for the benefit of mankind. So ended a career which had mounted slowly and painfully, but resolutely, to the highest pinnacle of greatness—greatness full of honour and beneficent activity—suddenly to plunge down to depths where honour and hope were irrecoverable. So closed, in disgrace and disappointment and neglect, the last sad chapter of a life which had begun so brightly, which had achieved such permanent triumphs, which had lost itself so often in the tangles of insincerity and evil custom, which was disfigured and marred by great misfortunes, and still more by great mistakes of his own, which was in many ways misunderstood not only by his generation but by himself, but which he left in the constant and almost unaccountable faith that it would be understood and greatly honoured by posterity. With all its glories, it was the greatest shipwreck, the greatest tragedy, of an age which saw many.

But in these gloomy and dreary days of depression and vain hope to which his letters bear witness—"three years and five months old in misery," again later, "a long cleansing week of five years' expiation and more"—his

interest in his great undertaking and his industry never flagged. The King did not want what he offered, did not want his histories, did not want his help about law. Well, then, he had work of his own on which his heart was set; and if the King did not want his time, he had the more for himself. Even in the busy days of his Chancellorship he had prepared and carried through the press the *Novum Organum*, which he published on the very eve of his fall. It was one of those works which quicken a man's powers, and prove to him what he can do; and it had its effect. His mind was never more alert than in these years of adversity, his labour never more indefatigable, his powers of expression never more keen and versatile and strong. Besides the political writings of grave argument for which he found time, these five years teem with the results of work. In the year before his death he sketched out once more, in a letter to a Venetian correspondent, Fra Fulgenzio, the friend of Sarpi, the plan of his great work, on which he was still busy, though with fast diminishing hopes of seeing it finished. To another foreign correspondent, a professor of philosophy at Annecy, and a distinguished mathematician, Father Baranzan, who had raised some questions about Bacon's method, and had asked what was to be done with metaphysics, he wrote in eager acknowledgment of the interest which his writings had excited, and insisting on the paramount necessity, above everything, of the observation of facts and of natural history, out of which philosophy may be built. But the most comprehensive view of his intellectual projects in all directions, "the fullest account of his own personal feelings and designs as a writer which we have from his own pen," is given in a letter to the venerable friend of his early days, Bishop Andrewes, who died a few months after him. Part, he says, of his *Instauratio*, "the work in mine own judgement (*si nunquam fallit imago*) I do most esteem," has been published; but because he "doubts that it flies too high over men's heads," he proposes "to draw it down to the sense" by examples of Natural History. He has enlarged and translated the *Advancement* into the *De Augmentis*. "Because he could not altogether desert the civil person that he had borne," he had begun a work on Laws, intermediate between philosophical jurisprudence and technical law. He had hoped to compile a digest of English law, but found it more than he could do alone, and had laid it aside. The *Instauratio* had contemplated the good of men "in the dowries of nature;" the *Laws*, their good "in society and the dowries of government." As he owed duty to his country, and could no longer do it service, he meant to do it honour by

his history of Henry VII. His *Essays* were but "recreations;" and remembering that all his writings had hitherto "gone all into the City and none into the Temple," he wished to make "some poor oblation," and therefore had chosen an argument mixed of religious and civil considerations, the dialogue of "an Holy War" against the Ottoman, which he never finished, but which he intended to dedicate to Andrewes, "in respect of our ancient and private acquaintance, and because amongst the men of our times I hold you in special reverence."

The question naturally presents itself, in regard to a friend of Bishop Andrewes, What was Bacon as regards religion? And the answer, it seems to me, can admit of no doubt. The obvious and superficial thing to say is that his religion was but an official one, a tribute to custom and opinion. But it was not so. Both in his philosophical thinking, and in the feelings of his mind in the various accidents and occasions of life, Bacon was a religious man, with a serious and genuine religion. His sense of the truth and greatness of religion was as real as his sense of the truth and greatness of nature; they were interlaced together, and could not be separated, though they were to be studied separately and independently. The call, repeated through all his works from the earliest to the last, *Da Fidel quæ Fidel sunt*, was a warning against confusing the two, but was an earnest recognition of the claims of each. The solemn religious words in which his prefaces and general statements often wind up with thanksgiving and hope and prayer, are no mere words of course; they breathe the spirit of the deepest conviction. It is true that he takes the religion of Christendom as he finds it. The grounds of belief, the relation of faith to reason, the profounder inquiries into the basis of man's knowledge of the Eternal and Invisible, are out of the circle within which he works. What we now call the philosophy of religion is absent from his writings. In truth, his mind was not qualified to grapple with such questions. There is no sign in his writings that he ever tried his strength against them; that he ever cared to go below the surface into the hidden things of mind, and what mind deals with above and beyond sense—those metaphysical difficulties and depths, as we call them, which there is no escaping, and which are as hard to explore and as dangerous to mistake as the forces and combinations of external nature. But it does not follow, because he had not asked all the questions that others have asked, that he had not thought out his reasonable faith. His religion was not one of

mere vague sentiment: it was the result of reflection and deliberate judgment. It was the discriminating and intelligent Church of England religion of Hooker and Andrewes, which had gone back to something deeper and nobler in Christianity than the popular Calvinism of the earlier Reformation; and though sternly hostile to the system of the Papacy, both on religious and political grounds, attempted to judge it with knowledge and justice. This deliberate character of his belief is shown in the remarkable Confession of Faith which he left behind him: a closely-reasoned and nobly-expressed survey of Christian theology—"a *summa theologiæ*, digested into seven pages of the finest English of the days when its tones were finest." "The entire scheme of Christian theology," as Mr. Spedding says, "is constantly in his thoughts; underlies everything; defines for him the limits of human speculation; and, as often as the course of inquiry touches at any point the boundary line, never fails to present itself. There is hardly any occasion or any kind of argument into which it does not at one time or another incidentally introduce itself." Doubtless it was a religion which in him was compatible, as it has been in others, with grave faults of temperament and character. But it is impossible to doubt that it was honest, that it elevated his thoughts, that it was a refuge and stay in the times of trouble.

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## CHAPTER VIII.

### BACON'S PHILOSOPHY.

Bacon was one of those men to whom posterity forgives a great deal for the greatness of what he has done and attempted for posterity. It is idle, unless all honest judgment is foregone, to disguise the many deplorable shortcomings of his life; it is unjust to have one measure for him, and another for those about him and opposed to him. But it is not too much to say that in temper, in honesty, in labour, in humility, in reverence, he was the most perfect example that the world had yet seen of the student of nature, the enthusiast for knowledge. That such a man was tempted and fell, and suffered the Nemesis of his fall, is an instance of the awful truth embodied in the tragedy of *Faust*. But his genuine devotion, so unwearied and so paramount, to a great idea and a great purpose for the good of all generations to come, must shield him from the insult of Pope's famous and shallow epigram. Whatever may have been his sins, and they were many, he cannot have been the "meanest of mankind," who lived and died, holding unaltered, amid temptations and falls, so noble a conception of the use and calling of his life: the duty and service of helping his brethren to know as they had never yet learned to know. That thought never left him; the obligations it imposed were never forgotten in the crush and heat of business; the toils, thankless at the time, which it heaped upon him in addition to the burdens of public life were never refused. Nothing diverted him, nothing made him despair. He was not discouraged because he was not understood. There never was any one in whose life the "*Souveraineté du but*" was more certain and more apparent; and that object was the second greatest that man can have. To teach men to know is only next to making them good.

The Baconian philosophy, the reforms of the *Novum Organum*, the method of experiment and induction, are commonplaces, and sometimes lead to a misconception of what Bacon did. Bacon is, and is not, the founder of

modern science. What Bacon believed could be done, what he hoped and divined, for the correction and development of human knowledge, was one thing; what his methods were, and how far they were successful, is another. It would hardly be untrue to say that though Bacon is the parent of modern science, his methods contributed nothing to its actual discoveries; neither by possibility could they have done so. The great and wonderful work which the world owes to him was in the idea, and not in the execution. The idea was that the systematic and wide examination of facts was the first thing to be done in science, and that till this had been done faithfully and impartially, with all the appliances and all the safeguards that experience and forethought could suggest, all generalisations, all anticipations from mere reasoning, must be adjourned and postponed; and further, that sought on these conditions, knowledge, certain and fruitful, beyond all that men then imagined, could be attained. His was the faith of the discoverer, the imagination of the poet, the voice of the prophet. But his was not the warrior's arm, the engineer's skill, the architect's creativeness. "I only sound the clarion," he says, "but I enter not into the battle;" and with a Greek quotation very rare with him, he compares himself to one of Homer's peaceful heralds, χαίρετε κήρυκες, Δίος ἄγγελοι ἡδὲ καὶ ἀνδρῶν. Even he knew not the full greatness of his own enterprise. He underrated the vastness and the subtlety of nature. He overrated his own appliances to bring it under his command. He had not that incommunicable genius and instinct of the investigator which in such men as Faraday close hand to hand with phenomena. His weapons and instruments wanted precision; they were powerful up to a certain point, but they had the clumsiness of an unpractised time. Cowley compared him to Moses on Pisgah surveying the promised land; it was but a distant survey, and Newton was the Joshua who began to take possession of it.

The idea of the great enterprise, in its essential outline, and with a full sense of its originality and importance, was early formed, and was even sketched on paper with Bacon's characteristic self-reliance when he was but twenty-five. Looking back, in a letter written in the last year of his life, on the ardour and constancy with which he had clung to his faith—"in that purpose my mind never waxed old; in that long interval of time it never cooled"—he remarks that it was then "forty years since he put together a youthful essay on these matters, which with vast confidence I called by the high-sounding

title, *The Greatest Birth of Time*." "The Greatest Birth of Time," whatever it was, has perished, though the name, altered to "*Partus Temporis Masculus*" has survived, attached to some fragments of uncertain date and arrangement. But in very truth the child was born, and, as Bacon says, for forty years grew and developed, with many changes yet the same. Bacon was most tenacious, not only of ideas, but even of the phrases, images, and turns of speech in which they had once flashed on him and taken shape in his mind. The features of his undertaking remained the same from first to last, only expanded and enlarged as time went on and experience widened; his conviction that the knowledge of nature, and with it the power to command and to employ nature, were within the capacity of mankind and might be restored to them; the certainty that of this knowledge men had as yet acquired but the most insignificant part, and that all existing claims to philosophical truth were as idle and precarious as the guesses and traditions of the vulgar; his belief that no greater object could be aimed at than to sweep away once and for ever all this sham knowledge and all that supported it, and to lay an entirely new and clear foundation to build on for the future; his assurance that, as it was easy to point out with fatal and luminous certainty the rottenness and hollowness of all existing knowledge and philosophy, so it was equally easy to devise and practically apply new and natural methods of investigation and construction, which should replace it by knowledge of infallible truth and boundless fruitfulness. His object—to gain the key to the interpretation of nature; his method—to gain it, not by the means common to all previous schools of philosophy, by untested reasonings and imposing and high-sounding generalisations, but by a series and scale of rigorously verified inductions, starting from the lowest facts of experience to discoveries which should prove and realise themselves by leading deductively to practical results—these, in one form or another, were the theme of his philosophical writings from the earliest sight of them that we gain.

He had disclosed what was in his mind in the letter to Lord Burghley, written when he was thirty-one (1590/91), in which he announced that he had "taken all knowledge for his province," to "purge it of 'frivolous disputations' and 'blind experiments,' and that whatever happened to him, he meant to be a 'true pioneer in the mine of truth.'" But the first public step in the opening of his great design was the publication in the autumn of 1605 of

the *Advancement of Learning*, a careful and balanced report on the existing stock and deficiencies of human knowledge. His endeavours, as he says in the *Advancement* itself, are "but as an image in a cross-way, that may point out the way, but cannot go it." But from this image of his purpose, his thoughts greatly widened as time went on. The *Advancement*, in part at least, was probably a hurried work. It shadowed out, but only shadowed out, the lines of his proposed reform of philosophical thought; it showed his dissatisfaction with much that was held to be sound and complete, and showed the direction of his ideas and hopes. But it was many years before he took a further step. Active life intervened. In 1620, at the height of his prosperity, on the eve of his fall, he published the long meditated *Novum Organum*, the avowed challenge to the old philosophies, the engine and instrument of thought and discovery which was to put to shame and supersede all others, containing, in part at least, the principles of that new method of the use of experience which was to be the key to the interpretation and command of nature, and, together with the method, an elaborate but incomplete exemplification of its leading processes. Here were summed up, and stated with the most solemn earnestness, the conclusions to which long study and continual familiarity with the matters in question had led him. And with the *Novum Organum* was at length disclosed, though only in outline, the whole of the vast scheme in all its parts, object, method, materials, results, for the "Instauration" of human knowledge, the restoration of powers lost, disused, neglected, latent, but recoverable by honesty, patience, courage, and industry.

The *Instauratio*, as he planned the work, "is to be divided," says Mr. Ellis, "into six portions, of which the *first* is to contain a general survey of the present state of knowledge. In the *second*, men are to be taught how to use their understanding aright in the investigation of nature. In the *third*, all the phenomena of the universe are to be stored up as in a treasure-house, as the materials on which the new method is to be employed. In the *fourth*, examples are to be given of its operation and of the results to which it leads. The *fifth* is to contain what Bacon had accomplished in natural philosophy *without* the aid of his own method, *ex eodem intellectûs usu quem alii in inquirendo et inveniando adhibere consueverunt*. It is therefore less important than the rest, and Bacon declares that he will not bind himself to the conclusions which

it contains. Moreover, its value will altogether cease when the *sixth* part can be completed, wherein will be set forth the new philosophy—the results of the application of the new method to all the phenomena of the universe. But to complete this, the last part of the *Instauratio*, Bacon does not hope; he speaks of it as a thing, *et supra vires et ultra spes nostras collocata*."—*Works*, i. 71.

The *Novum Organum*, itself imperfect, was the crown of all that he lived to do. It was followed (1622) by the publication, intended to be periodical, of materials for the new philosophy to work upon, particular sections and classes of observations on phenomena—the *History of the Winds*, the *History of Life and Death*. Others were partly prepared but not published by him. And finally, in 1623, he brought out in Latin a greatly enlarged recasting of the *Advancement*; the nine books of the "*De Augmentis*." But the great scheme was not completed; portions were left more or less finished. Much that he purposed was left undone, and could not have been yet done at that time.

But the works which he published represent imperfectly the labour spent on the undertaking. Besides these there remains a vast amount of unused or rejected work, which shows how it was thought out, rearranged, tried first in one fashion and then in another, recast, developed. Separate chapters, introductions, "experimental essays and discarded beginnings," treatises with picturesque and imaginative titles, succeeded one another in that busy work-shop; and these first drafts and tentative essays have in them some of the freshest and most felicitous forms of his thoughts. At one time his enterprise, connecting itself with his own life and mission, rose before his imagination and kindled his feelings, and embodied itself in the lofty and stately "Proem" already quoted. His quick and brilliant imagination saw shadows and figures of his ideas in the ancient mythology, which he worked out with curious ingenuity and often much poetry in his *Wisdom of the Ancients*. Towards the end of his life he began to embody his thoughts and plans in a philosophical tale, which he did not finish—the *New Atlantis*—a charming example of his graceful fancy and of his power of easy and natural story-telling. Between the *Advancement* and the *Novum Organum* (1605-20) much underground work had been done. "He had finally (about 1607) settled the plan of the *Great Instauration*, and began to call it by that

name." The plan, first in three or four divisions, had been finally digested into six. Vague outlines had become definite and clear. Distinct portions had been worked out. Various modes of treatment had been tried, abandoned, modified. Prefaces were written to give the sketch and purpose of chapters not yet composed. The *Novum Organum* had been written and rewritten twelve times over. Bacon kept his papers, and we can trace in the unused portion of those left behind him much of the progress of his work, and the shapes which much of it went through. The *Advancement* itself is the filling-out and perfecting of what is found in germ, meagre and rudimentary, in a *Discourse in Praise of Knowledge*, written in the days of Elizabeth, and in some Latin chapters of an early date, the *Cogitationes de Scientia Humana*, on the limits and use of knowledge, and on the relation of natural history to natural philosophy. These early essays, with much of the same characteristic illustration, and many of the favourite images and maxims and texts and phrases, which continue to appear in his writings to the end, contain the thoughts of a man long accustomed to meditate and to see his way on the new aspects of knowledge opening upon him. And before the *Advancement* he had already tried his hand on a work intended to be in two books, which Mr. Ellis describes as a "great work on the Interpretation of Nature," the "earliest type of the *Instauratio*," and which Bacon called by the enigmatical name of *Valerius Terminus*. In it, as in a second draft, which in its turn was superseded by the *Advancement*, the line of thought of the Latin *Cogitationes* reappears, expanded and more carefully ordered; it contains also the first sketch of his certain and infallible method for what he calls the "freeing of the direction" in the search after Truth, and the first indications of the four classes of "Idols" which were to be so memorable a portion of Bacon's teaching. And between the *Advancement* and the *Novum Organum* at least one unpublished treatise of great interest intervened, the *Visa et Cogitata*, on which he was long employed, and which he brought to a finished shape, fit to be submitted to his friends and critics, Sir Thomas Bodley and Bishop Andrewes. It is spoken of as a book to be "imparted *sicut videbitur*," in the review which he made of his life and objects soon after he was made Solicitor in 1608. A number of fragments also bear witness to the fierce scorn and wrath which possessed him against the older and the received philosophies. He tried his hand at declamatory onslaughts on the leaders of human wisdom, from the early Greeks and Aristotle down to the latest "novellists;" and he certainly

succeeded in being magnificently abusive. But he thought wisely that this was not the best way of doing what in the *Commentarius Solutus* he calls on himself to do—"taking a greater confidence and authority in discourses of this nature, *tanquam sui certus et de alto despiciens*;" and the rhetorical *Redargutio Philosophiarum* and writings of kindred nature were laid aside by his more serious judgment. But all these fragments witness to the immense and unwearied labour bestowed in the midst of a busy life on his undertaking; they suggest, too, the suspicion that there was much waste from interruption, and the doubt whether his work would not have been better if it could have been more steadily continuous. But if ever a man had a great object in life, and pursued it through good and evil report, through ardent hope and keen disappointment, to the end, with unwearied patience and unshaken faith, it was Bacon, when he sought the improvement of human knowledge "for the glory of God and the relief of man's estate." It is not the least part of the pathetic fortune of his life that his own success was so imperfect.

When a reader first comes from the vague, popular notions of Bacon's work to his definite proposals the effect is startling. Every one has heard that he contemplated a complete reform of the existing conceptions of human knowledge, and of the methods by which knowledge was to be sought; that rejecting them as vitiated, by the loose and untested way in which they had been formed, he called men from verbal generalisations and unproved assumptions to come down face to face with the realities of experience; that he substituted for formal reasoning, from baseless premises and unmeaning principles, a methodical system of cautious and sifting inference from wide observation and experiment; and that he thus opened the path which modern science thenceforth followed, with its amazing and unexhausted discoveries, and its vast and beneficent practical results. We credit all this to Bacon, and assuredly not without reason. All this is what was embraced in his vision of a changed world of thought and achievement. All this is what was meant by that *Regnum Hominis*, which, with a play on sacred words which his age did not shrink from, and which he especially pleased himself with, marked the coming of that hitherto unimagined empire of man over the powers and forces which encompassed him. But the detail of all this is multifarious and complicated, and is not always what we expect; and when we come to see how his work is estimated by those who, by greatest

familiarity with scientific ideas and the history of scientific inquiries, are best fitted to judge of it, many a surprise awaits us.

For we find that the greatest differences of opinion exist on the value of what he did. Not only very unfavourable judgments have been passed upon it, on general grounds—as an irreligious, or a shallow and one-sided, or a poor and "utilitarian" philosophy, and on a definite comparison of it with the actual methods and processes which as a matter of history have been the real means of scientific discovery—but also some of those who have most admired his genius, and with the deepest love and reverence have spared no pains to do it full justice, have yet come to the conclusion that as an instrument and real method of work Bacon's attempt was a failure. It is not only De Maistre and Lord Macaulay who dispute his philosophical eminence. It is not only the depreciating opinion of a contemporary like Harvey, who was actually doing what Bacon was writing about. It is not only that men who after the long history of modern science have won their place among its leaders, and are familiar by daily experience with the ways in which it works—a chemist like Liebig, a physiologist like Claude Bernard—say that they can find nothing to help them in Bacon's methods. It is not only that a clear and exact critic like M. de Rémusat looks at his attempt, with its success and failure, as characteristic of English, massive, practical good sense rather than as marked by real philosophical depth and refinement, such as Continental thinkers point to and are proud of in Descartes and Leibnitz. It is not even that a competent master of the whole domain of knowledge, Whewell, filled with the deepest sense of all that the world owes to Bacon, takes for granted that "though Bacon's general maxims are sagacious and animating, his particular precepts failed in his hands, and are now practically useless;" and assuming that Bacon's method is not the right one, and not complete as far as the progress of science up to his time could direct it, proceeds to construct a *Novum Organum Renovatum*. But Bacon's writings have recently undergone the closest examination by two editors, whose care for his memory is as loyal and affectionate as their capacity is undoubted, and their willingness to take trouble boundless. And Mr. Ellis and Mr. Spedding, with all their interest in every detail of Bacon's work, and admiration of the way in which he performed it, make no secret of their conclusion that he failed in the very thing on which he was most bent—the discovery of practical and fruitful

ways of scientific inquiry. "Bacon," says Mr. Spedding, "failed to devise a practicable method for the discovery of the Forms of Nature, because he misconceived the conditions of the case.... For the same reason he failed to make any single discovery which holds its place as one of the steps by which science has in any direction really advanced. The clew with which he entered the labyrinth did not reach far enough; before he had nearly attained his end he was obliged either to come back or to go on without it."

"His peculiar system of philosophy," says Mr. Spedding in another preface, "that is to say, the peculiar method of investigation, the "*organum*," the "*formula*," the "*clavis*," the "*ars ipsa interpretandi naturam*," the "*filum Labyrinthi*," or by whatever of its many names we choose to call that artificial process by which alone he believed man could attain a knowledge of the laws and a command over the powers of nature—*of this philosophy we can make nothing*. If we have not tried it, it is because we feel confident that it would not answer. We regard it as a curious piece of machinery, very subtle, elaborate, and ingenious, but not worth constructing, because all the work it could do may be done more easily another way."—*Works*, iii. 171.

What his method really was is itself a matter of question. Mr. Ellis speaks of it as a matter "but imperfectly apprehended." He differs from his fellow-labourer Mr. Spedding, in what he supposes to be its central and characteristic innovation. Mr. Ellis finds it in an improvement and perfection of logical machinery. Mr. Spedding finds it in the formation of a great "natural and experimental history," a vast collection of facts in every department of nature, which was to be a more important part of his philosophy than the *Novum Organum* itself. Both of them think that as he went on, the difficulties of the work grew upon him, and caused alterations in his plans, and we are reminded that "there is no didactic exposition of his method in the whole of his writings," and that "this has not been sufficiently remarked by those who have spoken of his philosophy."

In the first place, the kind of intellectual instrument which he proposed to construct was a mistake. His great object was to place the human mind "on a level with things and nature" (*ut faciamus intellectum humanum rebus et naturæ parem*), and this could only be done by a revolution in methods. The

ancients had all that genius could do for man; but it was a matter, he said, not of the strength and fleetness of the running, but of the rightness of the way. It was a new method, absolutely different from anything known, which he proposed to the world, and which should lead men to knowledge, with the certainty and with the impartial facility of a high-road. The Induction which he imagined to himself as the contrast to all that had yet been tried was to have two qualities. It was to end, by no very prolonged or difficult processes, in absolute certainty. And next, it was to leave very little to the differences of intellectual power: it was to level minds and capacities. It was to give all men the same sort of power which a pair of compasses gives the hand in drawing a circle. "*Absolute certainty, and a mechanical mode of procedure*" says Mr. Ellis, "*such that all men should be capable of employing it, are the two great features of the Baconian system.*" This he thought possible, and this he set himself to expound—"a method universally applicable, and in all cases infallible." In this he saw the novelty and the vast importance of his discovery. "By this method all the knowledge which the human mind was capable of receiving might be attained, and attained without unnecessary labour." It was a method of "a demonstrative character, with the power of reducing all minds to nearly the same level." The conception, indeed, of a "great Art of knowledge," of an "Instauration" of the sciences, of a "Clavis" which should unlock the difficulties which had hindered discovery, was not a new one. This attempt at a method which should be certain, which should level capacities, which should do its work in a short time, had a special attraction for the imagination of the wild spirits of the South, from Raimond Lulli in the thirteenth century to the audacious Calabrians of the sixteenth. With Bacon it was something much more serious and reasonable and business-like. But such a claim has never yet been verified; there is no reason to think that it ever can be; and to have made it shows a fundamental defect in Bacon's conception of the possibilities of the human mind and the field it has to work in.

In the next place, though the prominence which he gave to the doctrine of Induction was one of those novelties which are so obvious after the event, though so strange before it, and was undoubtedly the element in his system which gave it life and power and influence on the course of human thought and discovery, his account of Induction was far from complete and satisfactory. Without troubling himself about the theory of Induction, as De

Rémusat has pointed out, he contented himself with applying to its use the precepts of common-sense and a sagacious perception of the circumstances in which it was to be employed. But even these precepts, notable as they were, wanted distinctness, and the qualities needed for working rules. The change is great when in fifty years we pass from the poetical science of Bacon to the mathematical and precise science of Newton. His own time may well have been struck by the originality and comprehensiveness of such a discriminating arrangement of proofs as the "Prerogative Instances" of the *Novum Organum*, so natural and real, yet never before thus compared and systematized. But there is a great interval between his method of experimenting, his "*Hunt of Pan*"—the three tables of Instances, "*Presence*," "*Absence*" and "*Degrees, or Comparisons*," leading to a process of sifting and exclusion, and to the *First Vintage*, or beginnings of theory—and say, for instance, Mill's four methods of experimental inquiry: the method of *agreement*, of *differences*, of *residues*, and of *concomitant variations*. The course which he marked out so laboriously and so ingeniously for Induction to follow was one which was found to be impracticable, and as barren of results as those deductive philosophies on which he lavished his scorn. He has left precepts and examples of what he meant by his cross-examining and sifting processes. As admonitions to cross-examine and to sift facts and phenomena they are valuable. Many of the observations and classifications are subtle and instructive. But in his hands nothing comes of them. They lead at the utmost to mere negative conclusions; they show what a thing is not. But his attempt to elicit anything positive out of them breaks down, or ends at best in divinations and guesses, sometimes—as in connecting Heat and Motion—very near to later and more carefully-grounded theories, but always unverified. He had a radically false and mechanical conception, though in words he earnestly disclaims it, of the way to deal with the facts of nature. He looked on them as things which told their own story, and suggested the questions which ought to be put to them; and with this idea half his time was spent in collecting huge masses of indigested facts of the most various authenticity and value, and he thought he was collecting materials which his method had only to touch in order to bring forth from them light and truth and power. He thought that, not in certain sciences, but in all, one set of men could do the observing and collecting, and another be set on the work of Induction and the discovery of "axioms." Doubtless in the arrangement and sorting of

them his versatile and ingenious mind gave itself full play; he divides and distinguishes them into their companies and groups, different kinds of Motion, "Prerogative" instances, with their long tale of imaginative titles. But we look in vain for any use that he was able to make of them, or even to suggest. Bacon never adequately realised that no promiscuous assemblage of even the most certain facts could ever lead to knowledge, could ever suggest their own interpretation, without the action on them of the living mind, without the initiative of an idea. In truth he was so afraid of assumptions and "anticipations" and prejudices—his great bugbear was so much the "*intellectus sibi permissus*" the mind given liberty to guess and imagine and theorise, instead of, as it ought, absolutely and servilely submitting itself to the control of facts—that he missed the true place of the rational and formative element in his account of Induction. He does tell us, indeed, that "truth emerges sooner from error than from confusion." He indulges the mind, in the course of its investigation of "Instances," with a first "vintage" of provisional generalisations. But of the way in which the living mind of the discoverer works, with its ideas and insight, and thoughts that come no one knows whence, working hand in hand with what comes before the eye or is tested by the instrument, he gives us no picture. Compare his elaborate investigation of the "Form of Heat" in the *Novum Organum*, with such a record of real inquiry as Wells's *Treatise on Dew*, or Herschel's analysis of it in his *Introduction to Natural Philosophy*. And of the difference of genius between a Faraday or a Newton, and the crowd of average men who have used and finished off their work, he takes no account. Indeed, he thinks that for the future such difference is to disappear.

"That his method is impracticable," says Mr. Ellis, "cannot, I think, be denied, if we reflect not only that it never has produced any result, but also that the process by which scientific truths have been established cannot be so presented as even to appear to be in accordance with it. In all cases this process involves an element to which nothing corresponds in the Tables of 'Comparence' and 'Exclusion,' namely, the application to the facts of observation of a principle of arrangement, an idea, existing in the mind of the discoverer antecedently to the act of induction. It may be said that this idea is precisely one of the *naturæ* into which the facts of observation ought in Bacon's system to be analysed. And this is in one sense true; but it must be added that this

analysis, if it be thought right so to call it, is of the essence of the discovery which results from it. In most cases the act of induction follows as a matter of course as soon as the appropriate idea has been introduced."—Ellis, *General Preface*, i. 38.

Lastly, not only was Bacon's conception of philosophy so narrow as to exclude one of its greatest domains; for, says Mr. Ellis, "it cannot be denied that to Bacon all sound philosophy seemed to be included in what we now call the natural sciences," and in all its parts was claimed as the subject of his inductive method; but Bacon's scientific knowledge and scientific conceptions were often very imperfect—more imperfect than they ought to have been for his time. Of one large part of science, which was just then beginning to be cultivated with high promise of success—the knowledge of the heavens—he speaks with a coldness and suspicion which contrasts remarkably with his eagerness about things belonging to the sphere of the earth and within reach of the senses. He holds, of course, the unity of the world; the laws of the whole visible universe are one order; but the heavens, wonderful as they are to him, are—compared with other things—out of his track of inquiry. He had his astronomical theories; he expounded them in his "*Descriptio Globi Intellectualis*" and his *Thema Coeli*. He was not altogether ignorant of what was going on in days when Copernicus, Kepler, and Galileo were at work. But he did not know how to deal with it, and there were men in England, before and then, who understood much better than he the problems and the methods of astronomy. He had one conspicuous and strange defect for a man who undertook what he did. He was not a mathematician: he did not see the indispensable necessity of mathematics in the great *Instauration* which he projected; he did not much believe in what they could do. He cared so little about them that he takes no notice of Napier's invention of Logarithms. He was not able to trace how the direct information of the senses might be rightly subordinated to the rational, but not self-evident results of geometry and arithmetic. He was impatient of the subtleties of astronomical calculations; they only attempted to satisfy problems about the motion of bodies in the sky, and told us nothing of physical fact; they gave us, as Prometheus gave to Jove, the outside skin of the offering, which was stuffed inside with straw and rubbish. He entirely failed to see that before dealing with physical astronomy, it must be dealt with mathematically. "It is well to remark," as

Mr. Ellis says, "that none of Newton's astronomical discoveries could have been made if astronomers had not continued to render themselves liable to Bacon's censure." Bacon little thought that in navigation the compass itself would become a subordinate instrument compared with the helps given by mathematical astronomy. In this, and in other ways, Bacon rose above his time in his conceptions of what *might be*, but not of what *was*; the list is a long one, as given by Mr. Spedding (iii. 511), of the instances which show that he was ill-informed about the advances of knowledge in his own time. And his mind was often not clear when he came to deal with complex phenomena. Thus, though he constructed a table of specific gravities—"the only collection," says Mr. Ellis, "of quantitative experiments that we find in his works," and "wonderfully accurate considering the manner in which they were obtained;" yet he failed to understand the real nature of the famous experiment of Archimedes. And so with the larger features of his teaching it is impossible not to feel how imperfectly he had emancipated himself from the power of words and of common prepossessions; how for one reason or another he had failed to call himself to account in the terms he employed, and the assumptions on which he argued. The caution does not seem to have occurred to him that the statement of a fact may, in nine cases out of ten, involve a theory. His whole doctrine of "Forms" and "Simple natures," which is so prominent in his method of investigation, is an example of loose and slovenly use of unexamined and untested ideas. He allowed himself to think that it would be possible to arrive at an alphabet of nature, which, once attained, would suffice to spell out and constitute all its infinite combinations. He accepted, without thinking it worth a doubt, the doctrine of appetites and passions and inclinations and dislikes and horrors in inorganic nature. His whole physiology of life and death depends on a doctrine of animal spirits, of which he traces the operations and qualities as if they were as certain as the nerves or the blood, and of which he gives this account—"that in every tangible body there is a spirit covered and enveloped in the grosser body;" "not a virtue, not an energy, not an actuality, nor any such idle matter, but a body thin and invisible, and yet having place and dimension, and real." ... "a middle nature between flame, which is momentary, and air which is permanent." Yet these are the very things for which he holds up Aristotle and the Scholastics and the Italian speculators to reprobation and scorn. The clearness of his thinking was often overlaid by the immense profusion of decorative material which his

meditation brought along with it. The defect was greater than that which even his ablest defenders admit. It was more than that in that "greatest and radical difference, which he himself observes" between minds, the difference between minds which were apt to note *distinctions*, and those which were apt to note *likenesses*, he was, without knowing it, defective in the first. It was that in many instances he exemplified in his own work the very faults which he charged on the older philosophies: haste, carelessness, precipitancy, using words without thinking them out, assuming to know when he ought to have perceived his real ignorance.

What, then, with all these mistakes and failures, not always creditable or pardonable, has given Bacon his preeminent place in the history of science?

1. The answer is that with all his mistakes and failures, the principles on which his mode of attaining a knowledge of nature was based were the only true ones; and they had never before been propounded so systematically, so fully, and so earnestly. His was not the first mind on whom these principles had broken. Men were, and had been for some time, pursuing their inquiries into various departments of nature precisely on the general plan of careful and honest observation of real things which he enjoined. They had seen, as he saw, the futility of all attempts at natural philosophy by mere thinking and arguing, without coming into contact with the contradictions or corrections or verifications of experience. In Italy, in Germany, in England there were laborious and successful workers, who had long felt that to be in touch with nature was the only way to know. But no one had yet come before the world to proclaim this on the house-tops, as the key of the only certain path to the secrets of nature, the watchword of a revolution in the methods of interpreting her; and this Bacon did with an imposing authority and power which enforced attention. He spoke the thoughts of patient toilers like Harvey with a largeness and richness which they could not command, and which they perhaps smiled at. He disentangled and spoke the vague thoughts of his age, which other men had not the courage and clearness of mind to formulate. What Bacon *did*, indeed, and what he *meant*, are separate matters. He *meant* an infallible method by which man should be fully equipped for a struggle with nature; he meant an irresistible and immediate conquest, within a definite and not distant time. It was too much. He himself saw no more of what he *meant* than Columbus did of

America. But what he *did* was to persuade men for the future that the intelligent, patient, persevering cross-examination of things, and the thoughts about them, was the only, and was the successful road to know. No one had yet done this, and he did it. His writings were a public recognition of real science, in its humblest tasks about the commonplace facts before our feet, as well as in its loftiest achievements. "The man who is growing great and happy by electrifying a bottle," says Dr. Johnson, "wonders to see the world engaged in the prattle about peace and war," and the world was ready to smile at the simplicity or the impertinence of his enthusiasm. Bacon impressed upon the world for good, with every resource of subtle observation and forcible statement, that "the man who is growing great by electrifying a bottle" is as important a person in the world's affairs as the arbiter of peace and war.

2. Yet this is not all. An inferior man might have made himself the mouthpiece of the hopes and aspirations of his generation after a larger science. But to Bacon these aspirations embodied themselves in the form of a great and absorbing idea; an idea which took possession of the whole man, kindling in him a faith which nothing could quench, and a passion which nothing could dull; an idea which, for forty years, was his daily companion, his daily delight, his daily business; an idea which he was never tired of placing in ever fresh and more attractive lights, from which no trouble could wean him, about which no disaster could make him despair; an idea round which the instincts and intuitions and obstinate convictions of genius gathered, which kindled his rich imagination and was invested by it with a splendour and magnificence like the dreams of fable. It is this idea which finds its fitting expression in the grand and stately aphorisms of the *Novum Organum*, in the varied fields of interest in the *De Augmentis*, in the romance of the *New Atlantis*. It is this idea, this certainty of a new unexplored Kingdom of Knowledge within the reach and grasp of man, if he will be humble enough and patient enough and truthful enough to occupy it—this announcement not only of a new system of thought, but of a change in the condition of the world—a prize and possession such as man had not yet imagined; this belief in the fortunes of the human race and its issue, "such an issue, it may be, as in the present condition of things and men's minds cannot easily be conceived or imagined," yet more than verified in the wonders which our eyes have seen—it is this which gives its

prerogative to Bacon's work. That he bungled about the processes of Induction, that he talked about an unintelligible doctrine of *Forms*, did not affect the weight and solemnity of his call to learn, so full of wisdom and good-sense, so sober and so solid, yet so audaciously confident. There had been nothing like it in its ardour of hope, in the glory which it threw around the investigation of nature. It was the presence and the power of a great idea—long become a commonplace to us, but strange and perplexing at first to his own generation, which probably shared Coke's opinion that it qualified its champion for a place in the company of the "Ship of Fools," which expressed its opinion of the man who wrote the *Novum Organum*, in the sentiment that "a fool *could* not have written it, and a wise man *would* not"—it is this which has placed Bacon among the great discoverers of the human race.

It is this imaginative yet serious assertion of the vast range and possibilities of human knowledge which, as M. de Rémusat remarks—the keenest and fairest of Bacon's judges—gives Bacon his claim to the undefinable but very real character of greatness. Two men stand out, "the masters of those who know," without equals up to their time, among men—the Greek Aristotle and the Englishman Bacon. They agree in the universality and comprehensiveness of their conception of human knowledge; and they were absolutely alone in their serious practical ambition to work out this conception. In the separate departments of thought, of investigation, of art, each is left far behind by numbers of men, who in these separate departments have gone far deeper than they, have soared higher, have been more successful in what they attempted. But Aristotle first, and for his time more successfully, and Bacon after him, ventured on the daring enterprise of "taking all knowledge for their province;" and in this they stood alone. This present scene of man's existence, this that we call nature, the stage on which mortal life begins and goes on and ends, the faculties with which man is equipped to act, to enjoy, to create, to hold his way amid or against the circumstances and forces round him—this is what each wants to know, as thoroughly and really as can be. It is not to reduce things to a theory or a system that they look around them on the place where they find themselves with life and thought and power; that were easily done, and has been done over and over again, only to prove its futility. It is to know, as to the whole and its parts, as men understand *knowing* in some one subject of successful

handling, whether art or science or practical craft. This idea, this effort, distinguishes these two men. The Greeks—predecessors, contemporaries, successors of Aristotle—were speculators, full of clever and ingenious guesses, in which the amount of clear and certain fact was in lamentable disproportion to the schemes blown up from it; or they devoted themselves more profitably to some one or two subjects of inquiry, moral or purely intellectual, with absolute indifference to what might be asked, or what might be known, of the real conditions under which they were passing their existence. Some of the Romans, Cicero and Pliny, had encyclopædic minds; but the Roman mind was the slave of precedent, and was more than satisfied with partially understanding and neatly arranging what the Greeks had left. The Arabians looked more widely about them; but the Arabians were essentially sceptics, and resigned subjects to the inevitable and the inexplicable; there was an irony, open or covert, in their philosophy, their terminology, their transcendental mysticism, which showed how little they believed that they really knew. The vast and mighty intellects of the schoolmen never came into a real grapple with the immensity of the facts of the natural or even of the moral world; within the world of abstract thought, the world of language, with its infinite growths and consequences, they have never had their match for keenness, for patience, for courage, for inexhaustible toil; but they were as much disconnected from the natural world, which was their stage of life, as if they had been disembodied spirits. The Renaissance brought with it not only the desire to know, but to know comprehensively and in all possible directions; it brought with it temptations to the awakened Italian genius, renewed, enlarged, refined, if not strengthened by its passage through the Middle Ages, to make thought deal with the real, and to understand the scene in which men were doing such strange and wonderful things; but Giordano Bruno, Telesio, Campanella, and their fellows, were not men capable of more than short flights, though they might be daring and eager ones. It required more thoroughness, more humble-minded industry, to match the magnitude of the task. And there have been men of universal minds and comprehensive knowledge since Bacon, Leibnitz, Goethe, Humboldt, men whose thoughts were at home everywhere, where there was something to be known. But even for them the world of knowledge has grown too large. We shall never again see an Aristotle or a Bacon, because the conditions of knowledge have altered. Bacon, like Aristotle, belonged to an age of adventure, which

went to sea little knowing whither it went, and ill furnished with knowledge and instruments. He entered with a vast and vague scheme of discovery on these unknown seas and new worlds which to us are familiar, and daily traversed in every direction. This new world of knowledge has turned out in many ways very different from what Aristotle or Bacon supposed, and has been conquered by implements and weapons very different in precision and power from what they purposed to rely on. But the combination of patient and careful industry, with the courage and divination of genius, in doing what none had done before, makes it equally stupid and idle to impeach their greatness.

3. Bacon has been charged with bringing philosophy down from the heights, not as of old to make men know themselves, and to be the teacher of the highest form of truth, but to be the purveyor of material utility. It contemplates only, it is said, the "*commoda vitæ*;" about the deeper and more elevating problems of thought it does not trouble itself. It concerns itself only about external and sensible nature, about what is "of the earth, earthy." But when it comes to the questions which have attracted the keenest and hardiest thinkers, the question, what it is that thinks and wills—what is the origin and guarantee of the faculties by which men know anything at all and form rational and true conceptions about nature and themselves, whence it is that reason draws its powers and materials and rules—what is the meaning of words which all use but few can explain—Time and Space, and Being and Cause, and consciousness and choice, and the moral law—Bacon is content with a loose and superficial treatment of them. Bacon certainly was not a metaphysician, nor an exact and lucid reasoner. With wonderful flashes of sure intuition or happy anticipation, his mind was deficient in the powers which deal with the deeper problems of thought, just as it was deficient in the mathematical faculty. The subtlety, the intuition, the penetration, the severe precision, even the force of imagination, which make a man a great thinker on any abstract subject were not his; the interest of questions which had interested metaphysicians had no interest for him: he distrusted and undervalued them. When he touches the "ultimities" of knowledge he is as obscure and hard to be understood as any of those restless Southern Italians of his own age, who shared with him the ambition of reconstructing science. Certainly the science which most interested Bacon, the science which he found, as he thought, in so desperate

a condition, and to which he gave so great an impulse, was physical science. But physical science may be looked at and pursued in different ways, in different tempers, with different objects. It may be followed in the spirit of Newton, of Boyle, of Herschel, of Faraday; or with a confined and low horizon it may be dwarfed and shrivelled into a mean utilitarianism. But Bacon's horizon was not a narrow one. He believed in God and immortality and the Christian creed and hope. To him the restoration of the Reign of Man was a noble enterprise, because man was so great and belonged to so great an order of things, because the things which he was bid to search into with honesty and truthfulness were the works and laws of God, because it was so shameful and so miserable that from an ignorance which industry and good-sense could remedy, the tribes of mankind passed their days in self-imposed darkness and helplessness. It was God's appointment that men should go through this earthly stage of their being. Each stage of man's mysterious existence had to be dealt with, not according to his own fancies, but according to the conditions imposed on it; and it was one of man's first duties to arrange for his stay on earth according to the real laws which he could find out if he only sought for them. Doubtless it was one of Bacon's highest hopes that from the growth of true knowledge would follow in surprising ways the relief of man's estate; this, as an end, runs through all his yearning after a fuller and surer method of interpreting nature. The desire to be a great benefactor, the spirit of sympathy and pity for mankind, reign through this portion of his work—pity for confidence so greatly abused by the teachers of man, pity for ignorance which might be dispelled, pity for pain and misery which might be relieved. In the quaint but beautiful picture of courtesy, kindness, and wisdom, which he imagines in the *New Atlantis*, the representative of true philosophy, the "Father of Solomon's House," is introduced as one who "had an aspect as if he pitied men." But unless it is utilitarianism to be keenly alive to the needs and pains of life, and to be eager and busy to lighten and assuage them, Bacon's philosophy was not utilitarian. It may deserve many reproaches, but not this one. Such a passage as the following—in which are combined the highest motives and graces and passions of the soul, love of truth, humility of mind, purity of purpose, reverence for God, sympathy for man, compassion for the sorrows of the world and longing to heal them, depth of conviction and faith—fairly represents the

spirit which runs through his works. After urging the mistaken use of imagination and authority in science, he goes on—

"There is not and never will be an end or limit to this; one catches at one thing, another at another; each has his favourite fancy; pure and open light there is none; every one philosophises out of the cells of his own imagination, as out of Plato's cave; the higher wits with more acuteness and felicity, the duller, less happily, but with equal pertinacity. And now of late, by the regulation of some learned and (as things now are) excellent men (the former license having, I suppose, become wearisome), the sciences are confined to certain and prescribed authors, and thus restrained are imposed upon the old and instilled into the young; so that now (to use the sarcasm of Cicero concerning Cæsar's year) the constellation of Lyra rises by edict, and authority is taken for truth, not truth for authority. Which kind of institution and discipline is excellent for present use, but precludes all prospect of improvement. For we copy the sin of our first parents while we suffer for it. They wished to be like God, but their posterity wish to be even greater. For we create worlds, we direct and domineer over nature, we will have it that all things *are* as in our folly we think they should be, not as seems fittest to the Divine wisdom, or as they are found to be in fact; and I know not whether we more distort the facts of nature or of our own wits; but we clearly impress the stamp of our own image on the creatures and works of God, instead of carefully examining and recognising in them the stamp of the Creator himself. Wherefore our dominion over creatures is a second time forfeited, not undeservedly; and whereas after the fall of man some power over the resistance of creatures was still left to him—the power of subduing and managing them by true and solid arts—yet this too through our insolence, and because we desire to be like God and to follow the dictates of our own reason, we in great part lose. If, therefore, there be any humility towards the Creator, any reverence for or disposition to magnify His works, any charity for man and anxiety to relieve his sorrows and necessities, any love of truth in nature, any hatred of darkness, any desire for the purification of the understanding, we must entreat men again and again to discard, or at least set apart for a while, these volatile and preposterous philosophies which have preferred

theses to hypotheses, led experience captive, and triumphed over the works of God; and to approach with humility and veneration to unroll the volume of Creation, to linger and meditate therein, and with minds washed clean from opinions to study it in purity and integrity. For this is that sound and language which "went forth into all lands," and did not incur the confusion of Babel; this should men study to be perfect in, and becoming again as little children condescend to take the alphabet of it into their hands, and spare no pains to search and unravel the interpretation thereof, but pursue it strenuously and persevere even unto death."—Preface to *Historia Naturalis*: translated, *Works*, v. 132-3.

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## CHAPTER IX.

### BACON AS A WRITER.

Bacon's name belongs to letters as well as to philosophy. In his own day, whatever his contemporaries thought of his *Instauration of Knowledge*, he was in the first rank as a speaker and a writer. Sir Walter Raleigh, contrasting him with Salisbury, who could speak but not write, and Northampton, who could write but not speak, thought Bacon eminent both as a speaker and a writer. Ben Jonson, passing in review the more famous names of his own and the preceding age, from Sir Thomas More to Sir Philip Sidney, Hooker, Essex, and Raleigh, places Bacon without a rival at the head of the company as the man who had "fulfilled all numbers," and "stood as the mark and ἀκμὴ of our language." And he also records Bacon's power as a speaker. "No man," he says, "ever spoke more neatly, more pressly, or suffered less emptiness, less idleness, in what he uttered."..."His hearers could not cough or look aside from him without loss. He commanded when he spoke, and had his judges angry and pleased at his devotion ... the fear of every man that heard him was that he should make an end." He notices one feature for which we are less prepared, though we know that the edge of Bacon's sarcastic tongue was felt and resented in James's Court. "His speech," says Ben Jonson, "was nobly censorious when he could *spare and pass by a jest*." The unpopularity which certainly seems to have gathered round his name may have had something to do with this reputation.

Yet as an English writer Bacon did not expect to be remembered, and he hardly cared to be. He wrote much in Latin, and his first care was to have his books put into a Latin dress. "For these modern languages," he wrote to Toby Matthews towards the close of his life, "will at one time or another play the bank-rowte with books, and since I have lost much time with this age, I would be glad if God would give me leave to recover it with posterity." He wanted to be read by the learned out of England, who were

supposed to appreciate his philosophical ideas better than his own countrymen, and the only way to this was to have his books translated into the "general language." He sends Prince Charles the *Advancement* in its new Latin dress. "It is a book," he says, "that will live, and be a citizen of the world, as English books are not." And he fitted it for continental reading by carefully weeding it of all passages that might give offence to the censors at Rome or Paris. "I have been," he writes to the King, "mine own *Index Expurgatorius*, that it may be read in all places. For since my end of putting it in Latin was to have it read everywhere, it had been an absurd contradiction to free it in the language and to pen it up in the matter." Even the *Essays* and the *History of Henry VII.* he had put into Latin "by some good pens that do not forsake me." Among these translators are said to have been George Herbert and Hobbes, and on more doubtful authority, Ben Jonson and Selden. The *Essays* were also translated into Latin and Italian with Bacon's sanction.

Bacon's contemptuous and hopeless estimate of "these modern languages," forty years after Spenser had proclaimed and justified his faith in his own language, is only one of the proofs of the short-sightedness of the wisest and the limitations of the largest-minded. Perhaps we ought not to wonder at his silence about Shakespeare. It was the fashion, except among a set of clever but not always very reputable people, to think the stage, as it was, below the notice of scholars and statesmen; and Shakespeare took no trouble to save his works from neglect. Yet it is a curious defect in Bacon that he should not have been more alive to the powers and future of his own language. He early and all along was profoundly impressed with the contrast, which the scholarship of the age so abundantly presented, of words to things. He dwells in the *Advancement* on that "first distemper of learning, when men study words and not matter." He illustrates it at large from the reaction of the new learning and of the popular teaching of the Reformation against the utilitarian and unclassical terminology of the schoolmen; a reaction which soon grew to excess, and made men "hunt more after choiceness of the phrase, and the round and clean composition of the sentence, and the sweet falling of the clauses," than after worth of subject, soundness of argument, "life of invention or depth of judgment." "I have represented this," he says, "in an example of late times, but it hath been and will be *secundum majus et minus* in all times;" and he likens this "vanity" to

"Pygmalion's frenzy"—"for to fall in love with words which are but the images of matter, is all one as to fall in love with a picture." He was dissatisfied with the first attempt at translation into Latin of the *Advancement* by Dr. Playfer of Cambridge, because he "desired not so much neat and polite, as clear, masculine, and apt expression." Yet, with this hatred of circumlocution and prettiness, of the cloudy amplifications, and pompous flourishings, and "the flowing and watery vein," which the scholars of his time affected, it is strange that he should not have seen that the new ideas and widening thoughts of which he was the herald would want a much more elastic and more freely-working instrument than Latin could ever become. It is wonderful indeed what can be done with Latin. It was long after his day to be the language of the exact sciences. In his *History of the Winds*, which is full of his irrepressible fancy and picturesqueness, Bacon describes in clear and intelligible Latin the details of the rigging of a modern man-of-war, and the mode of sailing her. But such tasks impose a yoke, sometimes a rough one, on a language which has "taken its ply" in very different conditions, and of which the genius is that of indirect and circuitous expression, "full of majesty and circumstance." But it never, even in those days of scholarship, could lend itself to the frankness, the straightforwardness, the fulness and shades of suggestion and association, with which, in handling ideas of subtlety and difficulty, a writer would wish to speak to his reader, and which he could find only in his mother tongue. It might have been thought that with Bacon's contempt of form and ceremony in these matters, his consciousness of the powers of English in his hands might have led him to anticipate that a flexible and rich and strong language might create a literature, and that a literature, if worth studying, would be studied in its own language. But so great a change was beyond even his daring thoughts. To him, as to his age, the only safe language was the Latin. For familiar use English was well enough. But it could not be trusted; "it would play the bankrupt with books." And yet Galileo was writing in Italian as well as in Latin; only within twenty-five years later, Descartes was writing *De la Méthode*, and Pascal was writing in the same French in which he wrote the *Provincial Letters*, his *Nouvelles Expériences touchant le Vide*, and the controversial pamphlets which followed it; showing how in that interval of five-and-twenty years an instrument had been fashioned out of a modern language such as for lucid expression and clear reasoning, Bacon had not yet dreamed of. From Bacon

to Pascal is the change from the old scientific way of writing to the modern; from a modern language, as learned and used in the 16th century, to one learned in the 17th.

But the language of the age of Elizabeth was a rich and noble one, and it reached a high point in the hands of Bacon. In his hands it lent itself to many uses, and assumed many forms, and he valued it, not because he thought highly of its qualities as a language, but because it enabled him with least trouble "to speak as he would," in throwing off the abundant thoughts that rose within his mind, and in going through the variety of business which could not be done in Latin. But in all his writing it is the matter, the real thing that he wanted to say, which was uppermost. He cared how it was said, not for the sake of form or ornament, but because the force and clearness of what was said depended so much on how it was said. Of course, what he wanted to say varied indefinitely with the various occasions of his life. His business may merely be to write "a device" or panegyric for a pageant in the Queen's honour, or for the revels of Gray's Inn. But even these trifles are the result of real thought, and are full of ideas—ideas about the hopes of knowledge or about the policy of the State; and though, of course, they have plenty of the flourishes and quaint absurdities indispensable on such occasions, yet the "rhetorical affectation" is in the thing itself, and not in the way it is handled; he had an opportunity of saying some of the things which were to him of deep and perpetual interest, and he used it to say them, as forcibly, as strikingly, as attractively as he could. His manner of writing depends, not on a style, or a studied or acquired habit, but on the nature of the task which he has in hand. Everywhere his matter is close to his words, and governs, animates, informs his words. No one in England before had so much as he had the power to say what he wanted to say, and exactly as he wanted to say it. No one was so little at the mercy of conventional language or customary rhetoric, except when he persuaded himself that he had to submit to those necessities of flattery, which cost him at last so dear.

The book by which English readers, from his own time to ours, have known him best, better than by the originality and the eloquence of the *Advancement*, or than by the political weight and historical imagination of the *History of Henry VII.*, is the first book which he published, the volume

of *Essays*. It is an instance of his self-willed but most skilful use of the freedom and ease which the "modern language," which he despised, gave him. It is obvious that he might have expanded these "Counsels, moral and political," to the size which such essays used to swell to after his time. Many people would have thanked him for doing so; and some have thought it a good book on which to hang their own reflections and illustrations. But he saw how much could be done by leaving the beaten track of set treatise and discourse, and setting down unceremoniously the observations which he had made, and the real rules which he had felt to be true, on various practical matters which come home to men's "business and bosoms." He was very fond of these moral and political generalisations, both of his own collecting and as found in writers who, he thought, had the right to make them, like the Latins of the Empire and the Italians and Spaniards of the Renaissance. But a mere string of maxims and quotations would have been a poor thing and not new; and he cast what he had to say into connected wholes. But nothing can be more loose than the structure of the essays. There is no art, no style, almost, except in a few—the political ones—no order: thoughts are put down and left unsupported, unproved, undeveloped. In the first form of the ten, which composed the first edition of 1597, they are more like notes of analysis or tables of contents; they are austere even to meagreness. But the general character continues in the enlarged and expanded ones of Bacon's later years. They are like chapters in Aristotle's *Ethics* and *Rhetoric* on virtues and characters; only Bacon's takes Aristotle's broad marking lines as drawn, and proceeds with the subtler and more refined observations of a much longer and wider experience. But these short papers say what they have to say without preface, and in literary undress, without a superfluous word, without the joints and bands of structure; they say it in brief, rapid sentences, which come down, sentence after sentence, like the strokes of a great hammer. No wonder that in their disdainful brevity they seem rugged and abrupt, "and do not seem to end, but fall." But with their truth and piercingness and delicacy of observation, their roughness gives a kind of flavour which no elaboration could give. It is none the less that their wisdom is of a somewhat cynical kind, fully alive to the slipperiness and self-deceits and faithlessness which are in the world and rather inclined to be amused at them. In some we can see distinct records of the writer's own experience: one contains the substance of a charge delivered to Judge Hutton on his appointment; another of them is a

sketch drawn from life of a character which had crossed Bacon's path, and in the essay on *Seeming Wise* we can trace from the impatient notes put down in his *Commentarius Solutus*, the picture of the man who stood in his way, the Attorney-General Hobart. Some of them are memorable oracular utterances not inadequate to the subject, on *Truth* or *Death* or *Unity*. Others reveal an utter incapacity to come near a subject, except as a strange external phenomena, like the essay on *Love*. There is a distinct tendency in them to the Italian school of political and moral wisdom, the wisdom of distrust and of reliance on indirect and roundabout ways. There is a group of them, "of *Delays*," "of *Cunning*," "of *Wisdom for a Man's Self*," "of *Despatch*," which show how vigilantly and to what purpose he had watched the treasurers and secretaries and intriguers of Elizabeth's and James's Courts; and there are curious self-revelations, as in the essay on *Friendship*. But there are also currents of better and larger feeling, such as those which show his own ideal of "*Great Place*," and what he felt of its dangers and duties. And mixed with the fantastic taste and conceits of the time, there is evidence in them of Bacon's keen delight in nature, in the beauty and scents of flowers, in the charm of open-air life, as in the essay on *Gardens*, "The purest of human pleasures, the greatest refreshment to the spirits of man."

But he had another manner of writing for what he held to be his more serious work. In the philosophical and historical works there is no want of attention to the flow and order and ornament of composition. When we come to the *Advancement of Learning*, we come to a book which is one of the landmarks of what high thought and rich imagination have made of the English language. It is the first great book in English prose of secular interest; the first book which can claim a place beside the *Laws of Ecclesiastical Polity*. As regards its subject-matter, it has been partly thrown into the shade by the greatly enlarged and elaborate form in which it ultimately appeared, in a Latin dress, as the first portion of the scheme of the *Instauratio*, the *De Augmentis Scientiarum*. Bacon looked on it as a first effort, a kind of call-bell to awaken and attract the interest of others in the thoughts and hopes which so interested himself. But it contains some of his finest writing. In the *Essays* he writes as a looker-on at the game of human affairs, who, according to his frequent illustration, sees more of it than the gamesters themselves, and is able to give wiser and faithful counsel, not without a touch of kindly irony at the mistakes which he observes. In the

*Advancement* he is the enthusiast for a great cause and a great hope, and all that he has of passion and power is enlisted in the effort to advance it. The *Advancement* is far from being a perfect book. As a survey of the actual state of knowledge in his day, of its deficiencies, and what was wanted to supply them, it is not even up to the materials of the time. Even the improved *De Augmentis* is inadequate; and there is reason to think the *Advancement* was a hurried book, at least in the later part, and it is defective in arrangement and proportion of parts. Two of the great divisions of knowledge—history and poetry—are despatched in comparatively short chapters; while in the division on "Civil Knowledge," human knowledge as it respects society, he inserts a long essay, obviously complete in itself and clumsily thrust in here, on the ways of getting on in the world, the means by which a man may be "*Faber fortunæ suæ*"—the architect of his own success; too lively a picture to be pleasant of the arts with which he had become acquainted in the process of rising. The book, too, has the blemishes of its own time; its want of simplicity, its inevitable though very often amusing and curious pedantries. But the *Advancement* was the first of a long line of books which have attempted to teach English readers how to think of knowledge; to make it really and intelligently the interest, not of the school or the study or the laboratory only, but of society at large. It was a book with a purpose, new then, but of which we have seen the fulfilment. He wanted to impress on his generation, as a very practical matter, all that knowledge might do in wise hands, all that knowledge had lost by the faults and errors of men and the misfortunes of time, all that knowledge might be pushed to in all directions by faithful and patient industry and well-planned methods for the elevation and benefit of man in his highest capacities as well as in his humblest. And he further sought to teach them *how* to know; to make them understand that difficult achievement of self-knowledge, to know *what it is* to know; to give the first attempted chart to guide them among the shallows and rocks and whirlpools which beset the course and action of thought and inquiry; to reveal to them the "idols" which unconsciously haunt the minds of the strongest as well as the weakest, and interpose their delusions when we are least aware—"the fallacies and false appearances inseparable from our nature and our condition of life." To induce men to believe not only that there was much to know that was not yet dreamed of, but that the way of knowing needed real and thorough improvement; that the knowing mind bore along with it all kinds of snares

and disqualifications of which it is unconscious; and that it needed training quite as much as materials to work on, was the object of the *Advancement*. It was but a sketch; but it was a sketch so truly and forcibly drawn, that it made an impression which has never been weakened. To us its use and almost its interest is passed. But it is a book which we can never open without coming on some noble interpretation of the realities of nature or the mind; some unexpected discovery of that quick and keen eye which arrests us by its truth; some felicitous and unthought-of illustration, yet so natural as almost to be doomed to become a commonplace; some bright touch of his incorrigible imaginativeness, ever ready to force itself in amid the driest details of his argument.

The *Advancement* was only one shape out of many into which he cast his thoughts. Bacon was not easily satisfied with his work; even when he published he did so, not because he had brought his work to the desired point, but lest anything should happen to him and it should "perish." Easy and unstudied as his writing seems, it was, as we have seen, the result of unintermitted trouble and varied modes of working. He was quite as much a talker as a writer, and beat out his thoughts into shape in talking. In the essay on *Friendship* he describes the process with a vividness which tells of his own experience—

"But before you come to that [the faithful counsel that a man receiveth from his friend], certain it is that whosoever hath his mind fraught with many thoughts, his wits and understanding do clarify and break up in the communicating and discoursing with another. He tosseth his thoughts more easily; he marshalleth them more orderly; he seeth how they look when they are turned into words; finally, he waxeth wiser than himself, and that more by an hour's discourse than by a day's meditation. It was well said by Themistocles to the King of Persia, 'That speech was like cloth of arras opened and put abroad, whereby the imagery doth appear in figure; whereas in thought they lie in packs.' Neither is this second fruit of friendship, in opening the understanding, restrained only to such friends as are able to give a man counsel. (They are, indeed, best.) But even without that, a man learneth of himself, and bringeth his own thoughts to light, and whetteth his wits against a stone which itself cuts not. In a word, a man

were better relate himself to a *statua* or a picture, than to suffer his thoughts to pass in smother."

Bacon, as has been said, was a great maker of notes and note-books: he was careful not of the thought only, but of the very words in which it presented itself; everything was collected that might turn out useful in his writing or speaking, down to alternative modes of beginning or connecting or ending a sentence. He watched over his intellectual appliances and resources much more strictly than over his money concerns. He never threw away and never forgot what could be turned to account. He was never afraid of repeating himself, if he thought he had something apt to say. He was never tired of recasting and rewriting, from a mere fragment or preface to a finished paper. He has favourite images, favourite maxims, favourite texts, which he cannot do without. "*Da Fidei quæ sunt Fidei*" comes in from his first book to his last. The illustrations which he gets from the myth of Scylla, from Atalanta's ball, from Borgia's saying about the French marking their lodgings with chalk, the saying that God takes delight, like the "innocent play of children," "to hide his works in order to have them found out," and to have kings as "his playfellows in that game," these, with many others, reappear, however varied the context, from the first to the last of his compositions. An edition of Bacon, with marginal references and parallel passages, would show a more persistent recurrence of characteristic illustrations and sentences than perhaps any other writer.

The *Advancement* was followed by attempts to give serious effect to its lesson. This was nearly all done in Latin. He did so, because in these works he spoke to a larger and, as he thought, more interested audience; the use of Latin marked the gravity of his subject as one that touched all mankind; and the majesty of Latin suited his taste and his thoughts. Bacon spoke, indeed, impressively on the necessity of entering into the realm of knowledge in the spirit of a little child. He dwelt on the paramount importance of beginning from the very bottom of the scale of fact, of understanding the commonplace things at our feet, so full of wonder and mystery and instruction, before venturing on theories. The sun is not polluted by shining on a dunghill, and no facts were too ignoble to be beneath the notice of the true student of nature. But his own genius was for the grandeur and pomp of general views. The practical details of experimental science were, except in

partial instances, yet a great way off; and what there was, he either did not care about or really understand, and had no aptitude for handling. He knew enough to give reality to his argument; he knew, and insisted on it, that the labour of observation and experiment would have to be very heavy and quite indispensable. But his own business was with great principles and new truths; these were what had the real attraction for him; it was the magnificent thoughts and boundless hopes of the approaching "kingdom of man" which kindled his imagination and fired his ambition. "He writes philosophy," said Harvey, who had come to his own great discovery through patient and obscure experiments on frogs and monkeys—"he writes philosophy like a Lord Chancellor." And for this part of the work, the stateliness and dignity of the Latin corresponded to the proud claims which he made for his conception of the knowledge which was to be. English seemed to him too homely to express the hopes of the world, too unstable to be trusted with them. Latin was the language of command and law. His Latin, without enslaving itself to Ciceronian types, and with a free infusion of barbarous but most convenient words from the vast and ingenious terminology of the schoolmen, is singularly forcible and expressive. It is almost always easy and clear; it can be vague and general, and it can be very precise where precision is wanted. It can, on occasion, be magnificent, and its gravity is continually enlivened by the play upon it, as upon a background, of his picturesque and unexpected fancies. The exposition of his philosophical principles was attempted in two forms. He began in English. He began, in the shape of a personal account, a statement of a series of conclusions to which his thinking had brought him, which he called the "Clue of the Labyrinth," *Filum Labyrinthi*. But he laid this aside unfinished, and rewrote and completed it in Latin, with the title *Cogitata et Visa*. It gains by being in Latin; as Mr. Spedding says, "it must certainly be reckoned among the most perfect of Bacon's productions." The personal form with each paragraph begins and ends. "*Franciscus Bacon sic cogitavit ... itaque visum est ei*" gives to it a special tone of serious conviction, and brings the interest of the subject more keenly to the reader. It has the same kind of personal interest, only more solemn and commanding, which there is in Descartes's *Discours de la Méthode*. In this form Bacon meant at first to publish. He sent it to his usual critics, Sir Thomas Bodley, Toby Matthews, and Bishop Andrewes. And he meant to follow it up with a practical exemplification of his method. But he changed his plan. He had

more than once expressed his preference for the form of *aphorisms* over the argumentative and didactic continuity of a set discourse. He had, indeed, already twice begun a series of aphorisms on the true methods of interpreting nature, and directing the mind in the true path of knowledge, and had begun them with the same famous aphorism with which the *Novum Organum* opens. He now reverted to the form of the aphorism, and resolved to throw the materials of the *Cogitata et Visa* into this shape. The result is the *Novum Organum*. It contains, with large additions, the substance of the treatise, but broken up and rearranged in the new form of separate impersonal generalised observations. The points and assertions and issues which, in a continuous discourse, careful readers mark and careless ones miss, are one by one picked out and brought separately to the light. It begins with brief, oracular, unproved maxims and propositions, and goes on gradually into larger developments and explanations. The aphorisms are meant to strike, to awaken questions, to disturb prejudices, to let in light into a nest of unsuspected intellectual confusions and self-misunderstandings, to be the mottoes and watchwords of many a laborious and difficult inquiry. They form a connected and ordered chain, though the ties between each link are not given. In this way Bacon put forth his proclamation of war on all that then called itself science; his announcement that the whole work of solid knowledge must be begun afresh, and by a new, and, as he thought, infallible method. On this work Bacon concentrated all his care. It was twelve years in hand, and twelve times underwent his revision. "In the first book especially," says Mr. Ellis, "every word seems to have been carefully weighed; and it would be hard to omit or change anything without injuring the meaning which Bacon intended to convey." Severe as it is, it is instinct with enthusiasm, sometimes with passion. The Latin in which it is written answers to it; it has the conciseness, the breadth, the lordliness of a great piece of philosophical legislation.

The world has agreed to date from Bacon the systematic reform of natural philosophy, the beginning of an intelligent attempt, which has been crowned by such signal success, to place the investigation of nature on a solid foundation. On purely scientific grounds his title to this great honour may require considerable qualification. What one thing, it is asked, would not have been discovered in the age of Galileo and Harvey, if Bacon had

never written? What one scientific discovery can be traced to him, or to the observance of his peculiar rules? It was something, indeed, to have conceived, as clearly as he conceived it, the large and comprehensive idea of what natural knowledge must be, and must rest upon, even if he were not able to realise his idea, and were mistaken in his practical methods of reform. But great ideas and great principles need their adequate interpreter, their *vates sacer*, if they are to influence the history of mankind. This was what Bacon was to science, to that great change in the thoughts and activity of men in relation to the world of nature around them: and this is his title to the great place assigned to him. He not only understood and felt what science might be, but he was able to make others—and it was no easy task beforehand, while the wonders of discovery were yet in the future—understand and feel it too. And he was able to do this because he was one of the most wonderful of thinkers and one of the greatest of writers. The disclosure, the interpretation, the development of that great intellectual revolution which was in the air, and which was practically carried forward in obscurity, day by day, by the fathers of modern astronomy and chemistry and physiology, had fallen to the task of a genius, second only to Shakespeare. He had the power to tell the story of what they were doing and were to do with a force of imaginative reason of which they were utterly incapable. He was able to justify their attempts and their hopes as they themselves could not. He was able to interest the world in the great prospects opening on it, but of which none but a few students had the key. The calculations of the astronomer, the investigations of the physician, were more or less a subject of talk, as curious or possibly useful employments. But that which bound them together in the unity of science, which gave them their meaning beyond themselves, which raised them to a higher level and gave them their real dignity among the pursuits of men, which forced all thinking men to see what new and unsuspected possibilities in the knowledge and in the condition of mankind were opened before them, was not Bacon's own attempts at science, not even his collections of facts and his rules of method, but that great idea of the reality and boundless worth of knowledge which Bacon's penetrating and sure intuition had discerned, and which had taken possession of his whole nature. The impulse which he gave to the progress of science came from his magnificent and varied exposition of this idea; from his series of grand and memorable generalisations on the habits and faults of the human mind—on the difficult and yet so obvious

and so natural precautions necessary to guide it in the true and hopeful track. It came from the attractiveness, the enthusiasm, and the persuasiveness of the pleading; from the clear and forcible statements, the sustained eloquence, the generous hopes, the deep and earnest purpose of the *Advancement* and the *De Augmentis*; from the nobleness, the originality, the picturesqueness, the impressive and irresistible truth of the great aphorisms of the *Novum Organum*.

**THE END**

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## FOOTNOTES:

[1] *Promus*: edited by Mrs. H. Pott, p. 475.

[2] Dr. Mozley.

[3] *Calendar of State Papers* (domestic), March 24, 1621.

[4] *Commons' Journals*, March 17, April 27; iii. 560, 594-6.

[5] *Commons' Journals*, iii. 578. In his copy of the *Novum Organum*, received *ex dono auctoris*, Coke wrote the same words.

"*Auctori consilium.*

Instaurare paras veterum documenta sophorum:

Instaura leges justitiamque prius."

He added, with allusion to the ship in the frontispiece of the *Novum Organum*,

"It deserveth not to be read in schools,  
But to be freighted in the ship of Fools."

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